

CRIMINAL PROCEDURE

A. GENERAL MATTERS

Q: What is criminal procedure?

A: It is the method prescribed by law for the apprehension and prosecution of persons accused of any criminal offense, and for their punishment, in case of conviction (*Herrera, Vol. IV, p. 1, 2007 ed.*).

Q: Distinguish criminal law from criminal procedure.

A:

Criminal Law	Criminal Procedure
Substantive	Remedial
It declares what acts are punishable	It provides how the act is to be punished
It defines crimes, treats of their nature and provides for their punishment	It provides for the method by which a person accused of a crime is arrested, tried or punished.

1. DISTINGUISH JURISDICTION OVER SUBJECT MATTER FROM JURISDICTION OVER PERSON OF THE ACCUSED

Q: Distinguish jurisdiction over the subject matter from jurisdiction over the person of the accused.

A:

Jurisdiction Over the Subject Matter	Jurisdiction Over the Person of the Accused
Derived from the law. It can never be acquired solely by consent of the accused.	May be acquired by consent of the accused (by voluntary appearance) or by waiver of objections.
Objection that the court has no jurisdiction over the subject matter may be made at any stage of the proceeding, and the right to make such objection is never waived.	If he fails to make his objection on time, he will be deemed to have waived it.

Q: What determines jurisdiction of the court in criminal cases?

A:

1. The geographical limits of its territory;
2. Determined by the allegations in the complaint or information not by the results of proof or by the trial's court's appreciation of the evidence presented;

3. Determined by the nature of the offense and/ or penalty attached thereto and not what may be meted out after trial;
4. Determined by the law in force at the time of the institution of the criminal action and not at the time of its commission. ONCE VESTED IT CANNOT BE WITHDRAWN BY:
 - a. Subsequent valid amendment of the information (*People v. Chipeco GR No. 1968, March 31, 1964*) or;
 - b. Subsequent statutory amendment of the rules of jurisdiction UNLESS the amendatory law expressly provides otherwise or is construed that it is intended to operate to actions pending before its amendment, in which case the court where the action is pending is ousted of jurisdiction and the pending action will have to be transferred to the court having jurisdiction by virtue of the amendatory law (*Binay v. Sandiganbayan GR No. 120011, October 1, 1999*)

2. REQUISITES FOR EXERCISE OF CRIMINAL JURISDICTION

Q: What is criminal jurisdiction?

A: It is the authority to hear and try a particular offense and impose the punishment for it (*People v. Mariano, GR. No. L-40527, June 30, 1976*).

Note: Jurisdiction is determined by the law in force at the time of the commencement of the action

Q: What are the requisites for the valid exercise of criminal jurisdiction?

A:

1. *Jurisdiction over the subject matter* – the power to hear and determine cases of general class to which the proceeding in question belong. The offense, by virtue of the imposable penalty or its nature, is one which the court is by law authorized to take cognizance of.
2. *Jurisdiction over the territory* – The offense must have been committed or any of its essential ingredients took place within the territorial jurisdiction of the court. It cannot be waived and where the place of the commission was not specifically charged, the place may be shown by evidence.

3. *Jurisdiction over the person of the accused* – The person charged with the offense must have been brought to its presence for trial, forcibly by warrant of arrest or upon his voluntary submission to the court.

Note:

GR: Questions of jurisdiction may be raised at any stage of the proceedings and for lack of it, a court can dismiss a case *motu proprio*

XPN: The party raising the question is guilty of estoppel or laches (*Tijam v. Sibonghanoy, G.R. No. L-21450, Apr. 15, 1968*)

3. JURISDICTION OF CRIMINAL COURTS

Q: How is jurisdiction determined?

A: It is determined by the allegations in the complaint or information not by the results of proof or by the trial court's appreciation of the evidence presented (*Buaya v. Polo, G.R. No. 75097, Jan. 26, 1989*).

Q: What is the principle of adherence?

A: It provides that once jurisdiction is vested in the court, it is retained up to the end of litigation (*Dela Cruz v. Moya, G.R. No. 65192, Apr. 27, 1988*).

Q: Is there an exception to the principle of adherence?

A: Yes, when the subsequent statute expressly provides, or is construed that it shall have retroactive effect to pending case (*Herrera, Vol. IV, p. 9, 2007 ed.*).

Q: If fine is the only penalty, how is jurisdiction determined?

A: In cases where the only penalty provided by law is a fine, the *amount* thereof shall determine the jurisdiction of the court. The RTC has jurisdiction where the fine is more than 4,000 pesos including offenses committed by public officers and employees in relation to their office, where the *amount of the fine does not exceed 6,000 pesos* (SC Court Circular No. 09-94) except in cases of criminal negligence involving damage to property which falls under the exclusive original jurisdiction of the MTC. The MTC has jurisdiction where the fine is 4,000 pesos or less. Accessory penalties and civil liabilities are no longer determinative of criminal jurisdiction.

Q: In complex crimes, how is the jurisdiction of a court determined?

A: It is lodged with the trial court having jurisdiction to impose the maximum and most serious penalty imposable of an offense forming part of the complex crime. It must be prosecuted integrally and must not be divided into component offenses which may be made subject of multiple information brought in different courts (*Cuyos v. Garcia, G.R. No. L-46934, Apr. 15, 1988*).

Q: Which court has jurisdiction over continuing crimes?

A: Continuing offenses are consummated in one place, yet by the nature of the offense, the violation of the law is deemed continuing (*e.g. estafa and libel*). As such, the courts of the territories where the essential ingredients of the crime took place have concurrent jurisdiction. But the court which first acquires jurisdiction excludes the other courts.

Q: Which court has jurisdiction over crimes punishable by destierro?

A: Where the imposable penalty is *destierro*, the case falls within the exclusive jurisdiction of the Municipal Trial Court, considering that in the hierarchy of penalties under Art. 71 of the RPC, *destierro* follows *arresto mayor* which involves imprisonment (*People v. Eduarte, G.R. No. 88232, Feb. 26, 1990*).

4. WHEN INJUNCTION MAY BE ISSUED TO RESTRAIN CRIMINAL PROSECUTION

Q: Will injunction lie to restrain criminal prosecution?

A:

GR: Writs of injunction or prohibition to restrain criminal prosecution are generally not available because public interest requires that criminal acts be immediately investigated and prosecuted for the protection of society.

XPNs:

1. To afford adequate protection to the constitutional rights of the accused;
2. When necessary for the orderly administration of justice or to avoid oppression or multiplicity of actions;
3. When there is a prejudicial question which is *subjudice*;
4. When the acts of the officer are without or in excess of authority;
5. Where the prosecution is under an invalid law, ordinance or regulation;
6. When double jeopardy is clearly apparent;



7. Where the court has no jurisdiction over the offense;
8. Where it is a case of persecution rather than prosecution;
9. Where the charges are manifestly false and motivated by lust for vengeance;
10. When there is clearly no *prima facie* case against the accused and a motion to quash on that ground has been denied; and
11. Preliminary injunction has been issued by the SC to prevent the threatened unlawful arrest of petitioners (*Domingo v. Sandiganbayan*, G.R. No. 129904, Mar. 16, 2002).

B. PROSECUTION OF OFFENSES

1. CRIMINAL ACTIONS, HOW INSTITUTED

Q: What is criminal action?

A: It is one by which the State prosecutes a person for an act or omission punishable by law.

Q: How is criminal action instituted?

A: The institution of a criminal action depends upon whether the offense requires a preliminary investigation.

Where a preliminary investigation is required, a criminal action is instituted by filing the complaint with the proper officer for the purpose of conducting the requisite preliminary investigation.

Where a preliminary investigation is not required, a criminal action is instituted either:

- a. By filing the complaint or information directly with the Municipal Trial Court of Municipal Circuit Trial Court; or
- b. By filing the complaint with the office of the prosecutor. (*Section 1, Rule 110, Rules of Court*)

Note:

1. For Metro Manila and other chartered cities, the complaint shall be filed with the prosecutor regardless of the imposable penalty (*Section 1, Rule 110, Rules of Court*)
2. Cases falling within the jurisdiction of the RTC are always commenced by information filed by the prosecutor.

Q: Can the complaint or information be directly filed in the Regional Trial Court or Metropolitan Trial Court or other chartered cities?

A: There is NO DIRECT FILING of an information or complaint with the RTC because its jurisdiction covers offenses which require preliminary investigation.

There is likewise NO DIRECT FILING with the Metropolitan Trial Court because in Manila, including other chartered cities, as a rule, the complaint shall be filed with the office of the prosecutor, unless otherwise provided by their charters. In case of conflict between a city charter and a provision of the Rules of Court, the former, being substantive law, prevails.

Q: What is the effect of institution of the criminal action on the prescriptive period?

A:

GR: It interrupts the running of the period of prescription of the offense charged (*Sec. 1*).

XPN: Prescriptive periods of violations of special laws and municipal ordinances governed by Act No. 3323 (An Act to Establish Periods of Prescription for Violations Penalized by Special Laws and Municipal Ordinances and to Provide When Prescription shall Begin to Run) shall only be interrupted by the filing of a complaint or information in court. The filing of a complaint with the prosecutor or the proper officer for purposes of conducting a preliminary investigation will *not* interrupt the prescriptive period (*Zaldivia v. Reyes, Jr.*, G.R. No. 102342, July 3, 1992).

Q: May the offended party go directly to court to file a criminal action?

GR:No. Before a complaint is filed in court, there should have been a confrontation between the parties before the Lupon chairman. The Lupon secretary must certify that no conciliation or settlement was reached, attested to by the Lupon chairman. The complaint may also be filed if the settlement is repudiated by the parties.

XPNs:

1. Where the accused is under detention
2. Where a person has otherwise been deprived of personal liberty calling for habeas corpus proceedings
3. Where actions are coupled with provisional remedies
4. Where the action may be barred by the statute of limitations

Q: What is the rule regarding the prescriptive periods of cases falling under the authority of the Lupon?

A: The prescriptive period shall be *suspended* from the time of the filing of complaint with the punong barangay which suspension shall not exceed 60 days. The prescriptive period shall resume upon receipt of the certificate of repudiation or certificate to file action [Sec. 410(c), LGC].

2. WHO MAY FILE THEM, CRIMES THAT CANNOT BE PROSECUTED DE OFFICIO

Q: What is the concept of an offense or crime that cannot be prosecuted de officio?

A: These are crimes or offenses which cannot be prosecuted except on complaint filed by the offended party or if the offended party is a minor, by the parents, grandparents or the guardian. All other crimes can be prosecuted de officio.

Note: These are also known as private crimes.

Q: Are all crimes initiated by a complaint or information filed by the prosecutor?

A:

GR: Yes.

XPNS: Private crimes which may only be prosecuted by a complaint filed by the private offended party, i.e.:

1. Concubinage
2. Adultery
3. Seduction
4. Abduction
5. Defamation
6. Acts of lasciviousness

Note: These are crimes which are by their nature cannot be prosecuted *de officio*

Rape is now a crime against persons by virtue of RA 8353.

Q: Who can legally file a complaint for crimes that cannot be prosecuted de officio?

A:

1. Adultery or concubinage- Only the offended spouse may file a complaint for adultery or concubinage (Sec. 5).

Note: The offended spouse cannot institute a criminal action for adultery

1. Without including the guilty parties if both are alive; or

2. If the offended party has consented to the offense or pardoned the offenders (Sec. 5).

2. Seduction, abduction or acts of lasciviousness- prosecuted exclusively and successively by the following persons in this order:

1. The offended party;
2. Offended party's parents;
3. Offended party's grandparents; or
4. Offended party's guardian (Sec. 5).

Note: Such crimes cannot be prosecuted if the offender has been *expressly* pardoned by any of the abovementioned parties (Sec. 5).

3. Defamation imputing to a person any of the foregoing crimes of concubinage, adultery, seduction, abduction, rape or acts of lasciviousness- only by the party or parties defamed (Article 360, last paragraph, Revised Penal Code)

Q: Are there instances where the State may initiate the action for seduction, abduction or acts of lasciviousness in behalf of the offended party?

A: Yes, when the offended party:

1. Dies or becomes incapacitated before a complaint is filed; or
2. Has no known parents, grandparents or guardian (Sec. 5; Rule 110).

Q: Who may file a complaint on cases of unlawful acts in RA 7610 (Special Protection of Children against Child Abuse, Exploitation and Discrimination Act)?

A: The complaint may be filed by the following:

1. Offended party;
2. Parents or guardians;
3. Ascendant or collateral relative within the third degree of consanguinity;
4. Officer, social worker or representative of a licensed child-caring institution;
5. Officer or social worker of the Department of Social Welfare and Development;
6. Barangay chairman; or
7. At least three (3) concerned, responsible citizens where the violation occurred (Sec. 27, RA 7160)

Q: May a minor file a complaint for seduction, abduction, or acts of lasciviousness?

A:

GR: Yes, the offended party, even if a minor, has the right to initiate the prosecution of such



offenses independently of his parents, grandparents or guardian.

XPN: If the minor is:

1. Incompetent; or
2. Incapable of doing so (*Sec. 5, Rule 110*).

Note: If the minor fails to file a complaint, his parents, grandparents or guardian may file the same. The right granted to the former shall be exclusive and successive in the order herein provided (*Sec. 5, Rule 110*).

Q: Can the father file a complaint on behalf of his daughter for concubinage?

A: No. The rule allowing the parents, grandparents, and guardians to file a complaint on behalf of the minor applies only to the offenses of seduction, abduction, and acts of lasciviousness. A complaint for adultery or concubinage may be filed only by the offended spouse.

Q: If the offended party in abduction, seduction, and acts of lasciviousness is of age, can her parents file the complaint for her?

A: No. If the offended party is already of age, she has the exclusive right to file the complaint unless she becomes incapacitated. The parents, grandparents, and guardian only have exclusive, successive authority to file the case if the offended party is still a minor.

Q: If the offended party dies during the pendency of the case, is the criminal liability of the accused extinguished?

A: No.

Q: Distinguish pardon from consent.

A:

Pardon	Consent
Refers to past acts	Refers to future acts
In order to absolve the accused from liability, it must be extended to both offenders	In order to absolve the accused from liability, it is sufficient even if granted only to the offending spouse

Q: Who can give pardon?

A:

1. *Concubinage and adultery* – only the offended spouse, not otherwise incapacitated.
2. *Seduction, abduction and acts of lasciviousness:*

- a. The offended minor, if with sufficient discretion, can validly pardon the accused by herself if she has no parents or where the accused is her own father and her mother is dead;
- b. The parents, grandparents or guardian of the offended minor, in that order, extend a valid pardon in said crimes *without* the conformity of the offended party, even if the latter is a minor;
- c. If the offended woman is of age and not otherwise incapacitated, only she can extend a valid pardon.

Note: The pardon refers to pardon before filing of the criminal complaint in court. Pardon effected after the filing of the complaint in court does not prohibit the continuance of the prosecution of the offense.

Q: In cases of seduction, abduction or acts of lasciviousness may a minor extend pardon?

A: Yes, but the pardon to be effective as to prevent prosecution of the accused must be given by both parents and the offended party.

Q: Does the subsequent marriage of the accused and offended party extinguish the criminal liability?

A:

GR: The subsequent marriage between the party and the accused, even after the filing of the complaint, extinguishes the criminal liability of the latter, together with that of the co-principals, accomplices and accessories.

XPNs:

1. Where the marriage was invalid or contracted in bad faith in order to escape criminal liability;
2. In “private libel” or the libelous imputation of the commission of the crimes of concubinage, adultery, seduction, abduction, rape or acts of lasciviousness and in slander by deed; and
3. In multiple rape, in so far as the other accused in the other acts of rape committed by them are concerned.

Q: Can the offended party intervene in the criminal action?

A:

GR: The offended party has the right to intervene by counsel in the prosecution of the criminal action where the civil action for the

recovery of civil liability is instituted in the criminal action pursuant to Rule 111 (Sec. 16).

However, if the civil action for damages is filed separately from the criminal action and is based upon an independent civil action under Articles 32, 33, 34 or 2176 of the Civil Code, the right to intervene is not lost because the subject of the suit does not arise from the crime. The civil action to recover civil liability arising from the offense charged is not the one separately filed (*Philippine Rabbit v. People*, 427 SCRA 456)

XPN: Where:

1. From the nature of the crime and the law defining or punishing it, no civil liability arises in favor of the offended party, e.g. sedition, rebellion, treason (crimes against national security);
2. The offended party waived the right to civil indemnity; or
3. The offended party had already instituted separate action.

Q: What is the effect of desistance made by the offended party in private crimes?

A: It does not bar the People from prosecuting the criminal action, but it operates as a waiver of the right to pursue civil indemnity.

Note:

GR: Since it is the State who is the real offended party in a criminal case, it is the prosecutor or the Ombudsman as the case may be, or the Solicitor General in cases before the CA or SC, who has the personality and authority prosecute and file a petition in behalf of the State.

XPN: An offended party in a criminal case has sufficient personality to file a special civil action for *certiorari*, even without the imprimatur of the State. In so doing, the complainant should not bring the action in the name of the People of the Philippines. The action may be prosecuted in the name of the said complainant. (*Perez v. Hagonoy Rural Bank, Inc.*, G.R. No. 126210, Mar. 9, 2000)

Q: What is the effect of death by the offended party to the criminal action?

A: Death of the complainant:

1. Will not be sufficient justification for the dismissal of the information, if prior to the filing of a case in court, a complaint was already filed by the offended party with the prosecutor (*People v. Ilarde*, G.R. No. L-57288, Apr. 30, 1984)

2. During the pendency of the case, will not extinguish the criminal liability of the accused whether total or partial (*Donio-Teves v. Vamenta*, G.R. No. L-38308)

3. CRIMINAL ACTIONS, WHEN ENJOINED

Q: When may criminal actions be enjoined?

A: Whenever a criminal case is prosecuted and the State is the offended party, the case must always be prosecuted under control and guidance of the State through the government prosecutors.

Whenever there is acquittal or dismissal of the case and the private complainant intends to question such acquittal or dismissal, the same must likewise be undertaken by the State through the Solicitor General.

Only the Solicitor General may represent the People of the Philippines on appeal. The private offended party or complainant may question such acquittal or dismissal or appeal therefrom only insofar as the civil aspect is concerned, in the name of the petitioner or appellant and not in the name of the People of the Philippines (*Metropolitan Bank and Trust Co. vs. Veridiano II*, 360 SCRA 359).

Note: The rule that the Solicitor General is the lawyer of the People in appellate courts admits an exception, namely, that which is provided for in RA 8249, which states in part that "in all cases elevated to the Sandiganbayan and from the Sandiganbayan to the Supreme Court, the Office of the Ombudsman, through its special prosecutor, shall represent the People of the Philippines, except in cases filed pursuant to EO 1, 2, 14 and 14-A, issued in 1986."

4. CONTROL OF PROSECUTION

Q: Who prosecutes criminal actions?

A:

GR: The public prosecutor shall prosecute, direct and control all criminal actions commenced by a complaint or information.

XPN: The private prosecutor (private counsel) may prosecute the case in the event and provided that:

1. The public prosecutor has heavy work schedule; or
2. There is lack of public prosecutors;
3. The private prosecutor must be authorized in writing by the Chief Prosecution Office or Regional State Prosecutor; and



4. Such will be subject to the court's approval.

Note: The institution of a criminal action depends upon the sound discretion of the prosecutor. But once the case is already filed in court, the same can no longer be withdrawn or dismissed without the tribunal's approval (*Herrera, Vol. IV, p. 79, 2007 ed.*). Should the prosecutor find it proper to conduct a reinvestigation of the case at such stage, the permission of the court must be secured. (*Republic v. Judge Sunga, G.R. No. 38634, June 20, 1988*).

Q: Are private prosecutors allowed to intervene in the prosecution of the offenses?

A: Yes, however such intervention may be allowed if the offended party:

1. Waives the civil action;
2. Reserves the right to institute it properly; or
3. Institutes the civil action prior to the criminal action.

Q: How long will the authority of the private prosecutor last?

A: The authority of the private prosecutor shall continue until the end of the trial unless the authority is revoked or withdrawn (*Sec. 5*).

Q: What are the matters within the control and supervision of the prosecutor?

A:

1. What case to file
2. Whom to prosecute
3. Manner of prosecution
4. Right to withdraw information before arraignment even without notice and hearing

Q: What are the matters within the control of the Court after the case is filed?

A:

1. Suspension of arraignment
2. Reinvestigation
3. Prosecution by the fiscal
4. Dismissal of the case
5. Downgrading of offense or dropping of accused even before plea

Q: What are the limitations of control by the Court?

A:

1. Prosecution is entitled to notice of hearing
2. Court must await for petition for review

3. Prosecution's stand to maintain prosecution should be respected by the court
4. The court must make its own independent assessment of evidence in granting or dismissing motion to dismiss. Otherwise, the judgment is void.

Q: Who shall review the decisions of the prosecutor?

A:

1. The Secretary of Justice who exercises supervision and control over his actions and who may sustain, modify or set aside his resolution on the matter; or
2. In appropriate cases, by the courts when he acts with grave abuse of discretion amounting to lack of jurisdiction (*Herrera, Vol. IV, p. 75, 2007 ed.*).

Q: May a prosecutor be compelled by mandamus to file a complaint regarding a complaint filed which he previously dismissed for lack of merit after preliminary investigation?

A: No. This is because the determination of probable cause is within the discretion of the prosecutor. The remedy is an appeal to the Secretary of Justice.

5. SUFFICIENCY OF COMPLAINT OR INFORMATION

Q: Define complaint.

A: *Complaint* is a sworn written statement charging a person with an offense, subscribed by the offended party, any peace officer, or other public officer charged with the enforcement of the law violated (*Sec. 3*).

Note: The complaint contemplated under Sec. 3 Rule 110 is different from the complaint filed with the Prosecutor's office. It refers to the one filed in court for the commencement of the criminal prosecution.

Q: Define information.

A: *Information* is an accusation in writing charging a person with an offense, subscribed by the prosecutor and filed with the court (*Sec. 4, Rule 110*).

Q: Distinguish information from complaint.

Information	Complaint
Accusation must be in writing. It requires no oath. This is because the	It is a <u>sworn</u> written statement.

prosecutor filing the information is acting under oath of his office (<i>Estudillo v. Baloma</i> , 426 SCRA 83)	
Subscribed by the prosecutor (Sec. 4)	Subscribed by - The offended party; - Any peace officer; - Other public officer charged with the enforcement of the law violated (Sec. 3)

Note: However, both are filed in the name of the People of the Philippines against all persons who appear to be responsible for the offense involved (Sec. 2, Rule 110).

Q: Why should the complaint or information be in the name of the People of the Philippines?

A: Criminal actions must be commenced in the name of the People because a crime is an outrage against the peace and security of the people at large, so must its vindication be in the name of the People. However, if the action is instituted in the name of the offended party or of a particular city, the defect is merely of form and may be cured at any stage of the trial.

Q: What is the form of a valid complaint or information?

A: The complaint or information shall be:

- In writing;
- In the name of the People of the Philippines; and
- Against all persons responsible for the offense involved (Sec. 2).

Q: When is a complaint or information sufficient?

A: It is sufficient if it states the:

- Name of the accused;
- Designation of the offense given by the statute;
- Acts or omissions complained of as constituting the offense;
- Name of the offended party;
- Approximate date of the commission of the offense; and
- Place where the offense was committed (Sec. 6).

Note: In case of variance between the complaint filed by the offended party and the information in crimes against chastity, the complaint controls.

An Information not properly signed cannot be cured by silence, acquiescence or even by express consent.

The non-inclusion of some of the names of the eyewitnesses in the information does not preclude the prosecution from presenting them during trial. (*People v. Dela Cruz*, G.R. No. 128362, Jan. 16, 2001)

Q: What is the rule in determining the name of the accused?

A: Section 7 of Rule 110 establishes the following rules in designating the name of the accused:

- The complaint or information must state the name and surname of the accused or any appellation or nickname by which he has been or is known.
- If his name cannot be ascertained, he must be described under a fictitious name. A description of the accused under a fictitious name must be accompanied by a statement that his true name is unknown.
- If later his true name is disclosed by him or becomes known in some other manner, his true name shall be inserted in the complaint or information and in the records of the case.

Q: is the mistake in the name of the accused equivalent to a mistake in his identity?

A: No. A mistake in the name of the accused is not equivalent, and does not necessarily amount to, a mistake in the identity of the accused especially when sufficient evidence is adduced to show that the accused is pointed to as one of the perpetrators of the crime (*People v. Amodia GR No. 173791*).

Q: What is the rule regarding the name of the offended party?

A: The complaint or information must state the name and surname of the persons against whom or against whose property the offense was committed or any appellation or nickname by which such person has been or is known and if there is no better way of identifying him, he must be described under a fictitious name.

- In *crimes against property*, if the name of the offended party is unknown, the property must be described with such



particularity as to properly identify the particular offense charged.

2. If the true name of the offended party is thereafter disclosed or ascertained, the court must cause such true name to be inserted in the complaint or information in record.
3. If the offended party is a *juridical person*, it is sufficient to state its name, or any name or designation by which it is known or may be identified, without need of averring that it is a juridical person (Sec. 12).

Q: Must the complaint or information state with particularity the date of the commission of the offense?

A:

GR: It is not required. It suffices that the allegation approximates or be as near the actual date when the offense was committed (Sec. 11).

XPNS:

1. If the date of the commission of the offense constitutes an essential element of the offense (e.g. infanticide, abortion, bigamy) (Sec. 11).
2. When the dates are essential to the defense of alibi (*People v. Valdesancho*, G.R. No. 137051-52, May 30, 2001).

Note: The remedy against an indictment that fails to allege the time of commission of the offense with sufficient definiteness is a motion for bill of particulars under Sec. 10, Rule 116; the failure to move for specification or quashal of the information on any of the grounds provided for in the Rules deprives the accused of the right to object to evidence which could be lawfully introduced and admitted under an information of more or less general terms but which sufficiently charges the accused with a definite crime. Besides, the exact date of the commission of the crime is not an essential element of the crime (*People v. Elpedes*, G.R. Nos. 137106-07, Jan. 31, 2001).

6. DESIGNATION OF OFFENSE

Q: What is the rule with regard to the designation of the offense?

A: In designating the offense, the following rules must be observed:

1. The designation of the offense requires, as a rule, that the name given to the offense by statute must be stated in the complaint or information. If the statute

gives no designation to the offense, then reference must instead be made to the section or subsection punishing it (Sec. 8)

2. Included in the complete designation of the offense is an averment of the acts or omissions constituting the offense (Sec. 8)
3. The present rule also provides for a mandatory requirement, that the complaint or information must specify the qualifying and aggravating circumstances of the offense (Sec. 8)

Q: Must the qualifying and aggravating circumstances be stated?

A: Yes, it is required by Sec. 8 of Rule 110 that the complaint or information, in designating the offense, shall specify the qualifying and aggravating circumstances. A statement of the qualifying and aggravating circumstances is considered as a part of the cause of accusation. It must be stated in an ordinary and concise language (Sec. 9)

Note: The qualifying and aggravating circumstances must be specified in the information. They must not only be proven but they must also be alleged, otherwise, they should not be considered (*Catilis v. CA*, G.R. 153979, February 9, 2006).

Q: Do allegations prevail over designation of the offense in the information?

A: Allegations prevail over designation of the offense in the information. It is not the designation of the offense in the complaint or information that is controlling (*People vs. Samillano*, 56 SCRA 573); the facts alleged therein and not its title determine the nature of the crime (*People vs. Magdowa*, 73 Phil. 512).

Q: May the accused be convicted of a crime more serious than that named in the title of the information?

A: The accused may be convicted of a crime more serious than that named in the title or preliminary part if such crime is covered by the facts alleged in the body of the information and its commission is established by evidence (*Buhat vs. Court of Appeals*, 265 SCRA 701).

Note: Limitation on the rule that an accused may be convicted of a crime which is more serious than that named in the title so long as the facts alleged the more serious offense.

An accused could not be convicted under one act when he is charged with a violation of another if the change from one statute to the other involves:

1. A change in the theory of the trial;
2. Requires of the defendant a different defense; or

3. Surprises the accused in any way (*U.S. vs. Panlilio, 28 Phil. 603*)

7. CAUSE OF ACCUSATION

Q: What is the purpose of designating the cause of accusation?

A:

1. To enable the court to pronounce proper judgment;
2. To furnish the accused with such a description of the charge as to enable him to make a defense;
3. As a protection against further prosecution for the same cause

Q: What is the rule with respect to the cause of accusation?

A: In informing the accused of the cause of accusation against him, it is not necessary to employ the words used in the statute alleged to have been violated. It is sufficient for the complaint or information to use ordinary and concise language sufficient to enable a person of common understanding to know the following:

1. The offense being charged
2. The acts or omissions complained of as constituting the offense; and
3. The qualifying and aggravating circumstances (*Sec. 9, Rule 110*)

Q: What is the rule regarding negative averments?

A:

GR: Where the statute alleged to have been violated prohibits generally acts therein defined and is intended to apply to all persons indiscriminately, but prescribes certain limitation or exceptions from its violation, the complaint or information is sufficient if it alleges facts which the offender did as constituting a violation of law, without explicitly negating the exception, as the *exception is a matter of right* which the accused has to prove.

XPN: Where the statute alleged to have been violated applies only to specific classes of persons and special conditions and the exemptions from its violations are *incorporated* in the language defining the crime that the ingredients of the offense cannot be accurately and clearly set forth if the exemption is omitted, then the indictment must show that the accused does not fall within the exemptions (*Herrera, Vol. IV, p. 130, 2007 ed.*).

Note: Where what is alleged in the information is a complex crime and the evidence fails to support the charge as to one of the component offenses, the defendant can be convicted of the offense proven.

Q: What must be alleged if the crime is "committed in relation to his office?"

A: Mere allegation in the information that the offense was committed by the accused public officer in relation to his office is not sufficient. The phrase is merely "a conclusion of law", not a factual averment that would show close intimacy between the offense charged and the discharge of the accused's official duties. What is controlling is the *specific actual allegations* in the information (*Lacson v. Executive Secretary, G.R. No. 128006, Jan. 20, 1999*).

Q: When is an offense deemed committed in relation to public office?

A: An offense is deemed committed in relation to public office when the "office" is a constituent element of the offense. The test is whether the offense cannot exist without the office (*Crisostomo v. Sandiganbayan, G.R. No. 152398, Apr. 14, 2005*).

Q: What is the rule regarding the allegation as to the place of the commission of the offense?

A:

GR: The complaint or information is sufficient if it appears from the allegation that the offense was committed or some of its essential ingredients occurred some place, within the territorial jurisdiction of the court.

XPN: When the place of commission is an essential element of the offense, the place of the commission must be alleged with particularity (*e.g.* trespass to dwelling, destructive arson, robbery in an inhabited house) (*Sec. 10, Rule 110*).

8. DUPLICITY OF OFFENSES; EXCEPTION

Q: What does duplicity of offenses means?

A: Duplicity of Offense in an information or complaint means the joinder of two or more SEPARATE and DISTINCT or DIFFERENT offenses in one and the same information or complaint.

Q: What is the "duplicity rule"?

A:

GR: A complaint or information must charge only one offense.



XPNs:

1. Complex crimes;
2. Special complex crimes;
3. Continuous crimes or delicto continuado;
4. Crimes susceptible of being committed in various modes;
5. Crimes of which another offenses is an ingredient

Q: What is the remedy in case of duplicity of offense?

A: Should there be duplicity of offense in the information unless a single punishment for various offenses is prescribed, the accused must move for the quashal of the same *before* arraignment (*Sec. 3, Rule 117*). Otherwise, he is deemed to have waived the objection and may be found guilty of as many offenses as those charged and proved during the trial (*Sec. 3, Rule 120*).

RATIO: The State should not heap upon the defendant two or more charges which might confuse him in his defense.

Q: Is Splitting of case allowed?

A: NO. A defendant should not be harassed with various prosecution based upon the same act by splitting the same into various charges, all emanating from the same law violated when the prosecution could easily and well embody them in a single information (*People v. Silva, 4 SCRA 95*)

Q: What is the Principle of Absorption?

A: Acts committed in furtherance of rebellion though crimes in themselves are deemed absorbed in the single crime of rebellion. The test is whether or not the act was done in furtherance of a political end. The political motive of the act should be conclusively demonstrated (*Enrile v. Salazar GR NO 92163, June 5, 1990*)

9. AMENDMENT OR SUBSTITUTION OF COMPLAINT OR INFORMATION

Note: Section 14 applies only to original case and not to appealed case.

Q: What may be amended?

A: Only valid information may be amended. An information filed before the effectivity of the law punishing the offense may not be amended after the law had come into effect (*Herrera, Vol. IV, p. 162, 2007 ed.*).

Q: What constitutes formal amendment?

A: Where:

1. it neither affects nor alters the nature of the offense charged; or
2. the charge does not deprive the accused of a fair opportunity to present his defense; or
3. It does not involve a change in the basic theory of the prosecution.

Q: When is there an amendment in substance?

A: There is an amendment in substance where it covers matters involving the recital of facts constituting the offense charged and determinative of the jurisdiction of the court. (*Almeda v. Villaluz, GR No. L- 31665, August 6, 1975*)

Q: What are the kinds of amendment?

A:

1. *BEFORE THE PLEA*

GR: any amendment formal or substantial, before the accused enters his plea may be done with leave of court

XPN: any amendment before plea which downgrades the nature of the offense charged in or excludes any accused from the complaint or information can be made only:

- a. Upon motion of the prosecutor;
- b. With notice to the offended party; and
- c. With LEAVE of COURT

2. *AFTER THE PLEA*- covers only formal amendments provided:

- a. Leave of court is obtained;
- b. Such amendment is not prejudicial to the rights of the accused.

EXCEPT when a fact supervenes which changes the nature of the crime charged in the information or upgrades it to a higher crime, in which case, there is a need for another arraignment of the accused under the amended information.

Q: What steps should be taken by the prosecution so that amended information which downgrades the nature of the offense may be validly made? Why?

A: The prosecution should file a motion for leave of court with notice to the offended party. This is for the protection of the interest of the offended party and to prevent possible abuse by the prosecution.

Q: What is the test in determining whether the right of the accused is prejudiced by the amendment?

A: It is when the defense of the accused under the complaint or information as it originally stood, would no longer be available after the amendment is made, and when any evidence the accused might have, would be inapplicable to the complaint or information as amended (*People v. Montenegro G.R. No. 45772, Mar. 25, 1988*).

Q: Can the prosecutor amend the information which changes the nature of the crime after the arraignment?

A:
GR: The prosecutor can no longer amend the information after arraignment as it would prejudice the substantial rights of the accused.

XPN: When a fact *supervenes* which changes the nature of the crime charged in the information or upgrades it to a higher crime, the prosecutor, with leave of court, may amend the information to allege such supervening fact and upgrade the crime charged to the higher crime brought about by such supervening fact.

Q: When is substitution proper?

A: If it appears any time *before judgment* that a mistake has been made in charging the proper offense, the court shall dismiss the original complaint or information upon the filing of a new one charging the proper offense, provided the accused shall not be placed in double jeopardy (*Sec. 14, Rule 110*).

Q: What are the limitations to the rule on substitution?

- A:**
1. No judgment has yet been rendered;
 2. The accused cannot be convicted of the offense charged or of any other offense necessarily included therein; and
 3. The accused would not be placed in double jeopardy (*Herrera, Vol. IV, p. 176, 2007 ed.*).

Q: Distinguish amendment from substitution

A:

Amendment	Substitution
May involve either formal or substantial changes	Involves substantial change from the original charge

Amendment before the plea is entered can be effected without leave of court.	It must be with leave of court as the original information has to be dismissed.
An amendment as to form will not require another preliminary investigation and retaking of plea of the accused.	Substitution of the information entails another preliminary investigation and plea to the new information.
An amended information refers to the same offense charged in the original information or to an offense which necessarily includes or is necessarily included in the original charge, hence substantial amendments to the information after the plea has been taken cannot be made over the objection of the accused, for if the original would be withdrawn, the accused could invoke double jeopardy.	Requires or presupposes that the new information involves a different offense which does not include or is not necessarily included in the original charge; hence the accused cannot claim double jeopardy.

VARIANCE BETWEEN INDICTMENT AND PROOF (Situations Contemplated)

1. When the offense proved is less serious than, and is necessarily included in, the offense charged, in which case the defendant shall be convicted of the offense proved.
2. When the offense proved is more serious than and includes the offense charged, in which case the defendant shall be convicted of the offense charged.
3. When the offense proved is neither included in, nor does it include, the offense charged and is different therefrom, in which case the court should dismiss the action and order the filing of a new information charging the proper offense.

Note: The third situation set forth above is substitution of information under Section 14, Rule 110.

10. VENUE OF CRIMINAL ACTIONS

Q: Where should a criminal action be instituted?

A:

GR: Subject to existing laws, criminal action shall be instituted and tried in the court of the municipality or territory where the offense was committed or any of its essential ingredients occurred (*Sec. 15, Rule 110*).



XPNS:

1. *An offense was committed on a railroad train, in an aircraft, or in any other public or private vehicle in the course of trip* – the criminal action may be instituted and tried in the court of any municipality or territory where such train, aircraft or other vehicle passed during such trip, including the place of departure and arrival;
2. *Where the offense is committed on board a vessel on its voyage* – the criminal action may be instituted and tried in the proper court of the first port of entry or of any municipality or territory through which the vessel passed during such voyage subject to the generally accepted principles of international law;
3. *Felonies under Art. 2 of the RPC* – shall be cognizable by the proper court where the criminal action was first filed (*pars. b, c and d, Sec. 15*);
4. *Continuous or transitory crimes* – such offenses may be tried by the court of any jurisdiction wherever the offender may be found, but the complainant should allege that the offense was committed within the jurisdiction of the court (*Herrera, Vol. IV, p. 184, 2007 ed.*).
5. *Piracy* – the venue of piracy, unlike all other crimes, has no territorial limits. It is triable anywhere;
6. *Libel* – the action may be instituted at the election of the offended or suing party in the municipality or city where:
 - a. the libellous article is printed and first published;
 - b. If one of the offended parties is a private individual, where said private individual actually resides at the time of the commission of the offense;
 - c. If the offended party is a public official, where the latter holds office at the time of the commission of the offense.
7. *B.P. 22 cases* – the criminal action shall be filed at the place where the check was dishonored or issued. In case of crossed check, the place of the depositary or the collecting bank.

11. INTERVENTION OF OFFENDED PARTY

Q: What is the rule on intervention of the offended party in the criminal action?

A:

GR: Offended party has the right to intervene by counsel in the prosecution of the criminal action,

where the civil action for the recovery of civil liability is instituted in the criminal action pursuant to Rule 111.

XPNS:

1. Where from the nature of the crime and the law defining and punishing it, NO civil liability arises in favor of the offended party; and
2. Where the offended party has waived his right to civil indemnity OR has expressly reserved his right to institute a civil action OR has already instituted said action.
3. Where the offended party has expressly reserved his right to institute a separate civil action; OR
4. Where the offended party has already instituted said action

Q: What is the remedy of the offended party in case of dismissal?

A: Where the prosecutor sought the dismissal of the criminal action or refused to institute the corresponding action or to proceed with the prosecution of the case, the offended party may

C. PROSECUTION OF CIVIL ACTION

1. RULE ON IMPLIED INSTITUTION OF CIVIL ACTION WITH CRIMINAL ACTION

Q: Does the institution of a criminal action include the civil action as well?

A:

GR: When a criminal action is instituted, the civil action for the recovery of civil liability arising from the offense shall be deemed instituted with the criminal action (*Section 1a, Rule 111*)

XPNS: When the offended party:

1. WAIVES the civil action;
2. RESERVES his right to institute a separate civil action; or
3. INSTITUTES A CIVIL ACTION PRIOR to the criminal action (*Sec. 1, Rule 111*).

PURPOSE: To prevent double recovery (*Yakult Philippines v. CA, GR No. 91856 October 5, 1990*)

Q: What civil actions are not deemed impliedly instituted in the criminal action?

A: Those which are:

1. Arising from breach of contract (*Herrera, Vol. IV, p. 217, 2007 ed.*);
2. Independent civil actions or those based on Arts. 31, 32, and 33 of the New Civil Code; and
3. Based on Art. 2176 of the New Civil Code or quasi-delict (*Herrera, Vol. IV, p. 216, 2007 ed.*).

NOTE:

1. The failure to reserve the right to file the enumerated actions does not amount to a waiver to institute a separate civil action (*Herrera, Vol. IV, p. 217, 2007 ed.*).
2. The appearance of the private prosecutor (private counsel) does not amount to a waiver of the civil action (*Herrera, Vol. IV, p. 226, 2007 ed.*).
3. They shall proceed independently of the criminal action and require only a preponderance of evidence (*Secs. 1 and 3*).

Q: When should the reservation to file a separate civil action be made?

A:

1. Before the prosecution starts to present its evidence; *and*
2. Under circumstances affording the offended party a reasonable opportunity to make such reservation (*Sec. 1 Rule 111*).

Q: Should the reservation to file a separate action be express?

A: No, jurisprudence instructs that the reservation may not be necessarily express but may be implied, which may be inferred not only from the acts of the offended party but also from acts other than those of the latter (*Herrera, Vol. IV, p. 228, 2007 ed.*).

Note: Failure of the court to pronounce judgment as to the civil liability amounts to the reservation of the right to a separate civil action (*Herrera, Vol. IV, p. 228, 2007 ed.*).

Q: What is the effect of reserving the right to file a separate civil action?

A: The prescriptive period of the civil action that was reserved shall be tolled (*Sec. 2 Rule 111*).

Q: What are the instances wherein the reservation to file a separate civil action shall not be allowed?

A:

1. Criminal action for violation of B.P. 22 [*Sec. 1, Rule 111 (b)*];

2. A claim arising from an offense which is cognizable by the Sandiganbayan (*Herrera, Vol. IV, p. 231, 2007 ed.*); and
3. Tax cases.

Q: Can the offended party in a criminal case appeal the civil aspect despite the acquittal of the accused?

A: In case the judgment is of acquittal, it shall state whether the evidence of the prosecution absolutely failed to prove the guilt of the accused or merely failed to prove his guilt beyond reasonable doubt. In either case, the judgment shall determine if the act or omission from which the civil liability might arise did not exist. (*Section 2, Rule 120*)

Q: May the offended party compromise the civil aspect of a crime?

A: Yes, provided it must be entered before or during the litigation, and not after final judgment

2. WHEN CIVIL ACTION MAY PROCEED INDEPENDENTLY

Q: When may civil action proceed independently of the criminal action?

A: The institution of an independent civil action based on Arts. 32, 33, 34 and 2176 of the Civil Code against the offender may proceed independently of the criminal case at the same time *without the suspension of either proceeding* (*Sec. 3 Rule 111*).

Note: It requires only a preponderance of evidence and the offended party is entitled only to the bigger award when the awards in the cases vary.

Recovery of civil liability under Arts. 32, 33, 34 and 2176 of the Civil Code may be prosecuted separately even without reservation (*DMPI Employees Credit Cooperative v. Velez, G.R. No. 129282, Nov. 29, 2001*).

Q: Is the consolidation of civil action and criminal action arising from the same offense allowed?

A: Yes. Before judgment on the merit is rendered in the civil action, the same may, upon motion of the offended party, be consolidated with the criminal action in the court trying the criminal action (*Sec. 2 Rule 111*).

Note: A separate civil action for collection of sum of money cannot be consolidated with cases pending before the Sandiganbayan for the latter has no jurisdiction over collection cases (*Herrera, Vol. IV, p. 231, 2007 ed.*).



Q: What is the effect of the consolidation of the civil and criminal actions with regard to the evidence in each case?

A: In cases where the consolidation is given due course, the evidence presented and admitted in the civil case shall be deemed automatically reproduced in the criminal action without prejudice to admission of additional evidence and right to cross examination (*Sec. 2*).

3. WHEN SEPARATE CIVIL ACTION IS SUSPENDED

Q: When is a separate civil action suspended?

A:

1. After the filing of the criminal action, the civil action which has been reserved cannot be instituted until final judgment has been rendered in the criminal action (*Sec. 2*);
2. If the civil action is instituted before the filing of the criminal action and the criminal action is subsequently commenced, the pending civil action shall be suspended until final judgment in the criminal action has been rendered.

XPNS:

1. In cases of independent civil actions based on Arts. 32, 33, 34 and 2176 of the Civil Code;
2. In cases where the civil action presents a prejudicial question; and
3. In cases where the civil action is consolidated with the criminal action; and
4. Where the civil action is not one intended to enforce the civil liability arising from the offense.

Q: Does the extinction of the penal action carry with it the extinction of the civil action?

A:

GR: The extinction of the penal action does not extinguish the civil action.

XPN: When there is a finding in a final judgment in the criminal action that the act or omission from which the civil liability might arise did not exist (*Sec. 2*).

Note: The civil action that is extinguished refers exclusively to civil liability arising from the crime and does not include civil actions:

1. Based on quasi-delict;
2. Based on Arts. 32, 33 and 34 of the NCC (independent civil actions); or

3. Civil obligation not based on the criminal offense (*Herrera, Vol. IV, p. 249, 2007 ed.*).

4. EFFECT OF DEATH OF THE ACCUSED OR CONVICT ON CIVIL ACTION

Q: How does the death of the accused affect the civil aspect of the case?

A: If the accused died:

1. *After arraignment and during the pendency of the criminal action*
GR: The civil liability of the accused based on the crime is extinguished.

XPN:

- a. Independent civil action based on Arts. 32, 33, 34 and 2176 of the Civil Code; and
- b. Civil liability predicated on other sources of obligations, *i.e.* law, contract, and quasi-contract, which is subsequently instituted;
2. *Before arraignment* – the offended party may file the civil action against the estate of the deceased (*Sec. 4*).
3. *Pending appeal*
 - a. *Civil liability arising from the crime* is extinguished
 - b. *Civil liability predicated from another source* survives *i.e.* civil liability arising from law, contracts, quasi-contract and quasi-delict.

Note:

1. In nos. 1 and 3(b), the civil action may be continued against the estate or legal representative of the accused after proper substitution, as the case may be (*Sec. 4*).
2. Where the civil liability survives, it may be pursued by the filing of a separate civil action unless otherwise waived, reserved or instituted prior to the institution of the criminal action (*Herrera, Vol. IV, p. 257, 2007 ed.*).

Q: What is the effect of the death of the accused after final appeal?

A: Pecuniary liabilities of the accused are not extinguished. Claims shall be filed against the estate of the accused (*Rule 86*).

NOTE: However, the independent civil action instituted under *Section 3* of this Rule or which thereafter is instituted to enforce liability arising from other sources of obligation may be continued against the estate or

legal representative if the accused after proper substitution, or against said estate, as the case may be.

5. PREJUDICIAL QUESTION

Q: What is a prejudicial question?

A: Prejudicial question is one which arises in a case, the resolution of which is a logical antecedent of the issue involved therein and the cognizance of which pertains to another tribunal

Q: What are the elements of a prejudicial question?

- A:**
1. The civil action must be instituted prior to the criminal action;
 2. The civil action involves an issue similar or intimately related to the issue raised in the subsequent criminal action; and
 3. The resolution of such issue determines whether or not the criminal action may proceed (Sec. 7).

Note: For the principle of prejudicial question to apply, it is essential that there be two cases involved, invariably a civil case and a criminal case. If the two cases are both civil or if they are both criminal, the principle does not apply.

The law limits a prejudicial question to a previously instituted civil action not to a subsequent one.

Q: When may prejudicial question be raised?

- A:**
1. The prejudicial question may be raised during the preliminary investigation of the offense or in court before the prosecution rests its case.
 2. The suspension of the criminal case due to a prejudicial question is only a procedural matter, and is subject to a waiver by virtue of prior acts of the accused.
 3. There is no prejudicial question where one case is administrative and the other is civil.

Note: A prejudicial question is based on a fact distinct and separate from the crime but so intimately connected with it that it determines the guilt or innocence of the accused.

Q: When do you plead a prejudicial question?

A: When the criminal action has been filed in court for trial, the petition to suspend shall be filed in the

same criminal action at any time before the prosecution rests.

Q: Where should the petition for suspension by reason of prejudicial question be filed?

- A:**
1. Office of the prosecutor; or
 2. Court where the criminal action has been filed for trial at any time before the prosecution rests (Sec. 6).

Q: Give an example of a prejudicial question.

- A:**
- a. A question of ownership in a pending civil case is a prejudicial question justifying the suspension of the criminal case for violation of the Anti-Squatting Law (*Apa v. Fernandez, G.R. No. 112318, Mar. 20, 1995*).
 - b. Civil action involving title to property is prejudicial to criminal action for damages to said property (*Herrera, Vol. IV, p. 265, 2007 ed.*).

Note: For the principle of prejudicial question to apply, it is essential that there be two cases involved invariably a civil case and a criminal case. If the two cases are both civil or if they are both criminal, the principle finds no application.

The law limits a prejudicial question to a PREVIOUSLY INSTITUTED civil action not to a subsequent one.

Q: Give examples which are not considered prejudicial questions.

- A:**
1. Where the outcome of the civil case is not determinative of the guilt or innocence of the respondent in the criminal case (*People v. Delizo, G.R. No. 141624, Aug. 17, 2004*) e.g. award of damages in favor of the accused;
 2. A civil action instituted to resolve whether the designation of certain persons where in accordance with law is not a prejudicial question in a criminal case for violation of the anti-graft law (*Tuanda v. Sandiganbayan, G.R. No. 110544, Oct. 17, 1995*); or
 3. A civil action for replevin is not prejudicial to theft (*Ramirez v. Jimenez, 1 CA rep. 143*) (*Herrera, Vol. IV, p. 270, 2007 ed.*).
 4. An action for declaration of nullity of a second marriage is not a prejudicial question to the criminal prosecution of



bigamy (*Beltran v. People*, G.R. No. 137567, June 26, 2000).

Note: The plain reading of the of law (Art. 349, RPC) would indicate that the provision penalizes the mere act of contracting a second or subsequent marriage during the subsistence of a valid marriage (*Herrera*, Vol. IV, p. 269, 2007 ed.).

6. RULE ON FILING FEES IN CIVIL ACTION DEEMED INSTITUTED WITH THE CRIMINAL ACTION

Q: What are the rules regarding filing fees of civil action deemed instituted with the criminal action?

A:

1. *Actual damages*

GR: No filing fee is required.

XPN: B.P. 22 cases, wherein the amount of the filing fees shall be equivalent to the amount of the check involved.

2. *Liquidated, moral, nominal, temperate or exemplary damages* – The filing fee shall be based on the amount alleged in the complaint or information (Sec. 1).

Note: If the amount of the damages claimed is not specifically alleged in the complaint or information, but the court subsequently awards such, the filing fees based on the amount awarded shall constitute a first lien on the judgment (Sec. 1 Rule 111).

Q: What is the extent of damages that may be awarded in civil liability arising from a crime?

A:

1. Actual damages e.g. loss of earning capacity;
2. Moral damages;
3. Exemplary damages (*Herrera*, Vol. IV, p. 223, 2007 ed.);
4. Life expectancy (*People v. Villanueva*, G.R. No. 96469, Oct. 21, 1992).

Note: Attorney's fees may be awarded if:

1. Exemplary damages is awarded; or
2. Civil action is separately instituted from the criminal action (*People v. Teehankee, Jr.*, G.R. Nos. 111206-08, Oct. 6, 1995).

Q: What is the effect of the failure to plead damages in the complaint or information?

A: The offender is still liable and the offended party has the right to prove and claim for them in the criminal case, unless a waiver or reservation of the

civil action is made (*Roa v. Dela Cruz*, G.R. No. L-13134, Feb. 13, 1960).

Note: In an appeal of a criminal case the appellate court may impose additional damages or increase or decrease the amount of damages upon the accused-appellant. HOWEVER, additional penalties CANNOT be imposed upon a co-accused who DID NOT APPEAL, BUT modifications of the judgment BENEFICIAL to him are considered in his favor.

Q: What is the effect of the failure to plead damages in the complaint or information?

A: The offender is still liable and the offended party has the right to prove and claim for them in the criminal case, unless a waiver or reservation of the civil action is made (*Roa v. Dela Cruz*, G.R. No. L-13134, Feb. 13, 1960).

Q: May the accused file counterclaims, cross-claims or third party complaints in a criminal proceeding?

A: No. Counterclaims, cross claims, third party complaints are no longer allowed in a criminal proceeding. Any claim which could have been the subject thereof may be litigated in a separate civil action.

Reasons:

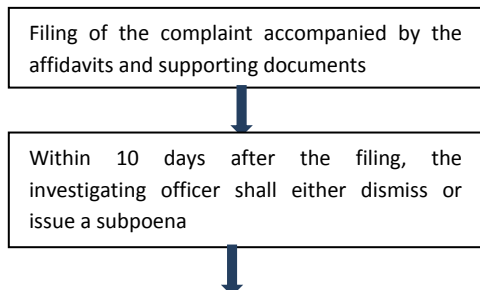
1. The counterclaim of the accused will unnecessarily complicate and confuse the criminal proceedings;
2. The trial court should confine itself to the criminal aspect and the possible civil liability of the accused arising out of the crime.

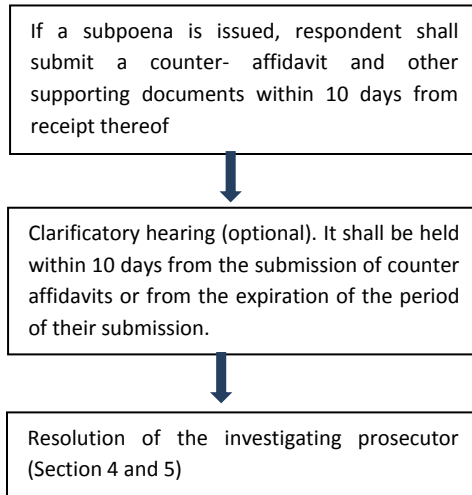
D. PRELIMINARY INVESTIGATION

Note: This rule has been partially amended by AM 05-8-26. The amendments took effect on October 3, 2005. The conduct of preliminary investigation has been removed from judges of the first level courts.

Q: What is the procedure for conducting preliminary investigation?

A:





1. Filing of the complaint

A complaint shall be filed before the investigating officer. This complaint shall be accompanied by

- a. The affidavits of the complainant;
- b. The affidavits of his witnesses; and
- c. Other supporting documents that would establish probable cause (Sec. 3(a) Rule 112).

Note: It shall contain the address of the respondent.

The affidavits that shall accompany the complaint shall be subscribed and sworn to before:

- a. Any prosecutor;
- b. Before any government official authorized to administer oaths; or
- c. In the absence or unavailability of the abovementioned, the affidavits may be subscribed and sworn to before a notary public.

Note: The officer or notary public before whom the affidavits were subscribed and sworn to must certify that he personally examined the affiants and that he is satisfied that they voluntarily executed and understood their affidavits (Sec. 3(a) Rule 112).

2. Dismissal or issuance of subpoena

From the filing of the complaint, the investigating officer has ten (10) days within which to decide on which of the following options to take:

- a. To dismiss the complaint if he finds no ground to conduct the investigation; or
- b. To issue a subpoena in case he finds the need to continue with the investigation, in which case the subpoena shall be accompanied with the complaint and its supporting affidavits and documents (Sec. 3(b))

3. Filing of counter-affidavit

The respondent who received the subpoena, the complaint, affidavits and other supporting documents, is not allowed to file a motion to dismiss.

Instead, within 10 days from receipt of subpoena, he is required to submit his counter-affidavit, the affidavits of his witnesses and the supporting documents relied upon for his defense (Sec. 3(c) Rule 112)

Note: The respondent is not allowed to file a motion to dismiss. Instead, he must file a counter-affidavit.

Despite the subpoena, if the respondent does not submit his counter-affidavit within the ten-day period granted him, the investigating officer shall resolve the complaint based on the evidence presented by the complainant. The same rule shall apply in case the respondent cannot be subpoenaed (Sec. 3(d) Rule 112).

GR: In preliminary investigation, a motion to dismiss is not an accepted pleading for it merely alleges the innocence of the respondent without rebutting or repudiating the evidence of the complainant.

XPN: When it contains countervailing evidence or defenses and evidence which rebuts or repudiates the charges; in which case it will be treated as a counter-affidavit.



Note: If one files a motion to dismiss and he only asserts that the case should be dismissed, then the motion to dismiss is a mere scrap of paper. If the respondent does not later on submit a counter-affidavit, it will constitute a waiver on his part to file a counter-affidavit.

4. Clarificatory hearing, if necessary

Within ten days from the submission of the counter-affidavit, other affidavits and documents filed by the respondent, a hearing may be set by the investigating officer, only if there are facts and issues to be clarified either from a party or a witness. The parties do not have the right to examine or cross-examine each other or the witnesses. If they have questions to ask, they shall submit the questions to the investigating officer who shall ask the questions (*Sec. 3(e)*)

Note: Parties are not allowed to cross examine the witnesses during the clarificatory proceeding, only the prosecutor can ask questions from any of the witnesses during the *clarificatory proceeding* to clarify some gray areas in the affidavit or counter affidavit. However, the parties and their lawyers are not precluded from submitting questions to the prosecutor who may ask such questions at his discretion. (*Paderanga v. Drilon, G.R. No. 96080, Apr. 19, 1991*).

5. Resolution of the investigating officer

Within ten days from the termination of the investigation, the investigating prosecutor shall determine whether or not there is sufficient ground to hold the respondent for trial (*Sec. 3(f)*)

If the investigating officer finds cause to hold the respondent for trial, he shall prepare the resolution and information. Otherwise, he shall recommend the dismissal of the complaint (*Sec. 4*)

The information shall contain a certification by the investigating officer under oath in which he shall certify the following:

- a. That he, or as shown by the record, an authorized officer, has personally examined the complainant and his witnesses;

- b. That there is reasonable ground to believe that a crime has been committed;
- c. That the accused is probably guilty thereof
- d. That the accused was informed of the complaint and of the evidence submitted against him; and
- e. That he was given an opportunity to submit controverting evidence (*Sec. 4 Rule 112*)

Within five days from his resolution, he shall forward the record of the case to the provincial or city prosecutor or chief state prosecutor, or to the Ombudsman or his deputy in cases of offenses cognizable by the Sandiganbayan in the exercise of its original jurisdiction. They shall act on the resolution within ten days from their receipt thereof and shall immediately inform the parties of such action (*Sec. 4 Rule 112*).

Q: What is the difference between preliminary investigation conducted by the prosecutor and one conducted by the judge?

A: The prosecutor is not bound by the designation of the offense in the complaint. After preliminary investigation, he may file any case as warranted by the facts.

The judge cannot change the charge in the complaint but must make a finding on whether or not the crime charged has been committed.

Q: Who are the officers authorized to conduct preliminary investigation?

A:

1. Provincial or city prosecutors and their assistants;
2. National and Regional State Prosecutors; and
3. Other officers as may be authorized by law (COMELEC, PCGG, Ombudsman)

Note: Their authority to conduct preliminary investigation shall include all crimes cognizable by the proper court in their respective territorial jurisdictions (*Sec. 2, as amended by AM 05-8-26-SC, Oct. 3, 2005*).

Q: What is the extent of the authority of the Ombudsman in the conduct of preliminary investigation?

A: The power to investigate and to prosecute granted to the Ombudsman is plenary and unqualified. It pertains to any act or omission of any public officer or employee when such act or omission appears to be illegal, unjust, improper or inefficient. The law does not make a distinction between cases cognizable by the Sandiganbayan and those cognizable by the regular courts (*Office of the Ombudsman v. Brevia, G.R. No. 145938, Feb. 10, 2006*).

Note: This however does not include administrative cases of court personnel because the 1987 Constitution vests in the SC administrative supervision over all courts and court personnel.

Q: May prosecutors conduct preliminary investigation of offenses falling within the original jurisdiction of the Sandiganbayan?

A: No, the Ombudsman has primary authority to investigate and exclusive authority to file and prosecute Sandiganbayan cases (*Ledesma v. CA, G.R. 161629, July 29, 2005*).

The Ombudsman is authorized to take over at any stage, from any investigatory agency of the government, the investigation of such cases (*Sec. 15, R.A. 6770*).

Note: A prosecutor however has shared authority to investigate and prosecute Ombudsman cases not cognizable by the Sandiganbayan (*Herrera, Vol. IV, p. 287, 2007 ed.*)

Q: Who may conduct preliminary investigation of election cases?

A: The Commission on Elections is vested the power to conduct preliminary investigations; it may deputize other prosecuting arms of the government to conduct preliminary investigation and prosecute offenses (*People v. Basilla, G.R. No. 83938-40, Nov. 6, 1989*).

1. NATURE OF THE RIGHT TO PRELIMINARY INVESTIGATION

Note: Rule 112 pertains to preliminary investigation conducted by the prosecutor

Q: What is preliminary investigation?

A: It is an inquiry or proceeding to determine whether there is sufficient ground to engender a well-founded belief that a crime has been

committed and the respondent is probably guilty thereof, and should be held for trial (*Sec. 1*).

Q: What is the nature of the right of preliminary investigation?

A: It is merely inquisitorial and a means of determining the persons who may be reasonably charged with a crime. It is not a trial of the case on the merits (*Herrera, Vol. IV, p. 273, 2007 ed.*)

Note: It does not place the person against whom it is taken in jeopardy.

Q: What is the difference between the preliminary investigation conducted by the prosecutor and the preliminary investigation conducted by the judge?

A:

The preliminary investigation conducted by the prosecutor is EXECUTIVE in nature, it is for the purpose of determining whether or not there exist sufficient ground for the filing of information;

The preliminary investigation conducted by the judge which is properly called PRELIMINARY EXAMINATION is for the determination of probable cause for the issuance of warrant of arrest. (*P/Supt. Cruz v. Judge Areola, A.M. No. RTJ-01-1642, March 6, 2002*)

Q: Does the lack of preliminary investigation affect the court's jurisdiction?

A: Absence of preliminary investigation *does not* affect the jurisdiction of the court but merely the regularity of the proceedings (*People v. De Asis, G.R. No. 105581, Dec. 7, 1993*).

Q: Is preliminary investigation considered part of the trial?

A: No, it is not part of the trial of the criminal action in court. Nor is its record part of the record of the case in the RTC. The dismissal of the case by the investigator will not bar the filing of another complaint for the same offense, but if re-filed, the accused is entitled to another preliminary investigation (*US v. Marfori, G.R. No. 10905, Dec. 9, 1916*).

Q: Can the right to preliminary investigation be waived?

A: Yes, by failure to invoke the right prior to or at least at the time of plea (*People v. Gomez, G.R. No. L-29590, Sept. 30, 1982*).



Q: What are the instances wherein the right to preliminary investigation is deemed waived?

A: It shall be deemed waived by:

1. express waiver or by silence (*Herrera, Vol. IV, p. 278, 2007 ed.*);
2. failure to invoke it during arraignment (*People v. De Asis, G.R. No. 105581, Dec. 7, 1993*); and
3. consenting to be arraigned and entering a plea of not guilty without invoking the right to preliminary investigation (*People v. Bulosan, G.R. No. 58404, Apr. 15, 1988*);

Note:

1. The waiver, whether express or implied, must be in a clear and unequivocal manner (*Herrera, Vol. IV, p. 278, 2007 ed.*)
2. The right to preliminary investigation cannot be raised for the first time on appeal (*Pilapil v. Sandiganbayan, G.R. No. 101978, Apr. 7, 1993*).

Q: What are the instances wherein the right to preliminary investigation is *not* deemed waived?

A:

1. Failure to appear before the prosecutor during the clarificatory hearing or when summoned, when the right was invoked at the start of the proceeding (*Larranaga v. CA, G.R. No. 130644, Mar. 13, 1998*); or
2. When the accused filed an application for bail and was arraigned over his objection and the accused demanding that preliminary investigation be conducted (*Go v. CA, G.R. No. 101837, Feb. 11, 1992*).

Q: What is the effect if the accused raises the issue of lack of preliminary investigation before entering plea?

A: The court, instead of dismissing the information, should conduct the preliminary investigation or order the prosecutor to conduct it (*Larranaga v. CA, G.R. No. 130644, Mar. 13, 1998*).

2. PURPOSES OF PRELIMINARY INVESTIGATION

Q: What are the purposes of conducting preliminary investigation?

A:

1. For the investigating prosecutor to determine if the crime has been committed;

2. To protect the accused from inconvenience, expense and burden of defending himself in a formal trial unless probability of his guilt is first ascertained by a competent officer;
3. To secure the innocent against hasty, malicious, and oppressive prosecution and to protect him from an open and public accusation of a crime and anxiety of a public trial;
4. To protect the State from having to conduct useless and expensive trial; and
5. To determine the amount of bail, if the offense is bailable (*Herrera, Vol. IV, p. 273, 2007 ed.*).

Q: When is preliminary investigation required to be conducted?

A:

GR: Before the filing of a complaint or information for an offense where the penalty prescribed by law is imprisonment of at least 4 yrs., 2 months and 1 day.

XPN:

1. Where an information or complaint is filed pursuant to Sec. 7, Rule 112, *i.e.* the complaint or information is filed directly in court (*Sec. 1*);
2. For cases requiring preliminary investigation, when a person is lawfully arrested without a warrant provided that inquest was made in accordance with Rule 112 (*Sec. 6*).

Note: Cases falling under summary procedure or punishable with a penalty of imprisonment less than 4 yrs., 2 months and 1 day does not require preliminary investigation. See discussion on Sec. 1, Rule 110 for cases directly filed in court.

Q: What are the rights of the respondent in a preliminary investigation?

A: To:

1. submit a counter affidavit;
2. examine the evidence submitted by the complainant at his own expense; and
3. be present during the clarificatory hearing (*Sec. 3, Rule 112*).

Note: Object evidence need not to be furnished but is available for examination, copying or photographing at the expense of the requesting party (*Sec. 3, Rule 112*).

Q: Who are authorized to conduct a preliminary investigation?

A:

1. Provincial or City prosecutors and their assistants;
2. National and Regional State Prosecutors; and
3. Other officers as may be authorized by law (e.g. Ombudsman; authorized officer deputized by COMELEC for election offenses).

Q: What is the effect if lack of preliminary investigation is raised in a proceeding pending before the Sandiganbayan?

A: The proceeding will be held in abeyance and case should be remanded to the Office of the Ombudsman or the Special Prosecutor to conduct the preliminary investigation (*Ong v. Sandiganbayan*, G.R. No. 126858, Sept. 26, 2005).

Q: What is the effect of absence of preliminary investigation?

A: It does *not*:

1. become a ground for a motion to quash the complaint or information (*Sec. 3, Rule 117*);
2. affect the court's jurisdiction (*People v. De Asis*, G.R. No. 105581, Dec. 7, 1993);
3. impair the validity of the information or render it defective; and
4. justify the release of the respondent or nullify the warrant of arrest against him (*Larranaga v. CA*, G.R. No. 130644, Mar. 13, 1998).

Q: What are the instances when preliminary investigation is not required even if the offense requires a preliminary investigation?

A:

1. If a person is arrested lawfully without a warrant involving an offense which requires a preliminary investigation, *i.e.*, the penalty is at least four years, two months and one day, an information or complaint may be filed against him without need for a preliminary investigation. If he has been arrested in a place where an inquest prosecutor is available, an inquest will be conducted instead of preliminary investigation. In

the absence or unavailability of an inquest prosecutor, the complaint may be filed directly with the proper court on the basis of the affidavit of the offended party or arresting officer or person (*Sec. 7*)

2. The fact that a person was lawfully arrested without a warrant does not absolutely bar him from availing of a preliminary investigation because before the complaint or information is filed, he may ask that a preliminary examination be conducted. However, before he is granted the preliminary investigation asked for by him, he must sign a waiver of the provisions of Article 125 of the Revised Penal Code.
3. If the complaint or information has been filed without a preliminary investigation, the accused who desires a preliminary investigation, may, within five days from the time he learns of its filing, ask for a preliminary investigation (*Sec. 7*)

Note: The waiver of the provisions of Article 125 does not bar the person arrested from applying for bail and even while the preliminary investigation is pending.

3. WHO MAY CONDUCT DETERMINATION OF EXISTENCE OF PROBABLE CAUSE

Q. What is probable cause?

A: The existence of such facts and circumstances as would excite the belief, in a reasonable mind, acting on the facts within the knowledge of the prosecutor, that the person charged was guilty of the crime for which he was prosecuted.

Q: What degree of proof is necessary to warrant the filing of an information or complaint in court?

A: Probable cause. It need not be based on evidence establishing guilt beyond reasonable doubt but only such as may engender a well-founded belief that an offense has been committed and that the accused is probably guilty thereof.

Q: Who may conduct the determination of probable cause?

A: It depends

THE FISCAL OR PROSECUTOR, if the determination of probable cause is for purposes of indictment; such finding will not be disturbed by the court unless there is finding of grave abuse of discretion.

THE COURT, if the determination of probable cause is for the purposes of issuance of warrant of arrest.



4. RESOLUTION OF INVESTIGATING PROSECUTOR

Q: How does the investigating prosecutor resolve the findings after preliminary investigation?

A:

1. If he finds probable cause to hold the respondent for trial, he shall prepare a resolution and certify under oath in the information that:

a. he or an authorized has personally examined the complainant and his witnesses;

b. that there is reasonable ground to believe that a crime has been committed and that the accused is probably guilty thereof;

c. that the accused was informed of the complaint and evidences against him;

d. that he was given opportunity to submit controverting evidence

2. If he finds no probable cause, he shall recommend the dismissal of the complaint

3. Within 5 days from his resolution, he shall forward the record of the case to the provincial or city prosecutor or chief state Prosecutor of the Ombudsman. They shall act on the resolution within 10 days from receipt and shall immediately inform the parties of such action.

4. No complaint of information may be filed or dismissed by an investigating prosecutor without the prior written authority or approval of the provincial or city prosecutor or chief state prosecutor or the Ombudsman.

5. If the investigating prosecutor recommends the dismissal of the complaint, but his recommendation is disapproved by the provincial or city prosecutor or chief state prosecutor or Ombudsman on the ground that probable cause exists, the latter may either:

a. by himself, file the information; or

b. direct another assistant prosecutor to file the information without need for a new preliminary investigation.

6. The Secretary of Justice may, upon petition by a proper party or by itself, reverse or modify the resolution of the provincial or city prosecutor, the chief state prosecutor, or the ombudsman. In such a case, he shall direct the prosecutor concerned to

either file the information without need for a new preliminary investigation or to dismiss or move for its dismissal if already filed in court.

Q: Are the findings or resolution of the investigating prosecutor final?

A: No, the resolution of the investigating prosecutor is merely *recommendatory*. No complaint or information may be filed or dismissed by an investigating prosecutor without the prior written authority or approval of the provincial or city prosecutor or chief state prosecutor or the Ombudsman or his deputy (*Sec. 4*).

Q: What is the rule when the recommendation for dismissal by the investigating prosecutor is disapproved?

A: If the recommendation of the investigating prosecutor is disapproved by the provincial or city prosecutor or chief state prosecutor or the Ombudsman or his deputy on the ground that a probable cause exists, the latter, may by himself, file the information against the respondent, or direct another assistant prosecutor or state prosecutor to do so without conducting another preliminary investigation (*Sec. 4*)

Q: What is the rule when the resolution is reversed or modified by the Secretary of Justice?

A: If upon petition by a proper party or motuproprio, the Secretary of Justice reverses or modifies the resolution of the provincial or city prosecutor or chief state prosecutor, he shall direct the prosecutor concerned either to file the corresponding information without conducting another preliminary investigation, or to dismiss or move for dismissal of the complaint or information with notice to the parties (*Sec. 4*)

Q: What is the effect of the filing of a petition for review before the DOJ if the information was already filed in court?

A: Should the information be already filed in court but the accused filed a petition for review of the findings of the prosecutors with the DOJ, the court is bound to suspend the arraignment of the accused for a period not exceeding 60 days (*Sec. 11, Rule 116*).

Note: Under the present Rules, once a petition for review is filed before the DOJ after the information is filed in court, only a motion for suspension of the proceedings in view of the pendency of the petition for review before the DOJ may be filed which must be made before arraignment. The suspension of the proceedings before the court would only last for 60

days reckoned from the date of the filing of the petition for review.

Q: Are there instances where a new preliminary investigation is not necessary?

A: Yes, when:

1. amendment to information is not substantial (*Villaflor v. Vivar*, G.R. No. 134744, Jan. 16, 2001);
2. the court orders the filing of correct information involving a cognate offense (*Sy Lim v. CA*, G. R. No. L-37494, Mar. 30, 1982); and
3. if the crime originally charged is related to the amended charge such that an inquiry into one would elicit substantially the same facts that an inquiry to another would reveal (*Orquinaza v. People*, G.R. No. 165596, Nov. 15, 2005; *Herrera*, Vol. IV, p. 281, 2007 ed.)

5. REVIEW

Q: What is the remedy of the aggrieved party from the resolution of the investigating prosecutor as approved by his superior?

A: A verified petition for review within 15 days from the resolution or denial of the motion for reconsideration. The Secretary of Justice may reverse or modify the resolution.

The Secretary of Justice may also *motu proprio* reverse or modify the resolution.

The Secretary of Justice shall direct either the filing of the complaint without the need for a new preliminary investigation or move for the dismissal of the complaint (Sec. 4).

Note: The Secretary of justice may review resolutions of his subordinates in criminal cases despite the information being filed in court (*Community Rural Bank of Guimba v. Talavera*, A.M. No. RTJ-05-1909, Apr. 6, 2005).

Q: What is the remedy of an aggrieved party against the resolution of the Secretary of Justice?

A: Such resolution may be nullified in a petition for *certiorari* under Rule 65 on grounds of grave abuse of discretion resulting to lack or excess of jurisdiction (*Ching v. Sec. Of Justice*, G.R. No. 164317, Feb. 6, 2006).

Alternative Answer:

The resolution of the DOJ is appealable administratively before the Office of the President, and the decision of the latter may be appealed

before the CA pursuant to Rule 43 (*De Ocampo v. Sec. Of Justice*, G.R. No. 147392, Jan. 25, 2006).

Q: What is the remedy against the resolution of the Ombudsman?

A: The resolution of the Ombudsman may be subject of petition for review via Rule 43 before the CA or a special civil action for *certiorari* via Rule 65 before the SC.

The resolution of the Ombudsman, if the latter acted without or in excess of jurisdiction, may be nullified by a writ of *certiorari* (*Ramiscal v. Sandiganbayan*, G.R. Nos. 109727-28, Aug. 18, 2006)

When the officer conducting a conducting a preliminary investigation, i.e. the Ombudsman, acts without or in excess of authority and resolves to file an information despite the absence of probable cause, such may be nullified by a writ of *certiorari* (*Mendoza-Arce v. Office of the Ombudsman*, G.R. No. 149148, Apr. 5, 2002).

Note: In the absence of grave abuse of discretion, the court will not interfere or pass upon the findings of the Ombudsman to avoid its being hampered by innumerable petitions assailing the dismissal of the investigatory proceedings conducted by the latter (*Tejano v. Ombudsman*, G.R. No. 159190, June 30, 2005).

Q: Does the SC and CA have the power to review preliminary investigation?

A: Yes, they have the power to review the findings of prosecutors in preliminary investigations (*Social Security System v. DOJ*, G.R. No. 158131, Aug. 8, 2007).

6. WHEN WARRANT OF ARREST MAY ISSUE

CONSTITUTIONAL BASIS: No warrant of arrest should issue except upon probable cause to be determined personally by the judge after examination under oath or affirmation of the complainant and the witnesses he may produce (Section 2, Article VI, 1987 Constitution)

Q: What is preliminary examination?

A: Preliminary examination is the proceeding for the determination of the existence of probable cause for the purpose of issuing a warrant of arrest.

Q: What is a warrant of arrest?

A: A warrant of arrest is a legal process issued by a competent authority directing the arrest of a



person or persons upon the grounds stated therein (*Herrera, Vol. IV, p. 345, 2007 ed.*).

Q: When may a warrant of arrest be issued?

A:
By the RTC

1. Within 10 days from the filing of the complaint or information, the judge shall personally evaluate the resolution of the prosecutor and its supporting evidence.

2. He may immediately dismiss the case if the evidence fails to establish probable cause.

3. If he finds probable cause, he shall issue a warrant of arrest or a commitment order if the accused has already been arrested by virtue of a warrant issued by the MTC judge who conducted the preliminary investigation or if he was arrested by virtue of a lawful arrest without warrant.

4. In case of doubt on the existence of probable cause, the judge may order the prosecutor to present additional evidence within 5 days from notice and the issue must be resolved within 30 days from the filing of the complaint or information.

By the MTC

1. If the preliminary investigation was conducted by a prosecutor, same procedure as above
2. If the preliminary investigation was conducted by the MTC judge and his findings are affirmed by the prosecutor, and the corresponding information is filed, he shall issue a warrant of arrest.

3. However, without waiting for the conclusion of the investigation, he may issue a warrant of arrest if he finds after:

1. an examination in writing and under oath of the complainant and his witnesses
2. in the form of searching questions and answers that probable cause exists AND that there is a necessity of placing the accused under immediate custody in order not to frustrate the ends of justice.

Q: When is a warrant of arrest not necessary?

A:

1. When the accused is already under detention issued by the MTC
2. When the accused was arrested by virtue of a lawful arrest without warrant
3. When the penalty is a fine only

Q: Are "John Doe" warrants valid?

A: Generally, John Doe warrants are void because they violate the constitutional provision that requires that warrants of arrest should particularly describe the person or persons to be arrested. But if there is sufficient description to identify the person to be arrested, then the warrant is valid.

Q: What are the principles governing the finding of probable cause for the issuance of a warrant of arrest?

A:

1. There is a distinction between the objective of determining probable cause by the prosecutor and by the judge. The prosecutor determines it for the purpose of filing a complaint or information, while the judge determines it for the purpose of issuing a warrant of arrest – whether there is a necessity of placing him under immediate custody in order not to frustrate the ends of justice.
2. Since their objectives are different, the judge should not rely solely on the report of the prosecutor in finding probable cause to justify the issuance of a warrant of arrest. The judge must decide independently and must have supporting evidence other than the prosecutor's bare report.
3. It is not required that the complete or entire records of the case during the preliminary investigation be submitted to and examined by the judge. He must have sufficient supporting documents upon which to make his independent judgment.

Q: How should the complaint or information be filed when the accused is lawfully arrested without warrant?

A: The complaint or information may be filed by a prosecutor without need for a preliminary investigation provided an inquest proceeding has been conducted in accordance with existing rules. In the absence of an inquest prosecutor, the offended party or any peace officer may file the complaint directly in court on the basis of the affidavit of the offended party or peace officer.

7. CASES NOT REQUIRING A PRELIMINARY INVESTIGATION

Q: What are those cases which do not require preliminary investigation?

A: Those offenses punishable by imprisonment of less than 4 years, 2 months and 1 day.

Q: What is the procedure if the complaint is filed with the prosecutor?

A: If the complaint is filed with the prosecutor involving an offense punishable by imprisonment of less than 4 years, 2 months and 1 day, the procedure in Rule 112 Section 3a shall be observed.

Q: What is the procedure if the complaint is filed with the MTC?

A: Same procedure shall be observed

Note: in all other cases cognizable by the MTC or MCTC, the issuance of the warrant of arrest is discretionary on the part of the judge. As long as he is satisfied that there is no need for the necessity of placing the accused under custody, he may issue summons instead of warrant of arrest.

Q: What are the instances when preliminary investigation is not required even if the offense requires a preliminary investigation?

A:

1. If a person is arrested lawfully without a warrant involving an offense which requires a preliminary investigation, *i.e.*, the penalty is at least four years, two months and one day, an information or complaint may be filed against him without need for a preliminary investigation. If he has been arrested in a place where an inquest prosecutor is available, an inquest will be conducted instead of preliminary investigation. In the absence or unavailability of an inquest prosecutor, the complaint may be filed directly with the proper court on the basis of the affidavit of the offended party or arresting officer or person (*Sec. 7*)
2. The fact that a person was lawfully arrested without a warrant does not absolutely bar him from availing of a preliminary investigation because before the complaint or information is filed, he may ask that a preliminary examination be conducted. However, before he is granted the preliminary investigation asked for by him, he must sign a waiver of the provisions of Article 125 of the Revised Penal Code.
3. If the complaint or information has been filed without a preliminary investigation, the accused who desires a preliminary investigation, may, within five days from the time he learns of its filing, ask for a preliminary investigation (*Sec. 7*)

Note: The waiver of the provisions of Article 125 does not bar the person arrested from applying for bail and even while the preliminary investigation is pending.

8. REMEDIES OF ACCUSED IF THERE WAS NO PRELIMINARY INVESTIGATION

Q: If there was no preliminary investigation conducted, what are the remedies of the accused?

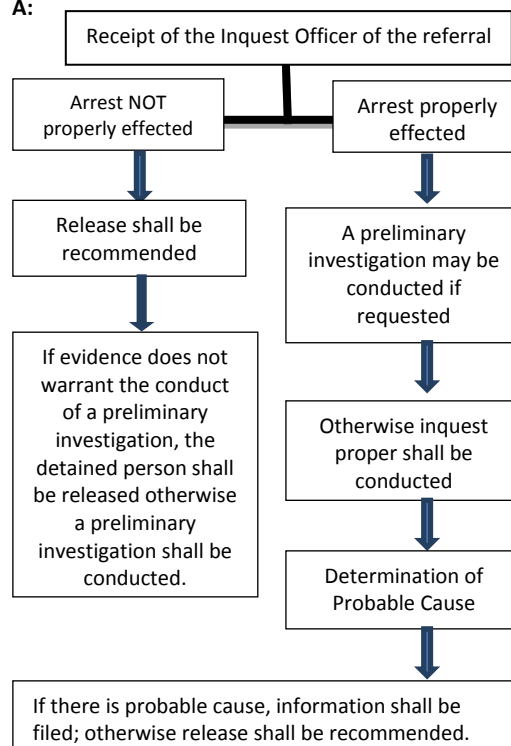
A:

1. Refuse to enter plea upon arraignment and object to further proceedings upon such ground;
2. Insist on preliminary investigation;
3. File a certiorari, if refused;
4. Raise lack of preliminary investigation as error on appeal (*US v. Banzuela, GR No. 10172, 1915*)
5. File for Prohibition (*Conde v. CFI, GR No. L-21236, October 1, 1923*)

9. INQUEST

Q: What is the procedure for conducting inquest proceeding?

A:



Q: What is an inquest?

A: It is an informal and summary investigation conducted by a public prosecutor in criminal cases involving persons arrested and detained without the benefit of a warrant of arrest issued by the



court for the purpose of determining whether or not said persons should remain under custody and correspondingly be charged in court (*Sec. 1, DOJ Circular No. 61*).

Q: When should the accused arrested without a warrant ask for a preliminary investigation?

A:

1. Before the complaint or information is filed in court, anytime before the filing provided he signs a waiver of the provision of Art. 125 of the RPC providing for the period of detention, in the presence of his counsel;
2. When the complaint or information is already filed in court, within 5 days from the time he learns of the filing (*Sec. 6*).

E. ARREST

1. ARREST, HOW MADE

Q: What is arrest?

A: Arrest is the taking of a person into custody in order that he may be bound to answer for the commission of an offense.

Q: How is arrest made?

A: It is made by an actual restraint of a person to be arrested, or by his submission to the custody of the person making the arrest (*Sec. 2*).

Note: Arrest may be made on any day, at any time of the day or night (*Sec. 6*).

Q: What is warrant of arrest?

A: It is a legal process issued by a competent authority, directing the arrest of a person or persons upon the grounds stated therein (*Herrera, Vol. IV, p. 345, 2007 ed.*).

Q: Who are persons not subject to arrest?

A:

1. A senator or member of the House of Representatives shall, in all offenses punishable by not more than 6 years imprisonment, be privileged from arrest while congress is in session (*Sec. 11, Art. VI, 1987 Constitution*); However, the privilege of a senator or congressman will not apply when the offense is:

a. Punishable by imprisonment of more than 6 years even if Congress is in session (*People v. Jalosjos, G.R. No. 132875-76, Feb. 3, 2000*)

b. If the offense is not punishable by imprisonment of not more than 6 years, the privilege does not apply even if congress is not in session.

2. Under the generally accepted principles of international law, sovereign and other chiefs of state, ambassadors, ministers plenipotentiary, ministers resident, and charges d'affaires are immune from the criminal jurisdiction of the country of their assignment and are therefore immune from arrest;
3. The arrest of duly accredited ambassadors, public ministers of a foreign country, their duly registered domestics, subject to the principle of reciprocity (*Sec. 4 and 7, RA 75*).

Q: Who may issue a warrant of arrest?

A: The 1987 Constitution speaks of "judges" which means judges of all levels. This power may not be limited much less withdrawn by Congress. The power to determine the existence of probable cause is a function of the judge and such power lies in the judge alone (*People v. Inting, G.R. No. 85866, July 24, 1990*).

2. ARREST WITHOUT WARRANT, WHEN LAWFUL

Q: What are the instances of a valid warrantless arrest?

A:

1. When in the presence of the arresting person, the person to be arrested has committed, is actually committing or is attempting to commit an offense (*in flagrante delicto arrest*).
2. When an offense has in fact been committed and the arresting person has probable cause to believe based on personal knowledge of facts and circumstances that the person to be arrested has committed it (*doctrine of hot pursuit*).
3. When the person to be arrested is a prisoner who has escaped from a penal establishment or place where he is serving final judgment or temporarily confined while his case is pending or has escaped while being transferred from one confinement to another (*Sec. 5*).

4. Where the person who has been lawfully arrested escapes or is rescued.
5. By the bondsmen for the purpose of surrendering the accused.
6. Where the accused attempt to leave the country without permission of the court.

Q: What are the elements of hot pursuit arrest?

A:

1. An offense has been committed (close proximity between the arrest and the time of commission of the crime);
2. The offense has just been committed; and
3. Probable cause based on personal knowledge of facts or circumstances that the person/s to be arrested committed it (*Herrera, Vol. IV, p. 418, 2007 ed.*)

NOTE: the probable cause justifying a warrantless arrest must, under the Rules, be based on personal knowledge of facts and circumstances on the part of the person making the arrest.

Q: The officers went to the scene of the crime where they found a piece of wood and a concrete hollow block used by the killers in bludgeoning the victim to death. A neighbor of the accused who witnessed the killing, pointed to Roberto as one of the assailants. Roberto was arrested three hours after the killing. Is the arrest a valid warrantless arrest?

A: Yes. Under the abovementioned circumstances, since the policemen had personal knowledge of the violent death of the victim and of facts indicating that Roberto and two others had killed him, they could lawfully arrest Roberto without a warrant. If they had postponed his arrest until they could obtain a warrant, he would have fled the law as his two companions did. (*People v. Gerente, 219 SCRA 756*)

Note: There is no rule on the exact proximity of the commission of the offense to the arrest. In the following instances, the Court ruled as invalid the warrantless arrest that took place:

1. 19 hours after the commission of the crime of murder (*People v. Manlulu, 231 SCRA 701*)
2. One day after the crime of robbery was committed (*People v. Del Rosario, 305 SCRA 740*)
3. Two days after a drug offense was committed (*People v. Kimura, 428 SCRA 51*)

Q: What is buy-bust operation?

A: A form of entrapment which has been repeatedly accepted to be a valid means of arresting violators

of the Dangerous Drugs Law. The violator is caught *in flagrante delicto* and the police officers conducting the operation are not only authorized but duty-bound to apprehend the violator and to search him for anything that may have been part of or used in the commission of the crime. (*People v. Juatan, G.R. No. 104378, Aug. 20, 1996*)

Q: What is required by the phrase "in his presence"?

A: It does not necessarily require that the arresting officer sees the offense, but it includes cases where the arresting officer hears the disturbance created and proceeds at once to the scene. The officer must have personal knowledge of offense just committed.

Q: What is meant by personal knowledge?

A: It means actual belief or reasonable grounds of suspicion that the person to be arrested is probably guilty of the offense based on actual facts.

Q: How can an arresting officer have personal knowledge of facts when he was not present when the crime was committed?

A: Personal knowledge has no reference to the actual commission of the crime but to *personal knowledge of facts leading to probable cause*.

Q: What is the obligation of the arresting officer after the warrantless arrest?

A: He must comply with the provisions of Art. 125 of the RPC, otherwise, he may be held criminally liable for arbitrary detention under Art. 124 of the RPC. Jurisdiction over the person arrested must be transferred to the judicial authorities. Art. 125 is a procedural requirement in case of warrantless arrest. A case must be filed in court.

The person must be delivered to the judicial authorities within the period specified in Art. 125 (Delay in the delivery of detained persons to the proper judicial authorities).

1. Light penalties – 12 hours
2. Correctional penalties – 18 hours
3. Afflictive or capital penalties – 36 hours

The accused should be brought to the prosecutor for *inquest proceedings* wherein existence of probable cause will be determined. Then the judge shall issue a *commitment order* (order issued by the judge when the person charged with a crime is already arrested or detained) and not a warrant.



3. METHOD OF ARREST

Q: What are the modes of effecting arrest?

A:

1. By actual restraint of the person to be arrested;
2. By his submission to the custody of the person making the arrest

- a. BY OFFICER WITH WARRANT
- b. BY OFFICER WITHOUT WARRANT
- c. BY PRIVATE PERSON

Q: How may arrest be effected?

A:

Method of arrest	Exception to the rule on giving information
Arrest by officer by virtue of a warrant (Sec. 7)	
The officer shall inform the person to be arrested the cause of the arrest and the fact that the warrant has been issued for his arrest. Note: The officer need not have the warrant in his possession at the time of the arrest but must show the same after the arrest, if the person arrested so requires.	1. When the person to be arrested flees; 2. When he forcibly resists before the officer has an opportunity to inform him; and 3. When the giving of such information will imperil the arrest.
Arrest by officer without a warrant (Sec. 8)	
The officer shall inform the person to be arrested of his authority and the cause of the arrest w/out a warrant	1. when the person to be arrested is engaged in the commission of an offense or is pursued immediately its commission; 2. when he has escaped, flees, or forcibly resists before the officer has an opportunity to so inform him; and 3. when the giving of such information will imperil the arrest.
Arrest by a private person (Sec. 9)	
The private person shall inform the person to be arrested of the intention to arrest him and the cause of the arrest. Note: Private person must deliver the arrested person to the nearest police station or jail, otherwise, he may be held criminally liable for illegal detention.	1. when the person to be arrested is engaged in the commission of an offense or is pursued immediately its commission; 2. when he has escaped, flees, or forcibly resists before the officer has an opportunity to so inform him; and 3. when the giving of such information will imperil the arrest.

Q: What amount of force may be used in effecting an arrest?

A: No violence or unnecessary force shall be used in making an arrest. The person arrested shall not be subject to a greater restraint than is necessary for his detention (Sec. 2).

NOTE: Reasonable amount of force may be used to effect arrest, an officer having the right to arrest an offender may use such force as necessary to effect his purpose, and to a great extent he is made the judge of the degree of force that may be properly exerted.

Q: May an officer break into a building or enclosure to make an arrest? What are the requisites?

A: Yes, provided that:

1. The person to be arrested is or reasonably believed to be in the said building;
2. The officer has announced his authority and purpose for entering therein;
3. He has requested and been denied admittance (Sec. 11).

Note: A lawful arrest may be made anywhere, even on a private property or in a house. This rule is applicable both where the arrest is under a warrant, and where there is a valid warrantless arrest.

Q: What can be confiscated from the person arrested?

A:

1. Objects subject of the offense or used or intended to be used in the commission of the crime;
2. Objects which are fruits of the crime;
3. Those which might be used by the arrested person to commit violence or to escape; and
4. Dangerous weapons and those which may be used as evidence in the case.

Note: Arrest must precede the search, the process cannot be reversed. Nevertheless, a search substantially contemporaneous with an arrest can precede the arrest at the outset of the search. Reliable information alone is not sufficient to justify a warrantless arrest under Sec. 5, Rule 113.

Q: Jose, Alberto and Romeo were charged with murder. Upon filing of the information, the RTC judge issued the warrants of arrest. Learning of the issuance of the warrants, the 3 accused jointly filed a motion for reinvestigation and for the recall of the warrants of arrest. On the date set for hearing of their motion, none of the accused showed up in the court for fear of being arrested.

The RTC judge denied their motion. Did the RTC rule correctly?

A: The RTC ruled correctly in denying the motion for reinvestigation and recall of the warrants of arrest because the accused have not surrendered their persons to the court. Jurisdiction over the person of the accused can only be obtained through arrest or voluntary surrender (*Dimatulac v. Villon, G.R. No. 127107, Oct. 12, 1998*).

Alternative Answer:

No. the court acquired jurisdiction over the person of the accused when they filed the aforesaid motion and invoked the court's authority over the case, without raising the issue of jurisdiction over their person. Their filing the motion is tantamount to voluntary submission to the court's jurisdiction and constitutes voluntary appearance. **(2008 Bar Question)**

Q: When is warrant of arrest not necessary?

A: When the:

1. Accused is already under detention;
2. Complaint or information was filed pursuant to a valid warrantless arrest;
3. complaint or information is for an offense penalized by fine only [Sec. 5 (c), Rule 112];
4. Complaint or information is filed with the MTC and it involves an offense which does not require preliminary investigation, judge may issue summons instead of a warrant of arrest if he is satisfied that there is no necessity for placing the accused under custody [Sec. 8 (b), Rule 112].

Q: May authorities resort to warrantless arrest in cases of rebellion?

A: Yes, since rebellion has been held to be a continuing crime, authorities may resort to warrantless arrests of persons suspected of rebellion, as provided under Sec. 5, Rule 113. However, this doctrine should be applied to its proper context – *i.e.*, relating to subversive armed organizations, such as the New People's Army, the avowed purpose of which is the armed overthrow of the organized and established government. Only in such instance should rebellion be considered a continuing crime (*People v. Suzuki, G.R. No. 120670, Oct. 23, 2003*).

Q: When is an accused deemed to have waived the illegality of his arrest?

A: An accused who enters his plea of not guilty and participates in the trial waives the illegality of the arrest. Objection to the illegality must be raised before arraignment, otherwise it is deemed waived, as the accused, in this case, has voluntarily submitted himself to the jurisdiction of the court. (*People v. Macam, G.R. Nos. L-91011-12, Nov. 24, 1994*)

Q: Bogart was charged with the crime of kidnapping for ransom. However, he was arrested without a warrant. Bogart raised the illegality of his arrest for the first time on appeal to the Supreme Court. Is he now barred from questioning the illegality of the arrest?

A: Yes. Bogart waived any irregularities relating to their warrantless arrest when he failed to file a motion to quash the Information on that ground, or to object to any irregularity in their arrest before they were arraigned. He is now estopped from questioning the legality of their arrest (*People v. Ejandra, G.R. No. 134203, May 27, 2004*).

Q: How may an illegal arrest be cured?

A: Illegality of warrantless arrest maybe cured by filing of information in court and the subsequent issuance by the judge of a warrant of arrest.

Q: Is an application for bail a bar to questions of illegal arrest, irregular or lack of preliminary investigation?

A: No, *provided* that he raises them before entering his plea. The court shall resolve the matter as early as possible, not later than the start of the trial on the case (*Sec. 26, Rule 114*).

Q: May an accused who has been duly charged in court question his detention by a petition for habeas corpus?

A: No. Once a person has been duly charged in court, he may no longer question his detention by petition for habeas corpus; his remedy is to quash the information and/or the warrant of arrest.

Q: Fred was arrested without a warrant. After preliminary investigation, an information was filed in court. He pleaded not guilty during arraignment. After trial on the merits, he was found guilty by the court. On appeal he claims that judgment was void due to his illegal arrest. As Solicitor General, how would you refute said claim?

A: Any objection to the illegality of the arrest of the accused without a warrant is deemed waived when he pleaded not guilty at the arraignment without



raising the question. It is too late to complain about a warrantless arrest after trial is commenced and completed and a judgment of conviction rendered against the accused (*People v. Cabiles*, G.R. No. 112035, Jan. 16, 1998).

Q: What are the consequences of illegal arrests?

A:

1. The documents, things or articles seized following the illegal arrest are inadmissible in evidence;
2. The arresting person may be held criminally liable for illegal arrest under Art. 269, RPC;
3. Arresting officer may be held civilly liable for the damages under Art. 32, NCC; and
4. He may also be held administratively liable.

4. REQUISITES OF A VALID WARRANT OF ARREST

Q: What are the essential requisites of a Valid Warrant of Arrest?

A:

1. Issued upon probable cause
2. Determined personally by the judge after examination after oath of the complainant and the witnesses he may produce
3. The judge must personally evaluate the report of the prosecutor and the evidence adduced during the preliminary examination (*Soliven v. Makasjar* GR No L-82585, November 14, 1988)

Note: The judge is only required to personally evaluate the report and the supporting documents submitted by the fiscal during the preliminary investigation and on the basis thereof he may dismiss, issue warrant or require further affidavits (*People v. Inting*, G.R. No. 85866, July 24, 1990).

4. The warrant must particularly describe the person to be arrested;

5. In connection with specific offense or crime

Note: A warrant of arrest has NO expiry date. It remains valid until arrest is effected or warrant is lifted (*Manangan v. CFI* GR No 82760 August 30, 1990)

Q: What is the remedy for warrants improperly issued?

A: Where a warrant of arrest was improperly issued, the proper remedy is a petition to quash it, NOT a petition for habeas corpus, since the court in the latter case may only order his release but not enjoin the further prosecution or the preliminary

examination of the accused (*Alimpoos v. Court of Appeals*, GR No L-27331, July 30, 1981)

NOTE: Posting of bail does not bar one from questioning illegal arrest (*Section 26, Rule 114*)

5. DETERMINATION OF PROBABLE CAUSE FOR ISSUANCE OF WARRANT OF ARREST

Q: Who determines probable cause for the issuance of warrant of arrest?

A: The determination of probable cause for the warrant of arrest is made by the judge

6. DISTINGUISH PROBABLE CAUSE OF FISCAL FROM THAT OF A JUDGE

Q: Who may conduct the determination of probable cause?

A:

FISCAL, for the purpose of either filing an information in court or dismissing the charges against the respondent, which is an executive function; such finding will not be disturbed by the court unless there is finding of grave abuse of discretion.

THE COURT, if the determination of probable cause is for the purposes of issuance of warrant of arrest. The determination by the judge of probable cause begins only after the prosecutor has filed the information in court and the latter's determination of probable cause is for the purpose of issuing an arrest warrant against the accused, which is judicial function (*People vs. CA*, 301 SCRA 475).

Q: Distinguish the probable cause as determined by a fiscal from that of a judge?

A:

Probable Cause as determined by the Prosecutor	Probable Cause as determined by the Judge
For the filing of an information in court	For the issuance of warrant
Executive function	Judicial function
<i>Basis:</i> reasonable ground to believe that a crime has been committed	<i>Basis:</i> the report and the supporting documents submitted by the fiscal during the preliminary investigation and the supporting affidavits that may be required to be submitted.

Note: The determination of probable cause by the prosecutor is for a purpose different from that which is

to be made by the judge. Whether there is reasonable ground to believe that the accused is guilty of the offense charged and should be held for trial is what the prosecutor passes upon. The judge, on the other hand, determines whether a warrant of arrest should be issued against the accused, i.e., whether there is a necessity for placing him under immediate custody in order not to frustrate the ends of justice. (*P/Supt. Cruz v. Judge Areola, A.M. No. RTJ-01-1642, March 6, 2002*)

Q: When may a judge issue a warrant of arrest?

A: When probable cause exists,

1. Upon the filing of information by the prosecutor; or
2. Upon application of a peace officer.

F. BAIL

1. NATURE

Q: What is bail?

A: Under the Rules of Court it is the security given for the release of a person in custody of the law, furnished by him or a bondsman, to guarantee his appearance before any court as required under the conditions prescribed under the rules (*Sec. 1, Rule 114*).

Q: What is the nature of the right to bail?

A: The right to bail is a constitutional right which flows from the presumption of innocence in favor of every accused who should not be subjected to the loss of freedom. Thus, the right to bail only accrues when a person is arrested or deprived of his liberty. The right to bail presupposes that the accused is under legal custody (*Paderanga v. Court of Appeals, 247 ACRS 741*)

Q: What is the nature of bail proceedings?

A: The hearing of an application for bail should be summary or otherwise in the discretion of the court.

By 'summary hearing' is meant such brief and speedy method of receiving and considering the evidence of guilt as is practicable and consistent with the purpose of the hearing which is merely to determine the weight of the evidence for the purpose of bail (*Ocampo v. Bernabe, 77 Phil. 55*)

Q: What are the purposes of bail?

A:

1. To relieve an accused from the rigors of imprisonment until his conviction and yet secure his

appearance at the trial (*Almeda v. Villaluz GR No L-31665, August 6, 1975*);

2. To honor the presumption of innocence until his guilt is proven beyond reasonable doubt;

3. To enable him to prepare his defense without being subjected to punishment prior to conviction

Note: Bail is available only to persons in custody of the law. A person is in custody of the law when he has been either arrested or otherwise deprived of his freedom or when he has voluntarily submitted himself to the jurisdiction of the court by surrendering to the proper authorities. (*Dinapol v. Baldado AM No 92-898, August 5, 1993*)

Q: When is bail available?

A: Bail is available only to persons in custody of the law.

Note: A person is in custody of law when he is either arrested or otherwise deprived of his freedom or when he has voluntarily submitted himself to the jurisdiction of the court by surrendering to the proper authorities (*Dinapol v. Baldado AM No. 92- 898, August 5, 1993*)

Q: May bail still be filed after final judgment?

A: Bail may not be filed once there is already a final judgment (*Sec. 24, Rule 114*).

Note: If before such finality, the accused applies for probation, he may be allowed temporary liberty under his bail. In no case shall bail be allowed after the accused has commenced to serve sentence.

Q: May prosecution witness be required to post bail?

A: Yes. A prosecution witness may be required to post bail to ensure his appearance at the trial of the case where:

1. There is substitution of information (*Section 4, Rule 119*); and
2. Where the court believes that a material witness may not appear at the trial (*Section 14, Rule 119*)

Q: What are the forms of bail?

A:

1. Corporate surety/ Bail bond;
 - a. An obligation under seal given by the accused with one or more sureties and made payable to the proper officer with the condition to be void



upon performance by the accused of such acts as he may be legally required to perform;

- b. The accused goes to an authorized bonding company and he will pay a premium for the service which is a percentage of the total amount of bail. The bonding company will then go to the court and execute an undertaking, or "security bond" in the amount of the bail bond in behalf of the accused, that if the accused is needed, the bonding company will bring him before the court;
- c. If the accused jumps bail, the bond will be cancelled and the bonding company will be given sufficient time to locate the whereabouts of the accused who posted bail but later on jumps bail. Notice to bonding company is notice to the accused. Notice is usually sent to the bonding company in order to produce the body of the accused.

Note: Liability of surety/bondsman covers all three stages:

- i. trial
- ii. promulgation
- iii. execution of sentence

2. Property bond;

- a. The title of the property will be used as security for the provisional liberty of the accused which shall constitute a lien over the property;
- b. The accused shall cause the annotation of the lien within 10 days after approval of the bond before the:
 - i. Registry of Deeds if the property is registered; or
 - ii. Registration Book in the Registry of Deeds of the place where the land lies *and* before the provincial, city or municipal assessor on the corresponding tax declaration if property is not registered (*Sec. 11*);
- c. The person who undertakes the conditions of a regular bond will be the custodian of the accused during the time that he is under provisional liberty.]

Note: In all cases, the surety of properties must be worth the amount specified in his

own undertaking over and above all just debts, obligations and properties exempt from execution (*Sec. 12*).

No bail shall be approved unless the surety is qualified (*Sec. 13*).

3. Cash deposit/ Cash bond;

- a. It is the deposited by the accused himself or any person acting in his behalf;
- b. Cash shall be in the amount fixed by the court or recommended by the prosecutor who investigated the case;
- c. It is to be deposited before the:
 - i. Nearest collector of internal revenue;
 - ii. Provincial, city or municipal treasurer; or
 - iii. Clerk of court where the case is pending;
- d. No further order from the court is necessary for the release of the accused if the conditions prescribed were complied with (*Sec. 14*);
- e. If the accused does not appear when required, the whole amount of the cash bond will be forfeited in favor of the government and the accused will now be arrested.

4. Recognizance

- a. An obligation of record, entered into before some court or magistrate duly authorized to take it with the condition to do some particular act. It is an undertaking of a disinterested person with high credibility wherein he will execute an affidavit of recognizance to the effect that when the presence of the accused is required in court, the custodian will bring him to that court.
- b. This is allowed for *light felonies only*.

Note: If the accused does not appear despite notice to the custodian, or the person who executed the recognizance does not produce the accused, he may be cited for contempt of court. This is the remedy because no money is involved in recognizance.

BAIL BOND	RECOGNIZANCE
An obligation under seal given by the accused with one or more	An obligation of record entered into before some court or magistrate duly

sureties, and made payable to the proper officer with the condition to be void upon performance by the accused of such acts as he may legally be required to perform.	authorized to take it with the condition to do some particular act, the most usual condition in criminal cases being the appearance of the accused for trial.
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Q: Where should bail be filed?

A:

1. In the court where the case is pending; or
2. In the absence or unavailability of the judge thereof, with any RTC judge, MTC judge, or MCTC judge in the province, city, or municipality.
3. If the accused is arrested in a province, city, or municipality other than where the case is pending, bail may also be filed with any RTC of said place, or if no judge thereof is available, with any MTC judge, MCTC therein.
4. Any person in custody who is not yet charged in court may apply for bail with any court in the province, city, or municipality where he is held (*Sec. 17*).

Note: Where the grant of bail is a matter of *discretion*, or the accused seeks to be released on recognizance, the application may only be filed in the court where the case is pending, whether on preliminary investigation, trial, or on appeal.

When bail is filed with a court other than where the case is pending, the judge who accepted the bail shall forward it, together with the order of release and other supporting papers, to the court where the case is pending (*Sec. 19*).

Q: Is hearing required for the grant of bail?

A: YES, In all cases whether the bail is a matter of right or discretion a hearing is required.

Q: If an information was filed in the RTC Manila charging Mike with homicide and he was arrested in Quezon City, in what court or courts may he apply for bail? Explain.

A: Mike may apply for bail in RTC Manila where the information was filed or in the RTC Quezon City where he was arrested, or if no judge thereof is available, with any MTC judge or MCTC judge therein.

Q: Is bail available during preliminary investigation?

A: Yes, when a person lawfully arrested without a warrant asks for preliminary investigation before the complaint or information is filed in court, he may apply for bail (*Sec. 6, Rule 112*).

Q: Is arraignment required before the court grants bail?

A: NO, for the following reasons:

1. The trial court could ensure the presence of the accused at the arraignment precisely by granting bail and ordering his presence at any stage of the proceedings (*Section 2b, Rule 114*); and
2. The accused would be placed in a position where he has to choose between filing a motion to quash and thus delay his release on bail, and foregoing the filing of a motion to quash so that he can be arraigned at once and thereafter be released on bail (*Lavides v. Court of Appeals GR No. 129670, February 1, 2000*).

Note: When bail is a matter of right, an accused may apply for and be granted bail even prior to arraignment. An application for bail in a case involving an offense punishable by *reclusion perpetua* to death may also be heard even before an accused is arraigned. Further, if the court finds in such case that the accused is entitled to bail because the evidence against him is not strong, he may be granted provisional liberty even prior to arraignment; for in such a situation, bail would be "authorized" under the circumstances (*Serapio v. Sandiganbayan, G.R. Nos. 148468, 148769 & 149116, Jan. 28, 2003*).

Q: What are the conditions or requirements of bail?

A:

1. The undertaking shall be effective upon approval, and unless cancelled, shall remain in force at all stages of the case until promulgation of the judgment of the court, irrespective of whether the case was originally filed in or appealed to it.
2. The accused shall appear before the proper courts whenever so required by the court or these rules.
3. The failure of the accused to appear at the trial without justification despite due notice shall be deemed a waiver of his right to be present thereat. In such case, the trial may proceed in absentia.
4. The bondsman shall surrender the accused to court for execution of the final judgment (*Sec. 2, Rule 114*).



Note: No additional conditions may be imposed. However, when the court finds that there is likelihood of the accused jumping bail or committing other harm to the citizenry is feared, the court may grant other conditions in granting bail (*Almeda v. Villaluz, G.R. No. L-31665, Aug. 6, 1975*).

Q: What are the guidelines regarding the effectivity of bail?

A: The Supreme Court *en banc* laid the following policies concerning the effectivity of the bail of the accused:

1. When the accused is charged with an offense which is punishable by a penalty lesser than *reclusion perpetua* at the time of the commission of the offense, or the application for bail and thereafter he is convicted of a lesser offense than that charged, he may be allowed to be released on the same bail he posted, pending his appeal provided, he does not fall under any conditions of bail.
2. The same rule applies if he is charged with a capital offense but later on convicted of a lesser offense, that is, lower than that charged.
3. If on the other hand, he is convicted of that offense which was charged against him, his bail shall be cancelled and he shall thereafter be placed in confinement. Bail in these circumstances is still not a matter of right but only upon the sound discretion of the court (*Herrera, Vol. IV, p. 470, 2007 ed.*).

Q: What are the duties of the trial judge if an application for bail is filed?

A:

1. Notify the prosecutor of the hearing of the application for bail or require him to submit his recommendation (*Sec. 18, Rule 114*);
2. Conduct a hearing of the application for bail regardless of whether or not the prosecution refuses to present evidence to show that the guilt of the accused is strong for the purpose of enabling the court to exercise its sound discretion (*Secs. 7 and 8, Rule 114*);
3. Decide whether the evidence of guilt of the accused is strong based on the summary of evidence of the prosecution (*Baylon v. Sison, A.M. No. 92-7-360-0, Apr. 6, 1995*);
4. If the guilt of the accused is not strong, discharge the accused upon the approval

of the bailbond. Otherwise, petition should be denied (*Sec. 19*).

Q: Who has the burden of proof in bail applications?

A: It is the prosecution who has the burden of showing that evidence of guilt is strong at the hearing of an application for bail filed by a person who is charged for the commission of a *capital offense or offense punishable by reclusion perpetua or life imprisonment* (*Sec. 8, Rule 114*).

2. WHEN A MATTER OF RIGHT; EXCEPTIONS

Q: When is bail a matter of right?

A:

In the MTC, it is a matter of right before or after conviction, regardless of the offense.

In the RTC,

GR: it is a matter of right before conviction,

XPNs: offenses punishable by death, reclusion perpetua, or life sentence and the evidence of guilt is strong, in which case it is discretionary.

Note: The prosecution cannot adduce evidence for the denial of bail where it is a matter of right. However where the grant of bail is discretionary, the prosecution may show proof to deny the bail.

Q: Is notice of hearing required?

A: Whether bail is a matter of right or of discretion, reasonable notice of hearing is required to be given to the prosecutor or fiscal or at least he must be asked for his recommendation because in fixing the amount of bail, the judge is required to take into account a number of factors such as the applicant's character and reputation, forfeiture of other bonds or whether he is a fugitive from justice.

Hearing, however is not required where Bail is recommended by the prosecution and it is a matter of right.

Q: When the accused is entitled as a matter of right to bail, may the court refuse to grant him bail on the ground that there exists a high degree of probability that he will abscond or escape? Explain.

A: No. What the court can do is to increase the amount of bail. One of the guidelines that the judge may use in fixing a reasonable amount of bail is the probability of the accused appearing in trial. **(1999 Bar Question)**

Note: Where the offense is bailable, the mere probability that the accused will escape or if he had previously escaped while under detention does not deprive him of his right to bail. The remedy is to increase the amount of bail, provided the amount is not excessive (*Sy Guan v. Amparo, G.R. No. L-1771, Dec. 4, 1947*).

3. WHEN A MATTER OF DISCRETION

Q: When is bail a matter of discretion?

A: Bail is a matter of discretion

1. Upon conviction by the RTC of an offense not punishable by death, *reclusion perpetua* or life imprisonment;
2. If the penalty of imprisonment exceeds six (6) years but not more than 20 years, bail shall be denied upon a showing by the prosecution, with notice to the accused, of the following or other similar circumstances:
 - a. That he is a recidivist, quasi-recidivist or habitual delinquent, or has committed the crime aggravated by the circumstance of reiteration;
 - b. That he previously escaped from legal confinement, evaded sentence, or has violated the conditions of his bail without valid justification;
 - c. That he committed the offense while on probation, parole, or under conditional pardon;
 - d. That the circumstances of his case indicate the probability of flight if released on bail; or
 - e. That there is undue risk that during the pendency of the appeal, he may commit another crime (*Sec. 5*).
3. Regardless of the stage of the criminal prosecution, a person charged with a capital offense, or an offense punishable by *reclusion perpetua* or life imprisonment, when evidence of guilt is not strong (*Sec. 7*); and
4. Juvenile charged with an offense punishable by death, *reclusion perpetua* or life imprisonment evidence of guilt is strong (*Sec. 17, A.M. No. 02-1-18-SC*).

Q: What is the remedy of the accused when bail is discretionary?

A: When bail is discretionary, the remedy of the accused is to file a petition for bail. Once a petition for bail is filed, the court is mandated to set a hearing. The purpose of the hearing is to give opportunity to the prosecution to prove that the evidence of guilt is strong. If strong, bail will be denied. If weak, the bail will be granted.

Q: Where is the application for bail filed where the accused is convicted by the RTC of an offense not punishable by death, reclusion perpetua or life imprisonment?

A:

1. With the trial court despite the filing of a notice of appeal provided that it has not transmitted the original record to the appellate court;
2. With the appellate court of the decision of the trial court convicting the accused changed the nature of the offense from non-bailable to bailable.

Q: Is the right to bail available in extradition cases?

A: Yes.

1. While our extradition law does not provide for the grant of bail to an extraditee, however, there is no provision prohibiting him or her from filing a motion for bail, a right to due process under the constitution.
2. While extradition is not a criminal proceeding, it still entails a deprivation of liberty on the part of the potential extraditee and furthermore, the purpose of extradition is also the machinery of criminal law.
3. The Universal Declaration of Human Rights applies to deportation cases, hence, there is no reason why it cannot be invoked in extradition cases.
4. The main purpose of arrest and temporary detention in extradition cases is to ensure that the potential extraditee will not abscond.
5. Under the principle of *pacta sunt servanda*, the Philippines must honor the Extradition Treaty it entered into with other countries. Hence, as long as the requirements are satisfactorily met, the extraditee must not be deprived of his right to bail (*Government of Hong Kong Special Administrative Region v. Olalia, G.R. No. 153675, Apr. 19, 2007*).



Q: What is the rationale in allowing bail in extradition cases?

A: The SC held that the Philippines, along with other members of the family of nations, is committed to uphold the fundamental human rights as well as value the worth and dignity of every person (*Government of Hong Kong Special Administrative Region v. Olalia, G.R. No. 153675, Apr. 19, 2007*).

Q: What is the quantum of proof required in granting or denying bail in extradition cases?

A: The required proof of evidence is "clear and convincing evidence" and not preponderance of evidence nor proof beyond reasonable doubt (*Government of Hong Kong Special Administrative Region v. Olalia, G.R. No. 153675, Apr. 19, 2007*).

Q: Who has the burden of proof in the application for bail in extradition cases?

A: The burden lies with the extraditee (*Government of Hong Kong Special Administrative Region v. Olalia, G.R. No. 153675, Apr. 19, 2007*).

Q: Is bail available on court martial offenses?

A: No. An accused military personnel triable by courts martial or those charged with a violation of the Articles of War does not enjoy the right to bail.

Q: Is bail available in deportation proceedings?

A: Yes, however bail in deportation proceedings is WHOLLY DISCRETIONARY

Q: Is a minor charged with a capital offense entitled to bail?

A: No. A juvenile charged with an offense punishable by death, *reclusion perpetua* or life imprisonment shall not be admitted to bail when evidence of guilt is strong (*Sec. 17, R.A. 9344*).

Q: What are the rules provided by law with regard to juveniles in conflict with the law with respect to bail of non-capital?

A:

1. The privileged mitigating circumstances of minority shall be considered. (*Sec. 34, R.A. 9344, Juvenile and Justice Act of 2006*)
2. Where a child is detained, the court shall order the:
 - a. release of the minor on recognizance to his/her parents and other suitable person;

- b. release of the child in conflict with the law on bail; or
- c. transfer of the minor to a youth detention home/youth rehabilitation center (*Sec. 35, R.A. 9344*).

Note: The court shall not order the detention of a child in a jail pending trial or hearing of his/her case (*Sec. 35, R.A. 9344*).

Q: What if the minor is unable to furnish bail?

A: The minor shall be, from the time of his arrest, committed to the care of the DSWD or the local rehabilitation center or upon recommendation of DSWD or other agencies authorized by the court may, in its discretion be released on recognizance (*Sec. 36, R.A. 9344*)

Q: Charged with murder Leviste was convicted with the crime of homicide and was sentenced to suffer an indeterminate penalty of six years and one day of prision mayor as minimum to 12 years and one day of reclusion temporal as maximum. Pending appeal he applied for bail, CA denied his application for bail. Petitioner's theory is that, where the penalty imposed by the trial court is more than six years but not more than 20 years and the circumstances mentioned in the third paragraph of Section 5 are absent, bail must be granted to an appellant pending appeal. In an application for bail pending appeal by an appellant sentenced to a penalty of imprisonment for more than six years, does the discretionary nature of the grant of bail pending appeal mean that bail should automatically be granted absent any of the circumstances mentioned in the third paragraph of Section 5, Rule 114 of the Rules of Court?

A: In an application for bail pending appeal by an appellant sentenced for more than six years, the discretionary nature of the grant of bail pending appeal does not mean that bail should automatically be granted absent any of the circumstances mentioned in the third paragraph of Section 5, Rule 114 of the Rules of Court (*Leviste v. CA, GR No. 189122, March 17, 2010*)

Note: The third paragraph of Section 5 of Rule 114 applies to two scenarios where the penalty imposed on the appellant applying for bail is imprisonment exceeding 6 years.

The first scenario deals with the circumstances enumerated in the said paragraph NOT being present. The second scenario contemplates the existence of AT LEAST ONE of the said circumstances.

In the first situation, bail is a matter of SOUND JUDICIAL DISCRETION. This means that, if none of the circumstances mentioned in the 3rd paragraph of Sec. 5

Rule 114 is present, the appellate court has the discretion to grant or deny bail. An application for bail pending appeal may be denied even if the bail-negating circumstances in the third paragraph of Section 5, Rule 114 are absent.

On the other hand on the second situation, the appellate court exercises a more stringent discretion, that is, to carefully ascertain whether any of the enumerated circumstances in fact exists. If it so determines, it has no other option except to deny or revoke bail pending appeal. Thus a finding that none off the said circumstances is present will not automatically result in the grant of bail. Such finding will simply authorize the court the less stringent sound discretion approach (*Leviste v. CA, GR No. 189122, March 17, 2010*).

4. HEARING OF APPLICATION FOR BAIL IN CAPITAL OFFENSES

RA 9346 An Act Prohibiting the Imposition of Death Penalty in the Philippines abolished death penalty

Q: What is a capital offense?

A: Capital offense refers to an offense which, under the law existing at the time of its commission and at the time of its application to be admitted to bail, may be punished with reclusion perpetua or life imprisonment or death.

Note: if the offense is punishable with reclusion perpetua or life imprisonment or death at the time of the commission but no longer so at the time of the application for bail, or if the offense was not yet punishable with death when the crime was committed but already so punishable at the time admission to bail was applied for, the crime is not a capital offense within the meaning of the rule.

Q: Is capital offense bailable?

A: GR: Capital offense or those punishable by reclusion perpetua, life imprisonment or death are NOT bailable when evidence of guilt is strong.

XPN: If the accused charged with the capital offense is a minor

5. GUIDELINES IN FIXING AMOUNT OF BAIL

Q: What are the guidelines in fixing the reasonable amount of bail?

A:

1. Financial ability of the accused to give bail;
2. Nature and circumstances of the offense;
3. Penalty of the offense charged;

4. Character and reputation of the accused;
5. Age and health of the accused;
6. Weight of evidence of the accused;
7. Probability of the accused to appear in trial;
8. Forfeiture of other bail;
9. The fact that the accused was a fugitive from justice when arrested; or
10. Pendency of other cases when the accused is on bail (*Sec. 9*).

Q: What is the effect of grant of bail?

A: The accused shall be released upon approval of the bail by the judge (*Sec. 19*).

Q: May the amount of bail be reduced or increased?

A: Yes, after the accused is admitted to bail, the court may, either increase or reduce its amount. When increased, the accused may be committed to custody if he does not give bail in the increased amount within a reasonable period (*Sec. 20*).

6. BAIL WHEN NOT REQUIRED

Q: What are the instances when bail is not required?

A: Instances when accused may be released on recognizance without posting bail or on reduced bail.

ON REDUCED BAIL OR ON HIS OWN RECOGNIZANCE	1. The offense charged is a violation of an ordinance, light felony, or a criminal offense the imposable penalty thereof does not exceed 6 months of imprisonment and/ or fine of P2,000 under RA 6036. 2. Where a person has been in custody for a period equal to or more than the minimum of the imposable principal penalty without application of the Indeterminate Sentence Law or any modifying circumstances, in which case the court, in its discretion may allow his release on his own recognizance. 3. Where the accused has applied for probation pending resolution of the case but no bail was filed or the accused is incapable of filing one. 4. In case of youthful offender held for physical and mental examination, trial or appeal if he is unable to furnish bail and under
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	circumstances envisage in PD 603 as amended. <i>Espiritu v. Jovellanos AM No MTJ 97-1139 (1997)</i>
UNDER THE REVISED RULES ON SUMMARY PROCEDURE	GR: NO bail XPNS: 1. When a warrant of arrest is issued for failure to appear when required by the court; 2. When the accused: a. is a recidivist; b. is a fugitive from justice; c. is charged with physical injuries; d. does not reside in the place where the violation of the law or the ordinance is committed; or he has no known residence.

7. INCREASE OR REDUCTION OF BAIL

Q: When may the court increase or reduce the amount of bail?

A:

1. After the accused is admitted to bail.
2. Upon good cause

Q: What is the remedy if the bail is increased and the accused did not give the increased amount of bail within a reasonable time?

A: When the amount of bail is increased, the accused may be committed to custody if he does not give bail in the increased amount within a reasonable period.

Note: Where the offense is bailable as a matter of right, the mere probability that the accused will escape, or even if he had previously escaped while under detention does not deprive him of his right to bail. The remedy is to INCREASE the amount of the bail, provided such amount would not be excessive. (*Sy Guan v. Amparo*, 79 Phil 670)

8. FORFEITURE AND CANCELLATION OF BAIL

Q: When is bail forfeited?

A: If the accused fails to appear in person as required, his bail shall be declared forfeited and the bondsmen within 30 days from the failure of the accused to appear in person must:

1. PRODUCE the body of their principal or give the reason for non- production; and
2. EXPLAIN why the accused did not appear before the court when required to do so

(Section 21, Rule 114)

Q: What happens if the bondsmen failed to do such requirements?

A: A judgment shall be rendered against the bondsmen, jointly and severally, for the amount of the bail.

Note: The 30 day period granted to the bondsmen to comply with the two requisites for the lifting of the order of forfeiture cannot be shortened by the court but may be extended for good cause shown.

Q: Distinguish Order of Forfeiture from Order of Cancellation.

ORDER OF FORFEITURE	ORDER OF CANCELLATION
Conditional and interlocutory. It is not appealable	Not independent of the order of forfeiture. It is a judgment ultimately determining the liability of the surety thereunder and therefore final. Execution may issue at once.

Q: When is bail cancelled?

A: Bail is cancelled:

1. Upon application of the bondsmen with due notice to the prosecutor, upon surrender of the accused or proof of his death;
2. Upon acquittal of the accused;
3. Upon dismissal of the case; or
4. Execution of judgment of conviction

Without prejudice on any liability on the bail

9. APPLICATION FOR BAIL IS NOT A BAR TO OBJECTIONS IN ILLEGAL ARREST OR IRREGULAR PRELIMINARY INVESTIGATION

Q: Is the application to bail bar to any objections in illegal arrest or irregular preliminary investigation?

A: An application for or admission to Bail shall NOT bar the accused:

1. From challenging the validity of his arrest;
2. The legality of the warrant issued thereof;
3. From assailing the regularity of questioning the absence of a preliminary investigation of the charge against him.

PROVIDED that the accused raises them before entering his plea.

NOTE: The court shall observe the matter as early as practicable, but not later than the start of the trial of the case.

10. HOLD DEPARTURE ORDER AND BUREAU OF IMMIGRATION WATCHLIST

Q: What is a Hold Departure Order?

A: A Hold Departure Order or HDO is an order issued by the Secretary of Justice or the proper RTC commanding the Commissioner of the Bureau of Immigration to prevent the departure for abroad of Filipinos and/ or aliens named therein by including them in the Bureau's Hold Departure List. (*DOJ Department Order No. 17*)

Note: The proper court may issue a hold departure order or direct the Department of Foreign Affairs to cancel the passport of the accused. This is a case of a valid restriction on a person's right to travel so that he may be dealt with in accordance with the law. (*Silverio v. Court of Appeals GR No. 94284, April 8, 1991*)

Q: Who may issue a Hold Departure Order?

A: A hold departure order (HDO) may be issued either by:

1. The Regional Trial Court pursuant to SC Circular 39-97; or

Note: SC Circular 39-97 dated June 19, 1997, "limits the authority to issue hold departure orders to the Regional Trial Courts. Considering that only the RTC is mentioned in said Circular and by applying the rule on legal hermeneutics of express mention implied exclusion, courts lower than the RTC — such as the MeTC, MTC, MTCC and MCTC — has no authority to issue hold departure orders in criminal cases. (*A.M. No. 99-9-141-MTCC November 25, 1999*)

2. By the RTC sitting as a Family Court pursuant to A.M. No. 02-11-12-SC,

Note: in which case, the court, *motu proprio* or upon application under oath, may issue ex-parte a hold departure order, addressed to the Bureau of Immigration and Deportation, directing it not to allow the departure of the child from the Philippines without the permission of the court while the petition for legal separation, annulment or declaration of nullity is going on.

3. By the Department of Justice pursuant to Department Order No. 41.

Q: When may the RTC issue a Hold Departure Order?

A: Hold-Departure Orders shall be issued only in criminal cases within the exclusive jurisdiction of

the Regional Trial Courts (*SC Circular 39-97*); upon proper motion of the party.

Q: What is the effect of the acquittal of the accused or dismissal of the case to the hold departure order issued by the RTC?

A: Whenever [a] the accused has been acquitted; or [b] the case has been dismissed, the judgment of acquittal or the order of dismissal shall include therein the cancellation of the Hold-Departure Order issued. The Court concerned shall furnish the Department of Foreign Affairs and the Bureau of Immigration with a copy each of the judgment of acquittal promulgated or the order of dismissal issued within twenty-four [24] hours from the time of promulgation/issuance and likewise through the fastest available means of transmittal.

Q: In what cases may the DOJ issue a Hold Departure Order?

A: The Secretary of Justice may issue an HDO under any of the following instances:

1. Against an accused irrespective of nationality, in criminal case falling within the jurisdiction of courts below the RTCs;

Note: If the case against the accused is pending trial, the application under oath of an interested party must be supported by: a) certified true copy of the complaint or information; and b) a certification from the Clerk of Court concerned that the criminal case is pending.

If the accused has jumped bail or has become a fugitive of justice, the application under oath of an interested party must be supported by: a) a certified true copy of the complaint or information; b) a certified true copy of the warrant or order of arrest; and c) a certification from the Clerk of Court concerned that the warrant or order of arrest was returned unserved.

2. Against an alien whose presence is required either as a defendant, respondent or a witness in a civil or labor case pending litigation, or any case before an administrative agency;

3. Against any person *motu proprio*, or upon the request of the Head of a Department of the Government, head of a constitutional body or commission; the Chief Justice of the Supreme Court for the Judiciary; the Senate President or the House Speaker for the legislature; when the adverse party is the Government or any of its agencies or instrumentalities, or in the interest of national



security, public safety or public health. (DOJ Department Circular No. 41).

Q: What is the validity of an HDO issued by the DOJ?

A: An HDO issued by the DOJ shall be valid for 5 years from the date of its issuance unless sooner terminated. (Section 4, DOJ Circular No. 41).

Q: When may an HDO issued by the DOJ be lifted or cancelled?

A: The HDO may be lifted under any of the following grounds:

1. When the validity of the HDO has already expired;
2. When the accused subject of the HDO has been allowed to leave the country during the pendency of the case, or has been acquitted of the charge, or the case in which the warrant/ order of arrest has been recalled;
3. When the civil or labor case or case before an administrative agency of the government wherein the presence of the alien subject of the HDO/ WLO has been dismissed by the court or by appropriate government agency, or the alien has been discharged as a witness therein, or the alien has been allowed to leave the country. (Section 5, DOJ Department Order No. 41).

Q: How about the HDO/WLO issued by the DOJ either motuproprio or upon request of government functionaries/ agencies, when may such be lifted?

A: Any HDO/ WLO issued by the Secretary of Justice either motuproprio or upon request of government functionaries/ agencies, when the adverse party is the Government or any of its agencies or instrumentalities, or in the interest of national security, public safety or public health, may be lifted or recalled ANYTIME if the application is favorably indorsed by the Government functionaries/ offices who requested the issuance of the HDO/ WLO. (Section 5, DOJ Department Circular No. 41)

Q: When may a Watch List Order (WLO) be issued?

A: The Secretary of Justice may issue a WLO under any of the following circumstances:

1. Against the accused, irrespective of nationality in criminal cases pending trial before the RTC or before courts below the RTCs;

2. Against the respondent, irrespective of nationality in criminal cases pending Preliminary Investigation, Petition for Review or Motion for Reconsideration BEFORE the DOJ or any of its provincial or city prosecution offices;

3. The Secretary of Justice may likewise issue a WLO against any person, either *motuproprio* upon request of any government agencies, including commissions, task forces or similar entities created by the Office of the President, pursuant to the "Anti- Trafficking of Persons Act of 2003" (RA 9208) and/ or in connection with any investigation being conducted by it, or in the interest of national security, public safety or public health. (Section 2, DOJ Department Order 41)

Q: What is the validity of a WLO?

A: A WLO issued shall be valid for sixty (60) days unless sooner terminated or extended, for a non-extendible period of not more than sixty (60) days. (Section 4, DOJ Department Order No. 41)

Q: Where should permission to leave the country be filed?

A: Permission to leave the country should be filed in the same court where the case is pending because they are in the best position to judge the propriety and implication of the same. (Santiago v. Vasquez, G.R. No. 99289-90, January 27, 1993)

Q: What is the remedy against an HDO/ WLO?

A: A WLO may be attacked by filing a motion for cancellation or by getting an Allow Departure Order from the DOJ or by filing a Motion to Lift Hold Departure Order.

Q: What is an Allow Departure Order (ADO)?

A: An Allow Departure Order is a directive that allows the traveler to leave the territorial jurisdiction of the Philippines. This is issued upon application to the Commissioner of Immigration and the appropriate government agency. (An outline of Philippine Immigration and Citizenship Laws, Volume I, Atty. Rolando P. Ledesma, page 34).

Q: When is ADO issued?

A: Any person subject of an HDO/ WLO pursuant to Department Order No. 41, who intends, for some exceptional reasons, to leave the country may, upon application under oath with the Secretary of Justice, be issued an ADO upon submission of the following requirements:

1. Affidavit stating clearly the purpose, inclusive period of the intended travel, and undertaking to immediately report to the DOJ upon return; and

2. Authority to travel or travel clearance from the court or appropriate government office where the case upon which the issued HDO/ WLO was based is pending or from the investigating prosecutor in charge of the subject case.

Q: What is the remedy of a person who is not the same person whose name appears in the HDO/ WLO?

A: Any person who is prevented from leaving the country because his/ her name appears to be the same as the one that appears in the HDO/ WLO may upon application under oath obtain a Certification to the effect that said person is not the same person whose name appears in the issued HDO/ WLO upon submission of the following requirements:

1. Affidavit of Denial;
2. Photocopy of the page of the passport bearing the personal details;
3. Latest clearance from the National Bureau of Investigation; and
4. Clearance from the court or appropriate government agency when applicable.

G. RIGHTS OF THE ACCUSED

Note: The rule enumerates the rights of a person accused of an offense which are both constitutional as well as statutory, save the right to appeal, which is purely statutory in character.

1. RIGHTS OF ACCUSED AT THE TRIAL

Q: What are the rights of the accused at the trial?

A: Right:

1. to be presumed innocent until the contrary is proved beyond reasonable doubt;
2. to be informed of the nature and the cause of the accusation against him;
3. to be present and defend in person and by counsel at every stage of the proceeding;
4. to testify as a witness in his own behalf but subject to cross- examination on matters covered by direct examination;
5. to exempt from being compelled to be a witness against himself (against self-incrimination);
6. to confront and cross examine the witnesses against him at the trial;

7. to have compulsory process issued to secure the attendance of witnesses and production of other evidence in his behalf;

8. to have speedy, impartial and public trial; and

9. to appeal on all cases allowed by law and in the manner prescribed by law (Sec. 1).

Q: What does "the right to be heard" mean?

A: It means that the accused must be given the opportunity to present his case either by way of oral or verbal arguments, or by way of pleadings.

PRESUMPTION OF INNOCENCE

Q: What is the meaning of the right of presumption of innocence?

A: The right means that the presumption must be overcome by evidence of guilt beyond reasonable doubt. Guilt beyond reasonable doubt means that there is moral certainty as to the guilt of the accused. Conviction should be based on the strength of the prosecution and not on the weakness of the defense. The significance of this is that accusation is not synonymous with guilt.

Q: What are the exceptions to the presumption of innocence?

A:

1. In cases of *self-defense*, the person invoking self defense is presumed guilty. In this case, a reverse trial will be held.
2. The legislature may enact that when certain facts have been proved, they shall be *prima facie* evidence of the existence of guilt of the accused and shift the burden of proof provided there be a rational connection between the facts proved and the ultimate fact presumed so that the inference of the one from proof of the other is not an unreasonable and arbitrary experience (*People v. Mingoa*, G.R. No. L-5371, Mar. 26, 1953).

E.g.:

- a. Unexpected flight of the accused
- b. Failure to explain possession of stolen property
- c. Failure to account funds and property of a public officer entrusted to him

Q: What is reasonable doubt?

A: It is the doubt engendered by an investigation of the whole proof and an inability, after such



investigation, to let the mind rest easy upon the certainty of guilt. Absolute certainty is not demanded by law to convict of any criminal charge but moral certainty is required as to every proposition of proof requisite to constitute the offense.

Q: What is the equipoise rule?

A: Where the evidence of the parties in a criminal case are evenly balanced, the constitutional presumption of innocence should tilt in favor of the accused who must be acquitted.

Q: What is a reverse trial?

A: A reverse trial happens if the accused admits the killing but claims self-defense. He must first establish the elements of self-defense in order to overturn the presumption that he was guilty of the offense.

RIGHT TO BE INFORMED

Q: What is meant by the accused's right to be informed?

A: The right requires that the information should state the facts and circumstances constituting the crime charged in such a way that a person of common understanding may easily comprehend and be informed of what it is about.

Q: May the right to be informed be waived?

A: The right to be informed of the nature and cause of the accusation may not be waived.

Q: Noque was convicted for the crime of selling and possessing methamphetamine hydrochloride. On appeal, Noque claimed that his conviction violated his right to be informed of the nature and cause of the accusations against him since the charges in the Information are for selling and possessing methamphetamine hydrochloride but what was established and proven was the sale and possession of ephedrine. Is the appellant's right to be informed of the nature and cause of accusation violated?

A: NO. The Information filed was for the crimes of illegal sale and illegal possession of regulated drugs. Ephedrine has been classified as a regulated drug; it is classified as the raw material of shabu. Under Sections 4 and 5, Rule 120 of the Rules of Court, an offense charged is necessarily included in the offense proved when the essential ingredients of the former constitute or form part of those constituting the latter. At any rate, a minor

variance between the information and the evidence does not alter the nature of the offense, nor does it determine or qualify the crime or penalty, so that even if a discrepancy exists, this cannot be pleaded as a ground for acquittal (*People v. Noque GR No. 175319, January 15, 2010*).

RIGHT TO BE PRESENT DURING TRIAL

Q: May the right to be present during the trial be waived?

A: Yes, by:

1. a waiver pursuant to the stipulation set forth in his bail;
2. absence of the accused without justifiable cause at the trial of which he had notice shall be considered a waiver of his right to be present thereat; and
3. if the accused jumps bail, such shall be an automatic waiver of the right to be present on all subsequent trial dates until custody over him is regained (*Sec. 1(c)*).

Note: The accused may be compelled to be present despite waiver for purposes of identification, but if the accused manifest in open court that he is indeed the accused, such shall also be considered a waiver thereof.

Q: What are the effects of waiver of the right to appear by the accused?

A:

1. It is also a waiver to present evidence;
2. Prosecution can present evidence despite the absence of the accused; and
3. The court can decide even without accused's evidence.

RIGHT TO TESTIFY AS A WITNESS

Q: Distinguish an accused as a witness from an ordinary witness.

A:

Ordinary Witness	Accused as Witness
May be compelled to take the witness stand and claim the right against self-incrimination as each question requiring an incriminating answer is asked	May altogether refuse to take the witness stand and refuse to answer any and all questions. Note: If the accused testifies in his own behalf, then he may be cross-examined as any other witness. He may not, on cross examination, refuse to answer any question on the ground that the answer will give or the evidence that he will produce would have tendency to

him.	incriminate him for the crime that he was charged. But he may refuse to answer any question incriminating him for an offense distinct from that which he is charged.
May be cross-examined as to any matter stated in the direct examination or connected therewith.	May be cross examined but only on matters covered by his direct examination. Note: If the accused refuses to be cross-examined, the testimony of the accused who testifies on his own behalf will not be given weight and will have no probative value because the prosecution will not be able to test its credibility.

Q: As counsel of an accused charged with homicide, you are convinced that he can be utilized as a State witness. What procedure will you take? Explain.

A: As counsel for the accused, I will advise my client to ask for a reinvestigation and convince the prosecutor for him to move for the discharge of my client as a State witness or the accused can apply as a State witness with the Department of Justice pursuant to R.A. 6981, the Witness Protection, Security and Benefit Act. The right to prosecute vests the prosecutor with a wide range of discretion, including what and whom to charge.

Q: What is the effect if the accused refuses to testify?

A:
GR: The silence of the accused should not be used against him.

XPN:

1. When the prosecution has already established a *prima facie* case, the accused must present proof to overturn the evidence; and
2. Defense of the accused is alibi and does not testify, the inference is that the alibi is not believable.

RIGHT AGAINST SELF-INCRIMINATION

Q: What is the scope of the right against self-incrimination?

A:
GR: The right covers only *testimonial compulsion* and not the compulsion to produce real and physical evidence using the body of the accused.

XPN: Immunity statutes such as:

1. Forfeiture of illegally obtained wealth (*R.A. 1379*)
2. Bribery and graft cases (*R.A. 749*) (*Herrera, Vol. IV, p. 563, 2007 ed.*).

Q: Distinguish use immunity from transactional immunity.

A:

Use Immunity	Transactional Immunity
Witness' compelled testimony and the fruits thereof cannot be used in subsequent prosecution of a crime against him.	Witness immune from prosecution of a crime to which his compelled testimony relates.
Witness can still be prosecuted but the compelled testimony cannot be used against him	Witness cannot be prosecuted at all

Q: Does the right against self-incrimination include the furnishing of a signature specimen?

A: Yes, because writing is not a purely mechanical act for it involves the application of intelligence and attention. If such person is asked whether the writing in a document is his or not, and he says it is not, he deemed to have waived his right. On the other hand, if the accused simply refused to answer the question inquiring about the handwriting, no waiver of the right took place (*Beltran v. Samson G.R. No. 32025, Sept. 23, 1929*).

Note: The right against self-incrimination is available not only in criminal cases but also in government proceedings, civil, administrative proceedings where there is a penal sanction involved.

Q: Is the right of the accused against self-incrimination waivable?

A: Yes. It may be waived by the failure of the accused to invoke the privilege after the incriminating question is asked and before his answer.

RIGHT TO CROSS-EXAMINATION

Q: What does the right of the accused to confront and cross-examine a witness against him contemplate?

A: Confrontation is the act of setting a witness face-to-face with the accused so that the latter may make any objection he has to the witness which must take place in the court having jurisdiction to permit the privilege of cross-examination.

In addition, the accused is entitled to have compulsory process issued to secure the



attendance of witness and production of other evidence in his behalf [Sec. 1 (g)].

Note: The main purpose of this right to confrontation is to secure the opportunity of cross-examination and the secondary purpose is to enable the judge to observe the demeanor of witness.

Q: Does the right to confrontation cover witnesses who did not appear or was not presented at the trial?

A: No, the right to confrontation applies to witnesses who appear before the court; the witness must be present for the right to confrontation to attach. What is important is that the accused is given the right to cross-examine the witness presented (*People v. Honrada, G.R. Nos. 112178-79, Apr. 21, 1995*).

Q: What is the rule with respect to the testimony of a witness who dies or becomes unavailable?

A: If the other party had the opportunity to cross-examine the witness before he died or became unavailable, the testimony may be used as evidence. However, if the other party did not have the opportunity to cross-examine before the death or unavailability of the witness, the testimony will have no probative value.

RIGHT TO COMPULSORY PROCESS

Q: What is the right to compulsory process mean?

A: This refers to the right of the accused to have a subpoena and/or subpoena duces tecum issued in his behalf in order to compel the attendance of witnesses and the production of other evidence.

Q: What is the effect if a witness refuses to testify when he is required?

A: The Court should order the witness to give bail or order his arrest, if necessary. Failure to obey a subpoena amounts to contempt of court.

RIGHT TO SPEEDY, IMPARTIAL AND PUBLIC TRIAL

Q: What are the facts to be considered to determine if the right to speedy trial has been violated?

A:

1. Length of the delay;
2. Reason for the delay;
3. The accused's assertion or non assertion of the right; and

4. Prejudice to the accused resulting from the delay.

Note: There is no violation of the right where the delay is imputable to the accused.

Q: What are the remedies available to the accused when his right to speedy trial is violated?

A:

1. Ask for the trial of the case;
2. Unreasonable delay of the trial of a criminal case as to make the detention of defendant illegal gives ground for habeas corpus as a remedy for obtaining release;
3. Mandamus proceeding to compel the dismissal of the information; or
4. Ask for the trial of the case and then move to dismiss (*Gandicela v. Lutero, G.R. No. L-4069, Mar. 5, 1951*).

Q: What is the rule regarding trial by publicity?

A: The right of the accused to a fair trial is not incompatible with free press. Pervasive publicity is not *per se* prejudicial to the right to a fair trial. To warrant the finding of prejudicial publicity, there must be allegations and proof that judges have been unduly influenced, not simply that they might be due to the barrage of publicity (*People v. Teehankee, G.R. Nos. 111206-08, Oct. 6, 1995*).

Q: Is the rule that the trial should be public absolute?

A: No. The court may bar the public in certain cases, such as when the evidence to be presented may be offensive to decency or public morals; or in rape cases, where the purpose of some persons in attending is merely to ogle at the parties.

RIGHT TO APPEAL

Q: What is the nature of the right to appeal?

A: The right to appeal from a judgment of conviction is fundamentally of statutory origin. It is not a matter of absolute right independently of constitutional or statutory provision allowing such appeal.

Q: Can the right to appeal be waived?

A:

GR: The right to appeal can be waived expressly or impliedly.

XPN: Where the death penalty is imposed, such right cannot be waived as the review of the

judgment by the CA is automatic and mandatory pursuant to Administrative Circular No. 20-2005 which is an order *directing regional trial courts to directly forward to the Court of Appeals records of criminal cases which are subject of automatic review or regular appeals.*

Note: When the accused flees, after the case has been submitted to court for decision, he will be deemed to have waived his right to appeal from the judgment rendered against him (*People v. AngGloc, G.R. No. L-48547, Oct. 31, 1941*).

RIGHT TO COUNSEL
Republic Act No. 7438

Q: Distinguish the right to counsel during trial from right to counsel during custodial investigation?

A: *Right to counsel during trial* means the right of the accused to an effective counsel. Counsel is not to prevent the accused from confessing but to defend the accused. On the other hand, *right to counsel during custodial investigation* requires the presence of competent and independent counsel who is preferably the choice of the accused. The reason for such right is that in custodial investigation, there is a danger that confessions can be exacted against the will of the accused since it is not done in public.

Q: What are the requisites for a valid custodial investigation report?

A: RA No. 7438 provides for the following requisites for a valid custodial investigation report:

1. The report shall be reduced to writing by the investigating officer;

2. If the person arrested or detained does not know how to read or write, it shall be read and adequately explained to him by his counsel or by the assisting counsel in the language or dialect known to such arrested or detained person. This is to be done before the report is signed. If this procedure is not done, the investigation report shall be null and void and of no effect whatsoever.

Q: Is the statement signed by the accused admissible if during the investigation, the assisting lawyer leaves, or comes and goes?

A: No. It is inadmissible because the lawyer should assist his client from the time the confessant answers the first question asked by the investigating officer until the signing of the extrajudicial confession (*People v. Morial, G.R. No. 129295, Aug. 15, 2001*).

Note: The right to counsel covers the period beginning from custodial investigation until rendition of judgment and even on appeal (*People v. Serzo, Jr., G.R. No. 118435, June 20, 1997*).

Q: May the right to counsel during trial be waived?

A: Yes. It can be waived when the accused voluntarily submits himself to the jurisdiction of the court and proceeds with his defense. The accused may defend himself in person only if the court is convinced that he can properly protect his rights even without the assistance of counsel. The defendant cannot raise the question of his right to have an attorney for the first time on appeal.

Q: May an accused defend himself without the assistance of counsel?

A: Yes, but only when it sufficiently appears that he can properly protect his right without the assistance of counsel [*Sec. 1(c)*].

Q: What is the rule if the accused makes an extrajudicial confession?

A: Any extrajudicial confession made shall also be in writing and signed by the person, detained or under custodial investigation in the presence of his counsel, or in the latter's absence, upon a valid waiver, and in the presence of any of the parents, older brothers and sisters, his spouse, the municipal mayor, the municipal judge, district school supervisor, or priest or minister of the gospel as chosen by him; otherwise such extrajudicial confession shall be inadmissible as evidence in any proceeding (*Sec. 2(d) RA 7438*)

Q: An affidavit was made by the accused without the presence of counsel during preliminary investigation, admitting the commission of a crime. When presented during trial as evidence, the accused objected claiming that there was a violation of his right to a competent and independent counsel. Is the accused correct?

A: No. The constitutional right to a competent and independent counsel exists only in custodial interrogations, or in-custody interrogation of accused persons. A preliminary investigation is an inquiry or a proceeding to determine whether there is sufficient ground to engender a well-founded belief that a crime has been committed, and that the respondent is probably guilty thereof and should be held for trial. Evidently, a person undergoing preliminary investigation before the public prosecutor cannot be considered as being



under custodial investigation (*People v. Ayson, G.R. No. L-28508-9, July 7, 1989*).

2. RIGHTS OF PERSONS UNDER CUSTODIAL INVESTIGATION

Q: What is custodial investigation?

A: Custodial Investigation is the stage “where the police investigation is no longer a general inquiry into an unsolved crime but has begun to focus on a particular suspect taken into custody by the police who carry out a process of interrogation that lends itself to elicit incriminating statements” (*People v. Sunga, 399 SCRA 624*).

Sec. 2(f) of RA 7438 expanded the meaning of custodial investigation. It shall include the practice of issuing an “invitation” to a person who is investigated in connection with an offense he is suspected to have committed, without prejudice to the liability of the “inviting” officer for any violation of law.

Q: When do the rights in custodial investigation attach?

A: The rights begin to operate at once as soon as the investigation ceases to be a general inquiry into an unsolved crime and direction is then aimed upon a particular suspect who has been taken into custody and to whom the police would then direct interrogatory question which tend to elicit incriminating statements (*People v. Jose Ting LanUy, G.R. No. 157399, Nov. 17, 2005*). It includes the practice of issuing an “invitation” to a person who is investigated in connection with an offense he is suspected to have committed.

Q: What is the importance of the right to counsel in custodial investigation?

A: The importance of the right to counsel is so vital that under existing law, “in the absence of any lawyer, no custodial investigation shall be conducted and the suspected person can only be detained by the investigating officer in accordance with the provisions of Art. 125 of the Revised Penal Code. (*Section 3c RA 7438*)

The purpose of providing counsel to a person under custodial investigation is to curb the uncivilized practice of extracting a confession. (*People v. Duenas, Jr. 426 SCRA 666*).

Q: What are the rights of persons under Custodial Investigation?

A:

1. The person arrested, detained, invited or under custodial investigation must be informed in a language known to and understood by him of the reason for the arrest and he must be shown the warrant of arrest, if any; every other warnings, information or communication must be in a language known to and understood by said person;

2. He must be warned that he has a right to remain silent and that any statement he makes may be used as evidence against him;

3. He must be informed that he has the right to be assisted at all times and have the presence of an independent and competent lawyer, preferably of his own choice;

4. He must be informed that if he has no lawyer or cannot afford the services of a lawyer, one will be provided for him; and that a lawyer may also be engaged by any person in his behalf, or may be appointed by the court upon petition of the person arrested or one acting in his behalf;

5. That whether or not the person arrested has a lawyer, he must be informed that no custodial investigation in any form shall be conducted except in the presence of his counsel or after a valid waiver has been made;

6. The person arrested must be informed that, at any time, he has the right to communicate or confer by the most expedient means - telephone, radio, letter or messenger - with his lawyer (either retained or appointed), any member of his immediate family, or any medical doctor, priest or minister chosen by him or by any one from his immediate family or by his counsel, or be visited by/confer with duly accredited national or international non-government organization. It shall be the responsibility of the officer to ensure that this is accomplished;

7. He must be informed that he has the right to waive any of said rights provided it is made voluntarily, knowingly and intelligently and ensure that he understood the same;

8. In addition, if the person arrested waives his right to a lawyer, he must be informed that it must be done in writing AND in the presence of counsel, otherwise, he must be warned that the waiver is void even if he insist on his waiver and chooses to speak;

9. That the person arrested must be informed that he may indicate in any manner at any time or stage of the process that he does not wish to be

questioned with warning that once he makes such indication, the police may not interrogate him if the same had not yet commenced, or the interrogation must ceased if it has already begun;

10. The person arrested must be informed that his initial waiver of his right to remain silent, the right to counsel or any of his rights does not bar him from invoking it at any time during the process, regardless of whether he may have answered some questions or volunteered some statements;

11. He must also be informed that any statement or evidence, as the case may be, obtained in violation of any of the foregoing, whether inculpatory or exculpatory, in whole or in part, shall be inadmissible in evidence (*People v. Mahinay, G.R. No. 122485, Feb. 1, 1999*).

Q: What are the requirements in order that an admission of guilt of an accused during a custodial investigation be admitted in evidence?

A: An admission of guilt during a custodial investigation is a confession. To be admissible in evidence, the confession must be voluntary, made with the assistance of competent and independent counsel, express and in writing.

H. ARRAIGNMENT AND PLEA

1. ARRAIGNMENT AND PLEA, HOW MADE

Q: What is arraignment?

A: Arraignment is the proceeding in a criminal case, whose object is to fix the identity of the accused, to inform him of the charge and to give him an opportunity to plead, or to obtain from the accused his answer, in other words, his plea to the information.

Note: Arraignment is indispensable as the means for bringing the accused into court and notifying him of the cause he has to meet. (*Borja v. Mendoza, 77 SCRA 42*)

Q: What are the options of the accused before arraignment and plea?

A: Before arraignment and plea, the accused may avail of any of the following:

a. **Bill of Particulars-** The accused may, before arraignment, move for a bill of particulars to enable him to properly plead and prepare for trial.

Note: The motion shall:

a. specify the alleged defects of the complaint or information, and shall

b. specify the details desired. (*Section 9, Rule 116*)

b. Suspension of arraignment- Upon motion, the proper party may ask for the suspension of the arraignment in the following cases:

1. That the accused appears to be suffering from an unsound mental condition which effectively renders him unable to fully understand the charge against him and to plead intelligently thereto. In such case, the court shall order his mental examination and, if necessary his confinement for such purpose;
2. That there exists a prejudicial question; and
3. There is a petition for review of the resolution of the prosecutor which is pending at either the DOJ, or of the Office of the President (*Section 11, Rule 116*)

Note: The period of suspension shall not exceed sixty (60) days counted from the filing of the petition with the reviewing office.

c. Motion to Quash – At any time before entering his plea, the accused may move to quash the complaint or information on any of the grounds under Section 3, Rule 117 in relation to Section 1 of the same rule;

d. Challenge the validity of the arrest or legality of the warrant issued or assail the regularity or question the absence of preliminary investigation of the charge otherwise the objection is deemed waived.

Q: Where is arraignment made?

A: The accused must be arraigned before the court where the complaint or information was filed or assigned for trial. (*Section 1a, Rule 116*)

Q: How is arraignment made?

A: Arraignment is made:

1. in open court where the complaint or information has been filed or assigned for trial;
2. by the judge or clerk of court;
3. By furnishing the accused with a copy of the complaint or information;
4. Reading it in a language or dialect known to the accused;
5. Asking accused whether he pleads guilty or not guilty.
6. Both arraignment and plea shall be made of record but failure to enter of record shall not affect the validity of the proceedings.

Q: When is arraignment made?

A: Under the Rules of Court, the arraignment shall be made within thirty (30) days from the date the court acquires jurisdiction over the person of the



accused, unless a shorter period is provided by a special law or a Supreme Court circular. (*Section 1g, Rule 116*).

Q: What are the instances when arraignment is held within a shorter period?

A:

1. When an accused is under preventive detention, his case should be raffled within 3 days from filing and accused shall be arraigned within 10 days from receipt by the judge of the records of the case (RA 8493 Speedy Trial Act)
2. Where the complainant is about to depart from the Philippines with no definite date of return, the accused should be arraigned without delay.
3. Cases under RA 7610 (Child Abuse Act), the trial shall be commenced within 3 days from arraignment.
4. Cases under the Dangerous Drugs Act.
5. Cases under SC AO 104-96 ie., heinous crimes, violations of the Intellectual Property Rights law, these cases must be tried continuously until terminated within 60 days from commencement of the trial and to be decided within 30 days from the submission of the case.

Q: What are the different rules on arraignment?

A:

1. Trial in absentia may be conducted only after valid arraignment.
2. Accused must personally appear during arraignment and enter his plea (counsel cannot enter plea for accused)
3. Accused is presumed to have been validly arraigned in the absence of proof to the contrary.
4. Generally, judgment is void if accused has not been validly arraigned.
5. If accused went into trial without being arraigned, subsequent arraignment will cure the error provided that the accused was able to present evidence and cross examine the witnesses of the prosecution during trial.

Note: If an information is amended in substance which changes the nature of the offense, arraignment on the amended information is MANDATORY, except if the amendment is only as to form. (*Teehankee Jr. v. Madayag GR NO 103102, March 6, 1992*)

Q: Is the presence of the accused required during arraignment?

A: The accused must be present at the arraignment and personally enter his plea. (*Section 1b, Rule 116*)

Q: Is the presence of the offended party required in arraignment?

A: The private offended party shall be required to appear in the arraignment for the following purposes:

- a. plea bargaining;
- b. determination of civil liability ;and
- c. other matters requiring his presence.

Note: in case the offended party fails to appear despite due notice, the court may allow the accused to enter a plea of guilty to a lesser offense which is necessarily included in the offense charged with the conformity of the trial prosecutor alone. (*Section 1f, Rule 116*)

Q: Accused appellant assailed his conviction because he claimed that he was not properly arraigned since he was only arraigned after the case was submitted for decision. The absence of arraignment was not objected by the appellant; it is only upon his conviction that appellant raised the issue of absence of arraignment. May arraignment be made after a case has been submitted for decision?

A: Yes. No protest was made when appellant was subsequently arraigned. The parties did not question the procedure undertaken by the trial court. The appellant's rights were not prejudiced since he has actively participated in the hearings conducted (*People v. Pangilinan 518 SCRA 358*).

Q: What is plea?

A: It pertains to the matter which the accused, on his arraignment, alleges in answer to the charge against him.

Q: What is the period to plea?

A:

1. When the accused is under preventive detention: His case shall be raffled and its records transmitted to the judge to whom the case was raffled within 3 days from the filing of the information or complaint and the accused arraigned within 10 days from the date of the raffle. The pre-trial conference of his case shall be held within 10 days after arraignment;

2. When the accused is NOT under preventive detention: Unless a shorter period is provided by special law or Supreme Court circular, the arraignment shall be held within 30 days from the date the court acquires jurisdiction over the person of the accused. The time of the pendency of a motion to quash, or for bill of particulars, or other

causes justifying suspension of the arraignment, shall be excluded in computing the period.

Q: What is the effect of a plea of guilty?

A: A plea of guilty is a judicial confession of guilt (*People v. Comendador GR No. L-38000, September 19, 1980*). It is an unconditional plea of guilt admits of the crime and all the attendant circumstances alleged in the information including the allegations of conspiracy and warrants of judgment of conviction without need of further evidence

XPN:

1. Where the plea of guilt was compelled by violence or intimidation;
2. When the accused did not fully understand the meaning and consequences of his plea;
3. Where the information is insufficient to sustain conviction of the offense charged;
4. Where the information does not charge an offense, any conviction thereunder being void;
5. Where the court has no jurisdiction.

XPN to the XPN: If what the accused would prove is an exempting circumstance, it would amount to a withdrawal of his plea of not guilty.

Note: For *non-capital offenses*, the reception of evidence is merely discretionary on the part of the court. If the information or complaint is sufficient for the judge to render judgment on a non-capital offense, he may do so. But if the case involves a *capital offense*, the reception of evidence to prove the guilt and degree of culpability of the accused is mandatory.

Q: May the plea of guilty be collaterally attacked?

A:

GR:No. A plea of guilty entered by one who is fully aware of the direct consequences, including the actual value of any commitments made to him by court, the prosecutor or his own counsel must stand.

XPN: It was induced by:

1. threats;
2. misrepresentation; or
3. improper promises as it has no proper relationship to the prosecutor's business (*People v. Villasco, G.R. No. L-4706, July 24, 1951*).

Note: It is only when the consensual character of the plea is called into question that the validity of a guilty plea may be impaired.

2. WHEN SHOULD PLEA OF NOT GUILTY BE ENTERED

Q: When should a plea of not guilty be entered?

A:

1. When the accused so pleaded;
2. When he refuses to plead;
3. Where in admitting the act charged he sets up matters of defense or with lawful justification;
4. When he enters a conditional plea of guilty;
5. Where after a plea of guilty he introduces evidence of self- defense or other exculpatory circumstances;
6. When the plea is indefinite or ambiguous.

3. WHEN MAY ACCUSED ENTER A PLEA OF GUILTY TO A LESSER OFFENSE

Q: What is plea bargaining?

A: Plea bargaining in criminal cases is a process whereby the accused and the prosecution work a mutually satisfactory disposition of the case subject to court approval. It usually involves the defendant's pleading guilty to a lesser offense or to only one or some of the counts of a multi- count indictment in return for a lighter sentence than that for the graver charge (*Daan v. Sandiganbayan GR No. 163972-77, March 28, 2008*).

Q: May the accused enter a plea of guilty to a lower offense?

A: Yes:

1. *During arraignment*
 - a. If the offended party is present, the latter must consent with the prosecutor consented plea; and
 - b. That the lesser offense is necessarily included in the offense charged.
2. *After arraignment but before trial* provided the following requisites are present:
 - a. The plea of guilty is withdrawn;
 - b. The plea of not guilty and the withdrawal of the previous guilty plea shall be made before trial;
 - c. The lesser offense is necessarily included in the offense charged; and
 - d. The plea must have the consent of the prosecutor and the offended party (*Section 2, Rule 116*)

Note: No amendment of complaint or information is necessary (*Sec. 2*).

3. *After prosecution rests* – allowed only when the prosecution does not have



sufficient evidence to establish guilt for the crime charged.

4. ACCUSED PLEAD GUILTY TO CAPITAL OFFENSE, WHAT COURT SHOULD DO

Q: What is the duty of the court after the accused pleads guilty to a capital offense?

A: When the accused pleads guilty to a capital offense, the court shall:

1. Conduct a searching inquiry into the:
 - a. Voluntariness of the plea and
 - b. Full comprehension of the consequences of the plea;
2. Require the prosecution to prove guilt and the precise degree of his culpability;
3. Ask the accused if he desires to present evidence in his behalf and allow him to do so if he desires. However, the defendant after pleading guilty may not present evidence as would exonerate him completely from criminal liability such as proof of self-defense.

Note: This procedure is mandatory, and a judge who fails to observe it commits grave abuse of discretion.

Q: Why is the presentation of evidence required after the plea of guilty?

A: To preclude any room for reasonable doubt in the mind of either the trial court or of the Supreme Court, on review as to the possibility that there might have been misunderstanding on the part of the accused as to the nature of the charges to which he pleaded guilty; and to ascertain the circumstances attendant to the commission of the crime which justify or require the exercise of greater or lesser degree of severity in the imposition of prescribed penalties. (*People v. Basa*, 51 SCRA 317)

5. SEARCHING INQUIRY

Q: What are the objectives of a searching inquiry?

A: To determine the voluntariness of the plea and whether the accused understood fully the consequence of his plea.

Q: What is the meaning of the duty of the judge to conduct a "searching inquiry"? (elements of searching inquiry)

A: In all cases, the judge must convince himself:

1. The judge must convince himself that the accused is entering the plea voluntarily and intelligently;

2. The judge must convince himself that there exists a rational basis for finding of guilt based on accused's testimony
3. Inform the accused of the exact length of imprisonment and the certainty that he will serve it in a national penitentiary

6. IMPROVIDENT PLEA

Q: What is an improvident plea?

A: It is a plea without information as to all the circumstances affecting it. It is based upon a mistaken assumption or misleading information or advice.

Q: Enumerate the instances of improvident plea.

A:

1. Plea of guilty was compelled by violence or intimidation;
2. The accused did not fully understand the meaning and consequences of his plea;
3. Insufficient information to sustain conviction of the offense charged;
4. Information does not charge an offense;
5. Court has no jurisdiction.

Q: When may an improvident plea be withdrawn?

A: The court may permit an improvident plea of guilty to be withdrawn at any time before the judgment of conviction *becomes final* and be substituted by a plea of not guilty.

Note: The withdrawal of a plea of guilty is not a matter of right to the accused but addressed to the sound discretion to the trial court (*Sec. 5*).

Q: What is the effect of such withdrawal?

A: The court shall set aside the judgment of conviction and re-open the case for new trial.

7. GROUNDS FOR SUSPENSION OF ARRAIGNMENT

Q: May arraignment be suspended?

A: Yes, upon motion by the proper party on the following grounds:

1. The accused appears to be suffering from an *unsound mental condition* which effectively renders him unable to fully understand the charge against him and to plead intelligently thereto;
2. There exists a valid *prejudicial question*;
3. A *petition for review* of the resolution of the prosecutor is pending at the

Department of Justice or the Office of the President (Sec. 11); provided that the period of suspension shall not exceed 60 days counted from the filing of the petition;

4. There are pending incidents such as:
 - a. Motion to Quash
 - b. Motion for Inhibition
 - c. Motion for Bill of Particulars

Note: The period of suspension shall not exceed sixty (60) days counted from the filing of the petition with the reviewing office (Sec. 11).

I. MOTION TO QUASH

Q: What is motion to quash?

A: It is a special pleading filed by the defendant *before* entering his plea, which hypothetically admits the truth of the facts spelled out in the complaint or information at the same time that it sets up a matter which, if duly proved, would preclude further proceedings.

Q: When may a motion to quash an information or complaint be filed?

A: At any time before entering his plea, *the accused* may move to quash the information or complaint (Sec. 1, Rule 117).

Note: The court is not authorized to *motu proprio* initiate a motion to quash by issuing an order requiring an explanation why the information should not be quashed. The court has discretion to dismiss the case if the info is not sufficient or on any ground provided by law, or to dismiss the info for a different one.

Q: May a motion to quash be filed after the plea of the accused?

A:

GR: No motion to quash can be entertained after accused enters his plea.

XPN: On the following grounds:

1. Lack of jurisdiction over the offense charged;
2. The facts alleged charged no offense;
3. That the offense or the penalty has prescribed; or
4. Double jeopardy.

1. GROUNDS

Q: What are the requirements for a valid motion to quash?

A: The motion to quash must be:

1. in writing;
2. signed by the accused or his counsel; and
3. specify the factual and legal grounds on which it is based.

Note: The court shall not consider any other ground other than those specifically stated in the motion to quash except lack of jurisdiction over the offense charged (Sec. 2).

Q: What are the grounds for a motion to quash the complaint or information?

A:

1. That the facts charged do not constitute an offense;
2. That the court trying the case has no jurisdiction over the offense charged;
3. That the court has no jurisdiction over the person of the accused;
4. That the officer who filed the information had no authority to do so;
5. That the information does not conform substantially to the prescribed form;
6. That more than one offense is charged except when a single punishment for various offense is prescribed by law;
7. That the criminal action or liability has been extinguished;
8. That it contains various averments which if true would constitute legal excuse or justification;

Note: Only exempting circumstances constitute a legal excuse or justification. Justifying circumstances such as self-defense must be proven.

9. That the accused has been previously convicted or acquitted of the offense charged, or the case against him was dismissed or otherwise terminated without his express consent (double jeopardy) (Sec. 3, Rule 117).

Note: Matters of defense are generally not a ground for a motion to quash. They should be presented at the trial

Q: Can lack of preliminary investigation be a ground for a motion to quash?

A: No, the grounds under Sec. 3, Rule 117 are *exclusive* in character. Accordingly, it was held that lack of preliminary investigation is not a ground for a motion to quash, not only because it is not stated by the rule as one of the grounds, but also because



it does not impair the validity of the information, render it defective or affect the jurisdiction of the court over the case (*People v. Yutila, G.R. No. L-34332, Jan. 27, 1981*).

Q: Can the accused move to quash on the ground that he was denied due process?

A: No. Denial of due process is not one of the grounds for a motion to quash.

Q: Can the court grant a motion to quash filed by the accused on the following grounds: that the court lacked jurisdiction over the person of the accused and that the complaint charged more than one offense?

A: No. A motion to quash on the ground of lack of jurisdiction over the person of the accused must be based only on this ground. If other grounds are included, there is a waiver, and the accused is deemed to have submitted himself to the jurisdiction of the court.

Q: What are the grounds for extinction of criminal liability?

A: Under Article 89 of the Revised Penal Code, it is provided that criminal liability is totally extinguished:

1. By the death of the convict, as to personal penalties; and as to pecuniary penalties, liability therefor is extinguished only when the death of the offender occurs before final judgment;
2. By service of the sentence;
3. By amnesty, which completely extinguish the penalty and all its effects;
4. By absolute pardon;
5. By prescription of the crime;
6. By prescription of the penalty; and
7. By the marriage of the offended woman, as provided in Article 344 of the Revised Penal Code.

Q: Is the death of the offended party a ground for the dismissal of the case?

A: No, the *death of the offended party* before final conviction will not abate prosecution where the offense charged is one against the State involving peace and order as well as in private crimes (*People v. Misola, G.R. No. L-3606, Dec. 29, 1950*).

Q: Distinguish pardon from amnesty.

A:

Pardon	Amnesty
Granted by the Chief Executive.	Proclaimed by the President, but it has to be with the concurrence of

	Congress.
It is a private act which must be pleaded and proved by the person pardoned because the courts take no notice of it.	It is a public act which the courts have to take judicial notice of.
Granted to one after conviction.	Granted to classes of persons or communities who may be guilty of political offenses, generally before or after the institution of the criminal prosecution and sometimes after conviction.
Relieves the offender from the consequences of the offense of which he is convicted. It only serves as a relief from the punishment but it does not restore the political rights of the person, unless it is expressly provided for in the pardon.	Abolishes and puts into oblivion the offense itself. It is as though the offense was never committed.

Q: In cases of violation of special laws, when will the prescriptive period begin to run?

A: Violation of special law is *malumprohibitum*, hence, the applicable statute requires that if violation of special law is not known at the time, the prescriptive period begins to run only from the discovery thereof, which includes discovery of the unlawful nature of the constitutive acts which requires the evidence to be shown. (*People v. Duque, G.R. No. 100285, Aug. 18, 1992*)

Note: Where the last day of the prescriptive period for *filing an information* is a Sunday or legal holiday, the information can no longer be filed on the next working day. The remedy is for the fiscal or prosecution to file the information on the last working day before the criminal offense prescribes (*Yapdianco v. Buencamino, G.R. No. L-31442, June 24, 1983*).

Q: What is *nolleprosequi*?

A: It is a Latin term for “we shall no longer prosecute.” It is a dismissal of the criminal case by the government before the accused is placed on trial and before he is called to plead, with the approval of the court in the exercise of its judicial discretion. It partakes of a non-user or discontinuance in a civil suit and leaves the matter in the same condition in which it was before the commencement of the prosecution. It is not an

acquittal; it is not a final disposition of the case; and it does not bar a subsequent prosecution for the same offense. Thus, it can be refiled (*Galvez v. CA, G.R. No. 120715, Mar. 29, 1996*).

Q: Is *nolleprosequi* the same as quashal?

A: No, although both have the same result – the dismissal of the case. A *nolleprosequi* is initiated by the prosecutor while a quashal is upon motion to quash filed by the accused.

Q: What is the effect of failure to move to quash or failure to allege a ground?

A:

GR: It shall be deemed a waiver of any objections.

XPN: Grounds based on:

1. the facts charged do not constitute an offense;
2. the court trying the case has no jurisdiction over the offense charged;
3. criminal liability has been extinguished; and
4. that the accused has been previously convicted or acquitted of the offense charged, or the case against him was dismissed or otherwise terminated without his express consent (*Sec. 9*).

2. DISTINGUISH FROM DEMURRER TO EVIDENCE

Q: Distinguish Motion to Quash from Demurrer to Evidence

A:

MOTION TO QUASH	DEMURRER TO EVIDENCE
Filed before the defendant enters his plea	Filed after the prosecution has rested its case
Does not go into the merits of the case but is anchored on matters not directly related to the question of guilt or innocence of the accused	Based upon the inadequacy of the evidence adduced by the prosecution in support of the accusation
Governed by Rule 117 of the Rules on Criminal Procedure	Governed by Rule 119 of the Rules on Criminal Procedure

Q: When may the accused move to quash the complaint or information?

A:

GR: The accused may move to quash the complaint or information at any time BEFORE entering his plea.

XPNs: Instances where a motion to quash may be filed AFTER plea:

1. Failure to charge an offense;
2. Lack of jurisdiction over the offense charged;
3. Extinction of the offense or penalty;
4. The defendant would be placed in double jeopardy.

Note: Right to file a motion to quash belongs only to the accused. There is nothing in the rules which authorizes the court or judge to motuproprio initiate a motion to quash.

3. EFFECTS OF SUSTAINING THE MOTION TO QUASH

Q: What are the effects of granting a motion to quash?

A:

1. If an order sustaining the motion to quash is made:
 - a. The court may order that another complaint or information be filed except on the ground of double jeopardy and extinguishment of criminal liability; and
 - b. If the accused is in custody he shall not be discharged unless admitted to bail;
2. If no order is made or if having made, no information is filed within the time specified in the order or within such time as the court may allow for good cause, the accused if in custody shall be discharged unless he is in custody for another charge (*Sec. 5, Rule 117*).

Q: Is the order granting the motion to quash appealable?

A: Yes, because the order to that effect is a final order, and not merely interlocutory. The accused would not be placed in double jeopardy because the accused has not been arraigned yet and the dismissal was obtained with his expressed consent.

Q: Is the order denying the motion to quash appealable?

A: No. It is interlocutory and not appealable. *Certiorari* and prohibition are not the correct remedies against an order denying a motion to quash. The defendant should instead go to trial and raise the special defense he had invoked in his motion. And if after trial on the merits, an adverse decision is rendered, remedy is to appeal in the



manner authorized by law (*Bulaong v. CA, G.R. No. 78555, Jan. 30, 1990*).

Q: What is the procedure if the motion to quash is denied?

A:

1. The accused should plead;
2. Accused should go to trial without prejudice to the special defenses he invoked in the motion;
3. Appeal from the judgment of conviction, if any, and interpose the denial of the motion as an error

Q: May an order denying a motion to quash be appealable?

A: No. An order denying the motion to quash is INTERLOCUTORY and NOT APPEALABLE. Appeal in due time as the proper remedy implies a previous conviction as a result of a trial on the merits of the case and does not apply to an interlocutory order denying a motion to quash. (*Acharon v. Purisima, GR No. 23731, February 26, 1965*)

4. EXCEPTION TO THE RULE THAT SUSTAINING THE MOTION TO QUASH IS NOT A BAR TO ANOTHER PROSECUTION

Q: Is an order granting a motion to quash a bar to another prosecution?

A:

GR: An order sustaining the motion to quash is not a bar to another prosecution for the same offense.

XPN:

1. Double jeopardy; or
2. Criminal liability is extinguished (*Sec. 6*).

5. DOUBLE JEOPARDY

Q: What is double jeopardy?

A: It means that when a person is charged with an offense and the case is terminated either by acquittal or conviction or in any other manner without the consent of the accused, the latter cannot again be charged with the same or identical offense.

Q: What are the elements of double jeopardy?

A:

1. A valid complaint or information
2. A competent court
3. The defendant pleaded to the charge
4. The defendant was acquitted or convicted or the case against him was dismissed or

otherwise terminated without his express consent (*People v. Obsania, 23 SCRA 1249*).

Q: When does the first jeopardy attach?

A:

1. Competent Court
2. Valid jurisdiction
3. Accused was arraigned
4. Accused pleaded

Q: When does the second jeopardy attach?

A:

1. When the accused was acquitted;
2. When there is final conviction;
3. Dismissal on the merits
4. Dismissal without express consent

Q: What is the effect of double jeopardy on the criminal and civil aspects of the case?

A: When double jeopardy exists, "the conviction or acquittal of the accused or the dismissal of the case shall be a bar to another prosecution for the offense charged, or for any attempt to commit the same or frustration thereof, or for any offense which necessarily includes or is necessarily included in the offense charged in the former complaint or information (*Section 7, Rule 117*).

The offended party and the accused may appeal the civil aspect of the case because the concept of double jeopardy evidently has reference only to the criminal case and has no effect on the civil liability of the accused (*Riano, Criminal Procedure 2011 p. 475*)

Note: A judgment of acquittal is final and is no longer reviewable, unless the trial court acted with grave abuse of discretion or when there is mistrial.

Q: Is the concept of double jeopardy applicable to administrative cases?

A: NO. The rule on double jeopardy does not apply to a controversy where one is an administrative case and the other is criminal in nature (*Riano, Criminal Procedure 2011 p. 487 citing Icasiano v. Sandiganbayan, 209 SCRA 377*).

Q: As a result of vehicular mishap, petitioner was charged before the MTC of two separate offenses in two informations:

- a. reckless imprudence resulting in slight physical injuries; and

b. reckless imprudence resulting in homicide and damage to property for the death of the husband of the respondent and damage to the vehicle.

Petitioner pleaded guilty to the first information and was punished only by public censure. Invoking such conviction petitioner now moves for the quashal of the other information on the ground of double jeopardy. Does double jeopardy apply to quasi offenses?

A: Yes. The two charges arose from the same facts and were prosecuted under the same provision of the Revised Penal Code, namely Article 365. The doctrine is that reckless imprudence under Art. 365 is a single quasi- offense by itself and not merely a means to commit other crimes. Hence, conviction or acquittal of such quasi offense bars subsequent prosecution for the same quasi offense, regardless of its various resulting acts (*Ivler v. Modesto- San Pedro, GR No. 172716, November 17, 2010*)

Note: Reason and precedent both coincide in that once convicted or acquitted of a specific act of reckless imprudence, the accused may not be prosecuted again for that same act. *For the essence of the quasi offense of criminal negligence under article 365 of the Revised Penal Code lies in the execution of an imprudent or negligent act that, if intentionally done, would be punishable as a felony. The law penalizes thus the negligent or careless act, not the result thereof. The gravity of the consequence is only taken into account to determine the penalty, it does not qualify the substance of the offense. And, as the careless act is single, whether the injurious result should affect one person or several persons, the offense (criminal negligence) remains one and the same, and can not be split into different crimes and prosecutions.* (*People v. Buan, GR No. L-15974, March 29, 1968*)

Q: Distinguish dismissal from acquittal.

A:

Dismissal	Acquittal
Does not decide on the merits, does not determine the defendant's guilt or innocence	Always based on the merits. Defendant is acquitted because guilt was not proven beyond reasonable doubt
Double jeopardy will not always attach	Double jeopardy always attaches

Q: What is the identity rule?

A: There is identity between two offenses not only when the second offense is exactly the same as the first, but also when the second offense includes or

is necessarily included in the first offense or an attempt or frustration thereof.

Q: What are the exceptions to the identity rule?

A:

1. The graver offense developed due to supervening facts arising out of the same act or omission constituting the former charge.
2. The facts constituting the graver offense became known or were discovered only after a plea was entered in the former complaint or information.
3. The plea of guilty to a lesser offense was made without the consent of the prosecutor and the offended party (*Sec. 7*)
4. The second offense was not in existence at the time of the first prosecution for the simple reason that in such case, there is no possibility for the accused, during the first prosecution, to be convicted for an offense that was then inexistent (*Melo v. People, 85 Phil 766*).

Note: In any of the foregoing cases, where the accused satisfies or serves in whole or in part the judgment, he shall be credited with the same in the event of conviction for the graver offense.

Q: What are the instances wherein dismissal of the case is tantamount to an acquittal?

A:

1. Insufficiency of evidence of the prosecution (demurrer to evidence).
2. Dismissal due to violation of right to speedy trial (even if dismissal was upon motion of the accused or with his express consent).

Q: What is the doctrine of supervening fact?

A: If, after the first prosecution, a new fact supervenes on which the defendant may be held liable, altering the character of the crime and giving rise to a new and distinct offense, the accused cannot be said to be in second jeopardy if indicted for the new offense.

Q: What are the rules regarding the application of double jeopardy on State witnesses?

A: An order discharging an accused as a State witness amounts to an acquittal, hence double jeopardy will apply. However, if he fails or refuses to testify against his co-accused in accordance with his sworn statement, he may be prosecuted again.



6. PROVISIONAL DISMISSAL

Q: What is the rule on provisional dismissal of a case?

A:

GR: Where the case was dismissed PROVISIONALLY with the consent of the accused, he CANNOT invoke double jeopardy in another prosecution therefore OR where the case was reinstated on a motion for reconsideration by the prosecution.

XPNS: Where the dismissal was actually an acquittal based on:

1. Lack or insufficiency of the evidence
2. Denial of the right to speedy trial hence even if the accused gave his express consent to such dismissal, such consent would be immaterial as such dismissal is actually an acquittal.

Q: What are the requisites for provisional dismissal?

A:

1. Consent of the prosecutor;
2. Consent of the accused; and
3. Notice to the offended party (*Sec. 8*).

Note: If a case is provisionally dismissed, the failure to revive or reinstate the case within the periods set by law will make the dismissal permanent.

Q: What is the time bar rule? Explain.

A: It provides that the provisional dismissal of a case shall become permanent without the case having been revived in the following periods:

1. *1 year after issuance of the order of provisional dismissal* – for offenses punishable by imprisonment not exceeding 6 years or a fine of any amount, or both; and
2. *2 years after issuance of the order of provisional dismissal* – with respect to offenses punishable by imprisonment of more than 6 years (*Sec. 8*).

J. PRE-TRIAL

1. MATTERS TO BE CONSIDERED DURING PRE-TRIAL

Q: When is pre-trial held?

A: After arraignment and within thirty (30) days from the date the court acquires jurisdiction over the person of the accused unless a shorter period is

provided by special laws or circulars of the Supreme Court (*Sec. 1, Rule 118*).

Note: When the accused is under preventive detention, wherein his case shall be raffled and records transmitted within 3 days from the filing of the complaint or information. The accused shall be arraigned within 10 days from the date of the raffle [*Sec. 1(d), Rule 116*]. Pre-trial in criminal cases is mandatory.

Q: Give three distinctions between a pre-trial in a criminal case and a pre-trial in a civil case.

A:

Pre-trial in Civil Cases	Pre-trial in Criminal Cases
The presence of the defendant is required unless he is duly represented at the pre-trial conference by his counsel with the requisite authority to enter into a compromise agreement. Failing in either of which, the case shall proceed as if the defendant has been declared in default.	The accused is merely required to sign the written agreement arrived at in the pre-trial conference, if he is in conformity therewith. Unless otherwise required by the court, his presence therefore is not indispensable.
The presence of the plaintiff is required unless excused therefrom for valid cause or if he is represented therein by a person fully authorized in writing to perform the acts specified in <i>Sec. 4, Rule 18</i> .	The presence of the private offended party is not required. Instead, he is priorly required to appear at the arraignment of the accused for purpose of plea bargaining, determination of civil liability and other matters requiring his presence.
Absent such justification, the case may be dismissed with or without prejudice.	Should he fail to appear therein and the accused offers to plead guilty to a lesser offense necessarily included in the offense charged, the accused may be allowed to do so with the conformity of the trial prosecutor alone.

A pre-trial brief is required with the particulars and the sanctions provided by Sec. 6, Rule 18.	The filing of a pre-trial brief is not required. It only requires attendance at a pre-trial conference to consider the matters stated in Sec. 1, Rule 118. (1997 Bar Question)
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Q: What must the order for pre-trial conference contain?

A: It must contain orders:

1. Requiring the private offended party to appear thereat for purposes of plea-bargaining and for other matters requiring his presence;
2. Referring the case to the branch *clerk of court*, if warranted, for a preliminary conference to be set at least three (3) days prior to the pre-trial to mark the documents or exhibits to be presented by the parties and copies thereof to be attached to the records after comparison and to consider other matters as may aid in its prompt disposition; and
3. Informing the parties that no evidence shall be allowed to be presented and offered during the trial other than those identified and marked during the pre-trial except when allowed by the court for good cause shown. In mediatable cases, the judge shall refer the parties and their counsel to the Philippine Mediation Center unit for purposes of mediation if available (*A.M. No. 03-1-09-SC*).

Q: What is the form of a valid pre-trial agreement?

A: The pre-trial agreement must be in writing and signed by both the accused and his counsel. If the required form is not observed, the pre-trial agreement cannot be used against the accused (*Sec. 2, Rule 118*).

Note: The agreements covering the matters in the pre-trial conference shall be approved by the court.

Q: What are the matters considered during pre-trial?

A:

1. Plea bargaining;
2. Stipulation of facts;
3. Marking for identification of evidence of parties;
4. Waiver of objections to admissibility of evidence;

5. Modification of the order of the trial if one of the accused admits the charge but interposes a lawful defense (reverse trial); and
6. Such other matters as will promote a fair and expeditious trial of the civil and criminal aspects of the case (*Sec. 1*).

Note: During the preliminary conference, the branch *clerk of court* shall assist the parties in reaching a settlement of the civil aspect of the case, mark the documents to be presented as exhibits and copies thereof attached to the records after comparison, ascertain from the parties the undisputed facts and admissions on the genuineness and due execution of documents marked as exhibits and consider such other matters as may aid in the prompt disposition of the case. The proceedings during the preliminary conference shall be recorded in the *minutes of preliminary conference* to be signed by both parties and counsel.

The *minutes of preliminary conference* and the exhibits shall be attached by the branch *clerk of court* to the case record before the pre-trial (*A.M. No. 03-1-09-SC*).

Q: What is plea bargaining?

A: Plea bargaining is the process whereby the accused, the offended party and the prosecution work out a mutually satisfactory disposition of the case subject to court approval. It usually involves the defendant's pleading guilty to a lesser offense or to only one or some of the counts of a multi-count indictment in return for a lighter sentence than that for the graver charge.

Q: When is plea bargaining not applicable?

A: Violations of the Dangerous Drugs Act regardless of the imposable penalty.

Q: What shall the court do if the plea bargaining fails?

A: The court shall:

1. Adopt the minutes of preliminary conference as part of the pre-trial proceedings, confirm markings of exhibits or substituted photocopies and admissions on the genuineness and due execution of documents and list object and testimonial evidence;
2. Scrutinize every allegation of the information and the statements in the affidavits and other documents which form part of the record of the preliminary investigation and other documents identified and marked as exhibits in



determining farther admissions of facts, documents and in particular as to the following:

- a. The identity of the accused;
 - b. Court's territorial jurisdiction relative to the offense/s charged;
 - c. Qualification of expert witness;
 - d. Amount of damages;
 - e. Genuineness and due execution of documents;
 - f. The cause of death or injury, in proper cases;
 - g. Adoption of any evidence presented during the preliminary investigation;
 - h. Disclosure of defenses of alibi, insanity, self-defense, exercise of public authority and justifying or exempting circumstances; and
 - i. Such other matters that would limit the facts in issue.
3. Define factual and legal issues;
 4. Ask parties to agree on the specific trial dates and adhere to the flow chart determined by the court which shall contain the time frames for the different stages of the proceeding up to promulgation of decision and use the time frame for each stage in setting the trial dates;
 5. Require the parties to submit to the Branch COC the names, addresses and contact numbers of witnesses that need to be summoned by subpoena; and
 6. Consider modification of order of trial if the accused admits the charge but interposes a lawful defense (*A.M. No. 03-1-09-SC*).

2. WHAT THE COURT SHOULD DO WHEN PROSECUTION AND OFFENDED PARTY AGREE TO THE PLEA OFFERED BY THE ACCUSED

Q: What is the effect if the prosecution and the offended party agree to the plea offered by the accused?

A: The court shall:

1. issue an order which contains the plea bargaining arrived at;
2. proceed to receive evidence on the civil aspect of the case; and
3. render and promulgate judgment of conviction, including the civil liability or damages duly established by the evidence (*A.M. No. 03-1-09-SC*).

3. PRE-TRIAL AGREEMENT

Q: What is pre-trial agreement?

A: All agreements or admissions made or entered into during the pre-trial conference shall be reduced to writing and signed by the accused and counsel, otherwise the same shall not be used as evidence against the accused.

Q: What are the requisites before a pre-trial agreement may be used as evidence?

A:

1. They are reduced to writing;
2. The pre-trial agreement is signed by the accused and his counsel

4. NON-APPEARANCE DURING PRE-TRIAL

Q: What is the effect of non-appearance of counsel for the accused or the prosecutor during the pre-trial without valid justification?

A: The court may impose proper sanctions or penalties in the form of reprimand, fines or imprisonment if he does not offer an acceptable excuse for his lack of cooperation (*Sec. 3, Rule 118*).

Note: These sanctions are not applicable on the accused, because to include him among the mandatory parties to appear might violate his constitutional right to remain silent.

5. PRE-TRIAL ORDER

Q: What is pre-trial order?

A: It is an order issued by the court reciting the actions taken, the facts stipulated and the evidence marked during the pre-trial conference. Such order binds the parties and limits the trial to those matters not disposed of (*Sec. 4*).

Q: When shall the trial judge issue a pre-trial order and what are its contents?

A: It must be issued within ten (10) days after the termination of the pre-trial. It shall set forth the following:

1. Actions taken during the pre-trial conference;
2. Facts stipulated;
3. Admissions made;
4. Evidence marked; and
5. Number of witnesses to be presented and the schedule of trial (*Sec. 4*).

6. REFERRAL FOR SOME CASES FOR COURT ANNEXED MEDIATION AND JUDICIAL DISPUTE RESOLUTION
(A.M. No. 11-1-6-SC-PHILJA)

Q: What is the purpose of Court Annexed Mediation and Judicial Dispute Resolution?

A: The diversion of pending court cases both to Court-Annexed Mediation (CAM) and to Judicial Dispute Resolution (JDR) is plainly intended to put an end to pending litigation through a compromise agreement of the parties and thereby help solve the ever-pressing problem of court docket congestion. It is also intended to empower the parties to resolve their own disputes and give practical effect to the State Policy expressly stated in the ADR Act of 2004 (R.A. No. 9285), to wit:

“to actively promote party autonomy in the resolution of disputes or the freedom of the parties to make their own arrangement to resolve disputes. Towards this end, the State shall encourage and actively promote the use of Alternative Dispute Resolution (ADR) as an important means to achieve speedy and impartial justice and de-clog court dockets.”

Q: What are the three stages of diversion of cases to Court Annexed Mediation and Judicial Dispute Resolution?

A:

1. The first stage is the Court-Annexed Mediation (CAM) where the judge refers the parties to the Philippine Mediation Center (PMC) for the mediation of their dispute by trained and accredited mediators.
2. Upon failing to secure a settlement of the dispute during the first stage, a second attempt is made at the JDR stage. There, the JDR judge sequentially becomes a mediator/conciliator- early neutral evaluator in a continuing effort to secure a settlement. Still failing that second attempt, the mediator-judge must turn over the case to another judge (a new one by raffle or nearest/pair judge) who will try the unsettled case. The trial judge shall continue with the pre-trial proper and, thereafter, proceed to try and decide the case.
3. The third stage is during the appeal where covered cases are referred to the PMC-Appeals Court Mediation (ACM) unit for mediation.

Q: What are the cases covered by Court Annexed Mediation and Judicial Dispute Resolution?

A:

The following cases shall be 1) referred to Court-Annexed Mediation (CAM) and 2) be the subject of Judicial Dispute Resolution (JDR) proceedings:

1. All civil cases and the civil liability of criminal cases covered by the Rule on Summary Procedure, including the civil liability for violation of B.P. 22, except those which by law may not be compromised;

2. Special proceedings for the settlement of estates;
3. All civil and criminal cases filed with a certificate to file action issued by the *Punong Barangay* or the *Pangkatang Tagapagkasundong* under the Revised *Katarungang Pambarangay Law*;

4. The civil aspect of Quasi-Offenses under Title 14 of the Revised Penal Code;

5. The civil aspect of less grave felonies punishable by correctional penalties not exceeding 6 years imprisonment where the offended party is a private person;

6. The civil aspect of estafa, theft and libel;

7. All civil cases and probate proceedings, testate and intestate, brought on appeal from the exclusive and original jurisdiction granted to the first level courts under Section 33, par. (1) of the Judiciary Reorganization Act of 1980;

8. All cases of forcible entry and unlawful detainer brought on appeal from the exclusive and original jurisdiction granted to the first level courts under Section 33, par. (2) of the Judiciary Reorganization Act of 1980;

(9) All civil cases involving title to or possession of real property or an interest therein brought on appeal from the exclusive and original jurisdiction granted to the first level courts under Section 33, par. (3) of the Judiciary Reorganization Act of 1980; 13 and

(10) All habeas corpus cases decided by the first level courts in the absence of the Regional Trial Court judge, that are brought up on appeal from the special jurisdiction granted to the first level courts under Section 35 of the Judiciary Reorganization Act of 1980.

Q: What are those cases which cannot be referred to Court Annexed Mediation and Judicial Dispute Resolution?

A: The following cases shall not be referred to CAM and JDR:

1. Civil cases which by law cannot be compromised (Article 2035, New Civil Code);
2. Other criminal cases not covered under paragraphs 3 to 6 above;
3. Habeas Corpus petitions;
4. All cases under Republic Act No. 9262 (Violence against Women and Children); and
5. Cases with pending application for Restraining Orders/Preliminary Injunctions. However, in cases covered under 1, 4 and 5 where the parties inform the court that they have agreed to undergo mediation on some aspects thereof, e.g., custody of



minor children, separation of property, or support *pendentelite*, the court shall refer them to mediation.

Q: What is the duration of mediation in the Philippine Mediation Center?

A: The Mediator shall have a period of not exceeding thirty (30) days to complete the mediation process. Such period shall be computed from the date when the parties first appeared for the initial conference as stated in the Order to appear. An extended period of another thirty (30) days may be granted by the court, upon motion filed by the Mediator, with the conformity of the parties.

Q: What is the effect of the referral of the case to CAM and JDR?

A: The period during which the case is undergoing mediation shall be excluded from the regular and mandatory periods for trial and rendition of judgment in ordinary cases and in cases under summary proceedings.

Q: What is the procedure after the parties reached a settlement?

A: If full settlement of the dispute is reached, the parties, assisted by their respective counsels, shall draft the compromise agreement which shall be submitted to the court for judgment upon compromise or other appropriate action.

Where compliance is forthwith made, the parties shall instead submit a satisfaction of claims or a mutual withdrawal of the case and, thereafter, the court shall enter an order dismissing the case. If partial settlement is reached, the parties shall, with the assistance of counsel, submit the terms thereof for the appropriate action of the court, without waiting for resolution of the unsettled part.

In relation to the unsettled part of the dispute, the court shall proceed to conduct JDR proceedings in accordance with PART THREE where JDR is available.

Q: What is the remedy if the case is not resolved during JDR?

A:

1. *MULTIPLE SALA COURT*- If the case is not resolved during the JDR, the case shall be raffled to another branch for the pre-trial proper up to judgment.

For cases with pending applications for restraining orders/preliminary injunctions, the judge to whom the case was raffled shall rule on the said

applications. During the pre-trial stage, the judge refers the case to CAM, but if the parties do not settle at CAM, the case will be raffled to another branch for JDR. If the parties do not settle at JDR, the case will be returned to the branch that ruled on the applications for the pre-trial proper and up to judgment.

2. *SINGLE SALA COURT*- Unless otherwise agreed upon as provided, the JDR proceedings will be conducted by the judge of the pair court, if any, otherwise, by the judge of the nearest court as determined by the concerned Executive Judge. The JDR proceedings shall be conducted at the station where the case was originally filed. The result of the JDR proceedings shall be referred to the court of origin for appropriate action, e.g. approval of the compromise agreement, trial, etc.

Notwithstanding the foregoing, before the commencement of the JDR proceedings, the parties may file a joint written motion requesting that the court of origin conduct the JDR proceedings and trial.

3. *FAMILY COURTS*- Unless otherwise agreed upon as provided below, the JDR proceedings in areas where only one court is designated as a family court, shall be conducted by a judge of another branch through raffle. However, if there is another family court in the same area, the family court to whom the case was originally raffled shall conduct JDR proceedings and if no settlement is reached, the other family court shall conduct the pre-trial proper and trial.

Notwithstanding the foregoing, before commencement of the JDR proceedings, the parties may file a joint written motion requesting that the family court to which the case was originally raffled shall conduct the JDR proceedings and trial.

Despite the non-mediatable nature of the principal case, like annulment of marriage, other issues such as custody of children, support, visitation, property relations and guardianship, may be referred to CAM and JDR to limit the issues for trial.

4. *COMMERCIAL, INTELLECT PROPERTY AND ENVIRONMENTAL COURTS*- Unless otherwise agreed upon as provided below, the JDR proceedings in areas where only one court is designated as commercial/intellectual property/environmental court, hereafter referred to as special court, shall be conducted by another judge through raffle and not by the judge of the special court. Where settlement is not reached, the judge of the special court shall be the trial judge. Any incident or motion filed before the pre-trial

stage shall be dealt with by the special court that shall refer the case to CAM.

Notwithstanding the foregoing, before commencement of the JDR proceedings, the parties may file a joint written motion requesting that the special courts to which the case was originally raffled shall conduct the JDR proceedings and trial.

Q: May a case be referred to JDR even during trial?

A: YES. Cases may be referred to JDR even during the trial stage upon written motion of one or both parties indicating willingness to discuss a possible compromise. If the motion is granted, the trial shall be suspended and the case referred to JDR, which shall be conducted by another judge through raffle in multiple sala courts.

Q: What is the duty of the court if settlement is reached during the JDR?

A: If settlement is reached during JDR, the JDR court shall take appropriate action thereon, *i.e.* approval/disapproval of the compromise agreement. If settlement is not reached at JDR, the case shall be returned to the referring court for continuation of trial.

In single sala courts, the JDR shall be conducted by the nearest court (or pair court, if any) regardless of the level of the latter court. The result of the JDR proceedings shall be referred to the court of origin for appropriate action, *e.g.* approval of the compromise agreement, trial, etc.

The parties may, by joint written motion, despite confidential information that may be divulged during JDR proceedings, file a request that their case be not transferred to other courts for JDR and that they agree to have the trial judge continue the trial should the case not be settled through JDR.

K. TRIAL

Q: What is a trial?

A: Trial is the examination before a competent tribunal according to the laws of the land, of facts put in issue in a case for the purpose of determining such issue.

After a plea of not guilty is entered, the accused shall have at least fifteen (15) days to prepare for trial. The trial shall commence within 30 days from receipt of pre-trial order.

Note: Denial of right to prepare is reversible error; the proper remedy from a judgment of conviction under such case is appeal and not *certiorari* nor *habeas*

corpus(*Montilla v. Arellano*, G.R. No. 123872, Jan. 30, 1998).

Q: What is a hearing?

A: Hearing is not confined to trial, but embraces several stages of litigation including the pre-trial stage. A hearing does not necessarily imply the presentation of oral or documentary evidence in open court but that the parties are afforded an opportunity to be heard. (*Republic v. Sandiganbayan*, 416 SCRA 133, 2003).

Q: In a criminal proceeding, when is the presence of the accused required?

A:

1. During arraignment;
2. Promulgation of judgment except when the conviction is for a light offense, in which case, it may be pronounced in the presence of his counsel or a representative; and
3. When ordered by the court for purposes of identification.

Note: Such requirement has no application to the proceedings or to the entry and promulgation of the judgments before the CA and SC. The defendant need not be present during the hearing of the appeal (*Sec. 9, Rule 124*).

Q: What is the order of trial in criminal cases?

A: In criminal cases, unless the accused admits the act or omission charged in the complaint or information but interposes a lawful defense, the trial shall proceed in the following order:

1. The prosecution shall present evidence to prove the charge and, in the proper case, the civil liability.
2. The accused may present evidence to prove his defense, and damages, if any, arising from the issuance of a provisional remedy in the case.
3. The prosecution and the defense may, in that order, present rebuttal and sur-rebuttal evidence unless the court, in furtherance of justice, permits them to present additional evidence bearing upon the main issue.
4. Upon admission of the evidence of the parties, the case shall be deemed submitted for decision unless the court directs them to argue orally or to submit written memoranda (*Sec. 11, Rule 119*).

Note:

GR: The order in the presentation of evidence must be followed. The accused may not be



required to present evidence first before the prosecution adduces its own proof.

XPN: Where a reverse procedure was adopted without the objection of the defendant and such procedure did not prejudice his substantial rights, the defect is not a reversible error.

1. INSTANCES WHEN PRESENCE OF THE ACCUSED REQUIRED

Q: What are the instances when the presence of the accused is required by law?

A: The only instances when the presence of the accused is required:

1. Upon arraignment and in entering plea;
2. During trial when his presence is necessary for the purpose of identification;
3. Upon promulgation of judgment except for light offenses
4. When the court with due notice requires so.

Q: Is there a time limit for the trial of criminal cases?

A:

GR: Trial shall not exceed 180 days from the first day of trial.

XPNs:

1. Those governed by the rules on summary procedure;
2. Those where the penalty prescribed by law does not exceed 6 months imprisonment or a fine of P1,000 or both; and
3. Those authorized by the Chief Justice of the SC. (Sec. 6, R.A. 8493, *Speedy Trial Act*)

Note: Commencement of trial may be extended based on the following conditions:

1. For the 180 days, for the first 12 calendar month period from the effectivity of the law.
2. 120 days for the second 12 month period.
3. 80 days for the third 12 month period. (Sec. 9, R.A. 8493)

Q: What is the effect if the court failed to comply with the mandates of the Speedy Trial Act to terminate the case within the 180 day period?

A: The judge may be charged administratively, or may be fined, suspended or removed unless his failure to comply with the speedy trial act is for reasons not attributable to him.

Q: What is continuous trial system?

A: Trial once commenced shall continue from day to day as far as practicable until terminated. It may be postponed for a reasonable period of time for good cause. The entire trial period shall in no case exceed *180 days from the first day of trial*, except as otherwise provided by the SC (Sec. 2).

The SC adopted the continuous trial system as a mode of judicial fact-finding and adjudication conducted with speed and dispatched so that trials are held on the scheduled dates without postponement, the factual issues for a trial well defined at pre-trial and the whole proceedings terminated and ready for judgment within *ninety (90) days from the date of initial hearing*, unless for meritorious reasons an extension is permitted.

Note: The non-appearance of the prosecution at the trial, despite due notice, justifies a provisional dismissal or an absolute dismissal depending upon the circumstances.

Q: What are the cases where the time limitation is inapplicable?

A:

1. Criminal cases covered by the Rule on Summary Procedure;
2. When the offended party is about to depart with no definite date of return;
3. Child abuse cases (Sec. 32, R.A. 7610 or *The Child Abuse Act*);
4. Violations of Dangerous Drugs Law; and
5. Kidnapping, robbery by a band, robbery against banking or financial institution, violation of Carnapping Act and other heinous crimes (*Herrera, Vol. IV, p. 796, 2007 ed.*).

2. REQUISITE BEFORE TRIAL CAN BE SUSPENDED ON ACCOUNT OF ABSENCE OF WITNESS

Q: What are the requisites before a trial can be suspended on account of the absence of a witness?

A: That the:

1. witness is material and appears to the court to be so;
2. party who applies has been guilty of no neglect;
3. witnesses can be had at the time to which the trial is deferred and no similar evidence could be obtained; and
4. affidavit showing the existence of the above circumstances must be filed.

Q: What are the remedies of the accused where a prosecuting officer without just cause secures postponements of the trial against his protest beyond a reasonable period of time?

A:

1. Mandamus to compel a dismissal of the information; or
2. If he is restrained of his liberty, by habeas corpus to obtain his freedom.

3. TRIAL IN ABSENTIA

Q: May trial proceed in the absence of the accused?

A: YES. Section 14 (2), Article 3 of the Constitution provides that trial may proceed notwithstanding the absence of the accused provided that he has been duly notified and his failure to appear is unjustifiable. (*Parada v. Veneracion, A.M. No. RTJ-96-1353. March 11, 1997*)

Q: What are the requisites for trial in absentia?

A:

1. The accused has been arraigned;
2. He has been notified of the trial; and
3. His failure to appear is unjustified.

Q: What are the effects of trial in absentia?

A: The accused waives the right to present evidence and cross-examine the witnesses against him. The accused's waiver does not mean, however, that the prosecution is deprived of the right to require the presence of the accused for purposes of identification by the witnesses which is vital for conviction of the accused, except where he has unqualifiedly admits in open court after his arraignment that he is the person named as defendant in the case on trial.

4. REMEDY IF ACCUSED IS NOT BROUGHT TO TRIAL WITHIN THE PRESCRIBED PERIOD

Q: What is the remedy available to the accused if he is not brought to trial within the period prescribed by the Rules of Court?

A: The information may be dismissed on motion of the accused on the ground of denial of his right to speedy trial. The dismissal shall be subject to the rules on double jeopardy (*Sec. 9, Rule 119*).

Note: The trial of an accessory can proceed without awaiting the result of separate charge against the principal (*Vino v. People, G.R. No. 84163, Oct. 19, 1989*).

Q: What is the remedy if the accused was not brought to trial within the time limit?

A: The remedy of the accused is to file a motion to dismiss the information on the ground of the denial of his right to speedy trial. Failure of the accused to move for dismissal prior to trial shall constitute a waiver of his right to file a motion to dismiss. The accused shall have the burden of proving such denial of right, but the prosecution shall have the burden of going forward with the evidence to establish the exclusion of time.

The dismissal shall be subject to the rules on double jeopardy. So if the dismissal is with prejudice, the case cannot be revived anymore. But if the dismissal is without prejudice, the revival of the case is proper (*Sec. 9, Rule 119*).

5. REQUISITES FOR THE DISCHARGE OF THE ACCUSED TO BECOME A STATE WITNESS

Q: Who is a State witness?

A: He is one of two or more persons jointly charged with the commission of a crime but who is discharged with his consent as such accused so that he may be a witness for the State (*People v. Ferrer, G.R. No. 102062, Mar. 14, 1996*).

Q: What are the requisites before an accused may become a State witness?

A:

1. There is absolute necessity for the testimony of the accused whose discharge is requested;
2. There is no other direct evidence available for the proper prosecution of the offense committed, except the testimony of the said accused;
3. The testimony of said accused can be substantially corroborated in its material points;
4. Said accused does not appear to be the most guilty; and
5. Said accused has not at any time been convicted of any offense involving moral turpitude (*Sec. 17, Rule 119*).

Note: All the requisites must be complied with. (*Herrera, Vol. IV, p. 820, 2007 ed.*)

Law enforcement officers, even if he would be testifying against the other law enforcement officers cannot be a State witness. In such a case, only the immediate members of his family may avail themselves of the protection provided for under the Witness Protection Act (*Sec. 3, R.A. 6981, Witness Protection Act*).



Q: When should the application for discharge of the state witness be made?

A: It should be made upon motion of the prosecution before resting its case.

6. EFFECTS OF THE DISCHARGE

Q: What are the effects of the order discharging the accused as a State witness?

A:

GR:

1. Discharge of accused operates as an acquittal and bar to further prosecution for the same offense
2. Evidence adduced in support of the discharge shall automatically form part of the trial (*People v. Feliciano, G.R. No. 136258, Oct. 10, 2001*); and
3. If the court denies the motion to discharge the accused as State witness, his sworn statement shall be inadmissible in evidence (*People v. Feliciano, G.R. No. 136258, Oct. 10, 2001*).

XPN:

1. When the accused fails or refuses to testify against his co-accused in accordance with his sworn statement constituting the basis of his discharge (*Sec. 18*).
2. Failure to testify refers exclusively to defendant's will or fault,
3. Where an accused who turns state's evidence on a promise of immunity but later retracts and fails to keep his part of the agreement, his confession of his participation in the commission of the crime is admissible as evidence against him. (*People v. Beberino GR No L-23213 October 28, 1977*)

Note: Discharge under this rule is only one of the modes to be a State witness. Other modes are:

1. The Witness Protection Program of R.A. 6981;
2. The power of the Ombudsman to grant immunity under Sec. 17, R.A. 6770.

Q: What are the effects if the discharged accused retracts or fails to comply with his part of the agreement?

A: If the retraction or failure to testify is solely his fault, his confession of his participation in the commission of the crime is *admissible as evidence* (*People v. Beberino, G.R. No. L-23092, Oct. 28, 1977*).

Q: Distinguish Witness Protection Program from Sec. 17, Rule 119 of the Rules of Court.

A:

Witness Program	Protection	Rules of Court
The offense in which the testimony is to be used is limited only to grave felony.		It has no qualifications. It applies to all felonies.
The immunity is granted by DOJ.		The immunity is granted by court.
The witness is automatically entitled to certain rights and benefits.		The witness so discharged must still apply for the enjoyment of said rights and benefits in the DOJ.
The witness need not be charged elsewhere.		He is charged in court as one of the accused as stated in the information.
No information may thus be filed against the witness.		The charges against him shall be dropped and the same operates as an acquittal.

Q: When will discharge of an accused operate as an acquittal?

A:

GR: The discharge of the accused shall amount to an acquittal and shall be a bar to future prosecution for the same offense.

XPN: If the accused fails or refuses to testify against his co-accused in accordance with his sworn statement constituting the basis of the discharge (*Sec. 18, Rule 119*).

Q: What shall be done when mistake has been made in charging the proper offense?

A: When it becomes manifest at any time before judgment that a mistake has been made in charging the proper offense and the accused cannot be convicted of the offense charged or any other offense necessarily included therein, the accused shall not be discharged if there appears to be a good cause to detain him. In such case, the court shall commit the accused to answer for the proper offense and dismiss the case upon filing of the proper information (*Sec. 19, Rule 119*).

Note: This rule is predicated on the fact that an accused has the right to be informed of the nature and cause of the accusation against him, and to convict him of an offense different from that charged in the complaint or information would be an unauthorized denial of that right.

7. DEMURRER TO EVIDENCE

Q: What is demurrer to evidence?

A: It is an objection by one of the parties in an action to the effect that the evidence which his adversary produced is insufficient in point of law, whether true or not, to make out a case or sustain the issue.

Q: What is the rule on demurrer of evidence?

A:

How made
1. Court on its own initiative; or 2. Upon filing of the accused for demurrer of evidence: a. With leave of court; or b. Without leave of court
When made
After the prosecution rests its case
Ground
Insufficiency of evidence
Effect
The court may dismiss the case (Sec. 23)

Q: Distinguish the effect of filing a demurrer with leave of court from filing a demurrer without leave?

A:

Demurrer With Leave of Court	Demurrer Without Leave of Court
If leave of court is <i>denied</i> , the accused may proceed with presenting his evidence	If demurrer is <i>denied</i> , it is tantamount to a waiver of the accused's right to present evidence and as a consequence the case will be submitted for judgment on the basis of the evidence for the prosecution.
If leave of court is <i>granted</i> , the accused may file the demurrer to evidence within ten (10) days. The prosecution may however, oppose the demurrer to evidence within a non-extendible period of ten (10) days from the receipt of the demurrer.	If demurrer is <i>granted</i> , the case will be dismissed, and will result to an acquittal of the accused (Sec.23).

Q: What is the purpose of leave of court in demurrer to evidence?

A: To determine whether or not the defendant in a criminal case has filed the demurrer merely to stall

the proceedings (*People v. Mahinay, G.R. No. 109613, July 17, 1995*).

Note: If the demurrer is sustained by the court, the order of dismissal is tantamount to an acquittal. Hence it is NOT appealable.

L. JUDGMENT

1. REQUISITES OF A JUDGMENT

Q: What is judgment?

A: It is an adjudication by the court that the accused is guilty or not guilty of the offense charged and the imposition of the proper penalty and civil liability, if any (Sec. 1). It is a judicial act which settles the issues, fixes the rights and liabilities of the parties, and is regarded as the sentence of the law pronounced by the court on the action or question before it (Sec. 1, Rule 120).

Q: What are the requisites of judgment?

A: It must be:

1. Written in official language;
2. Personally and directly prepared by the judge;
3. Signed by the judge; and
4. Contain clearly and distinctly a statement of the facts and the law upon which it is based (Sec. 1, Rule 120).

Note: Decisions of the court shall contain the facts and the law on which they are based (Sec. 14, Art. VIII, 1987 Constitution). The rationale is that the losing party is entitled to know why he lost, so he may appeal to a higher court.

Q: How is entry of judgment made?

A: The recording of the judgment or order in the book of entries of judgments shall constitute its entry. The record shall contain the dispositive part of the judgment order and shall be signed by the clerk, with a certificate that such judgment or order has become final and executory (Sec. 2, Rule 36).

Q: What is *mittimus*?

A: It is a process issued by the court after conviction to carry out the final judgment, such as commanding a prison warden to hold the accused in accordance with the terms of judgment.

Q: What is *reasonable doubt*?

A: Reasonable doubt is defined as the state of the case which, after full consideration of all evidence, leaves the mind of the judge in such a condition



that he cannot say that he feels an abiding conviction to a moral certainty of the truth of the charge.

Q: What is acquittal?

A: An acquittal is a finding of not guilty based on the merits, that is, the accused is acquitted because the evidence does not show that his guilt is beyond reasonable doubt, or a dismissal of the case after the prosecution has rested its case upon motion of the accused on the ground that the evidence fails to show beyond reasonable doubt that the accused is guilty,

Note: It is well settled that acquittal, in a criminal case is immediately final and executor upon its promulgation, and that accordingly, the State may not seek its review without placing the accused in double jeopardy (*Barbers v. Laguio Jr.*, AM No. RTJ-00-1568, February 15, 2001).

Q: Is there a maximum duration for the court's sentence?

A: YES. In the service of sentence, the maximum duration of the court's sentence shall not be more than three-fold the length of time corresponding to the most severe of the penalties imposed upon the accused, and such maximum shall in no case exceed forty years.

2. CONTENTS OF JUDGMENT

Q: What are the contents of judgment?

A: The judgment must state:

1. If of conviction
 - a. Legal qualification of the offense constituted by the acts committed by the accused, and the aggravating or mitigating circumstances attending its commission;
 - b. Participation of the accused whether as principal, accomplice or accessory;
 - c. Penalty imposed upon the accused; and
 - d. Civil liability or damages caused by the wrongful act or omission unless a separate civil action has been reserved or waived.
2. If of acquittal
 - a. Whether the evidence of the prosecution absolutely failed to prove the guilt of the accused or merely failed to prove his guilt beyond reasonable doubt; and

- b. In either case, the judgment shall determine if the act or omission from which the civil liability might arise did exist (*Sec. 2, Rule 120*).

Q: What is the rule regarding a judgment for two or more offenses charged in the complaint or information?

A: The court may convict the accused of as many offenses as are charged and proved, and impose the penalty for each offense, setting out separately the findings of fact and law in each offense (*Sec. 3*)

Note: Failure of the accused to object to the duplicity of offense charged in the complaint or information, is deemed a waiver thereof (*Herrera, Vol. IV, p. 882, 2007 ed.*).

Q: What is the rule regarding a judgment in case of variance between the offense charged and proved?

A:

GR: An accused can be convicted of an offense only when it is both charged and proved; if it is not charged although proved, or if it is not proved although charged, the accused CANNOT be convicted thereof.

XPN: Where there is a variance between the offense charged in the complaint or information and that proved AND the offense as charged is included in or is necessarily includes the offense proved, the accused shall be convicted of the offense proved which is included in the offense charged, or of the offense charged which is included in the offense proved. (*Sec. 4*).

Note: An accused cannot be convicted of an offense not charged or included in the information for this will be in violation of the constitutional right of the accused to be informed of the nature of the offense charged against him (*Herrera, Vol. IV, p. 882, 2007 ed.*).

Q: What happens when an offense includes or is included in another?

A:

GR: If what is proved by the prosecution evidence is an offense which is included in the offense charged in the information, the accused may validly be convicted of the offense proved.

An offense charged NECESSARILY INCLUDES the offense proved when some of the essential ingredients or ingredients of the former as alleged in the complaint or information constitute the latter.

An offense charged NECESSARILY INCLUDED in the offense proved when the essential ingredients of the former constitute or form part of those constituting the latter.

XPN: Where the facts supervened after the filing of information which changed the nature of the offense. (Sec. 5).

Note: An accused cannot be convicted for the lesser offense necessarily included in the crime charged if at the time of the filing of the information, the lesser offense has already prescribed (*Francisco v. CA, G.R. No. L-45674, May 30, 1983*).

Q: What is the effect of the judgment of conviction upon a minor?

A: The courts shall promulgate the sentence and ascertain any civil liability which the accused may have incurred. The sentence, however, shall be *suspended* without need of application pursuant to P.D. 603 or the *Child and Youth Welfare Code*. In which case, the child shall have been committed under the care of the DSWD or any other accredited government institution until he reaches the age of twenty one (21) or until the court so determines (Sec. 40, R.A. 9344, *Juvenile Justice and Welfare Act of 2006*).

Q: What are the exceptions for suspension of sentence of youthful offenders?

A: Offender:

1. has enjoyed previous suspension of sentence;
2. is convicted of a crime punishable by death or life imprisonment;
3. is convicted by a military tribunal; or
4. is already of age at the time of sentencing even if he was a minor at the time of the commission of the crime (*Declarador v. Gubaton, G.R. No. 159208, Aug. 18, 2006*).

Q: What if the minor already reached the age of majority upon the promulgation of his sentence?

A: He is no longer entitled to the suspension of sentence. However, the time he spent during the period of his confinement shall be credited to his actual service of sentence. Furthermore, he shall still be entitled to the privileged mitigating circumstance of minority (*People v. Francisco, G.R. No. 102976, Oct. 25, 1995; R.A. 9344, Juvenile Justice and Welfare Act of 2006*).

Q: What is probation?

A: A disposition under which a defendant, after conviction and sentence, is subject to conditions imposed by the court and under the supervision of a probation officer (Sec. 3, PD 968, *Probation Law*).

3. PROMULGATION OF JUDGMENT; INSTANCES OF PROMULGATION OF JUDGMENT IN ABSENTIA

Q: What is promulgation of judgment?

A: It is the official proclamation or announcement of judgment. It consists of reading the judgment or sentence in the presence of the accused and any judge of the court rendering the judgment.

Q: How is judgment promulgated?

A: It is promulgated by reading it in the presence of the accused and any judge of the court which rendered it (Sec. 6).

Q: Is the accused required to be present during the promulgation of judgment?

A:

GR: Yes.

XPNs:

1. In case of acquittal;
2. Conviction of light offense wherein the judgment may be pronounced in the presence of the accused's counsel or representative; and
3. Promulgation of judgment when the accused was tried *in absentia* (Sec. 6).

Q: Who promulgates the judgment?

A:

GR: The judge of the court who renders the judgment.

XPN: When:

1. *The judge is absent or outside the province or city* – judgment may be promulgated by the clerk of court; and
2. *Accused is confined or detained in another city* – judgment may be promulgated by the executive judge of the RTC having jurisdiction over the place of confinement or detention (Sec. 6).

Q: Is the presence of the accused indispensable in the promulgation of judgment?

A: No. The promulgation shall still be made by recording such judgment in the criminal docket and



serving him a copy thereof in his last known address or through his counsel. If *judgment is one of conviction* and the accused is absent without justifiable cause, the court shall order his arrest and he shall lose the remedies available in the rules against judgment and his bail shall be forfeited.

However, the accused may surrender and file a motion for leave of court to avail of these remedies within fifteen (15) days from the promulgation of judgment. If such motion is granted, he may avail of these remedies within fifteen (15) days from notice of such order granting the motion (*Sec. 6*).

Note: He must however, state the reasons for his absence at the promulgation and prove that his absence was for a justifiable cause.

Q: What are the instances when judgment may be promulgated even if the accused is not present?

A:

1. Judgment is for a light offense, in which case judgment may be promulgated in the presence of the counsel for the accused or a representative.
2. Accused fails to attend the promulgation despite due notice or if he jumped bail or escaped from prison. Notice must be given to the bondsmen, warden, accused's bailor and counsel (*Sec. 6*).

Q: How is promulgation *in absentia* conducted?

A: Promulgation shall be made by:

1. Recording the judgment in the criminal docket; and
2. Serving the accused a copy thereof at his last known address or through his counsel.

Q: What is the remedy if the judgment fails to award civil liability?

A:

1. Appeal;
2. Certiorari; or
3. Mandamus

4. WHEN DOES JUDGMENT BECOME FINAL (FOUR INSTANCES)

Q: When does judgment becomes final?

A: Judgment becomes final:

1. After the lapse of time for perfecting an appeal
2. When the sentence has been partially or totally satisfied
3. When the accused has expressly waived in writing his right to appeal
4. When the accused has applied for probation

Q: When may the trial court lose jurisdiction even before the lapse of the 15 day period?

A: The trial court loses jurisdiction even before the lapse of the 15 day period when:

1. The defendant voluntarily submits to the execution of the judgment;
2. When the defendant perfects an appeal;
3. Defendant withdraws his appeal;
4. Accused expressly waives in writing his right to appeal;
5. Accused files for probation.

M. NEW TRIAL OR RECONSIDERATION

1. GROUNDS FOR NEW TRIAL 2. GROUNDS FOR RECONSIDERATION

Q: Distinguish new trial from reconsideration?

A:

New trial	Reconsideration
Rehearing of a case already decided but before the judgment of conviction therein rendered has become final, whereby errors of law or irregularities are expunged from the record or new evidence is introduced, or both steps are taken	May be filed in order to correct errors of law or fact in the judgment. It does not require any further proceeding.
Grounds: 1. Errors of law or irregularities prejudicial to the substantial rights of the accused have been committed during the trial.	Grounds: 1. Errors of law; or

2. New and material evidence has been discovered which the accused could not, with reasonable diligence, have discovered and produced at the trial and which if introduced and admitted would probably change the judgment (Sec. 2). 3. Other grounds which the court may consider in the exercise of its jurisdiction : - Negligence or incompetency of counsel or mistake which is so gross amounting to deprivation of the substantial rights of the accused and due process; (<i>Aguilar v. Court of Appeals GR No. 114282, November 28, 1995</i>) - Recantation of a witness where there is no evidence sustaining the judgment of conviction other than the testimony of such witness; (<i>Tan Ang Bun v. Court of Appeals GR No</i> - Improvident plea of guilty which may be withdrawn; - Disqualification of attorney de officio to represent accused in trial.	2. Errors of fact (Sec. 3). Note: The principle underlying this rule is to afford the trial court the opportunity to correct its own mistakes and to avoid unnecessary appeals from being taken. The grant by the court of reconsideration should require no further proceedings, such as taking of additional proof.
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Q: When should a motion for new trial or reconsideration be filed?

A: It should be filed with the trial court within 15 days from the promulgation of the judgment.

Note: Notice of the motion for new trial or reconsideration shall be given to the prosecutor.

Q: When should a motion for reconsideration of any final order or order be filed in cases before the Sandiganbayan?

A: It may be filed within fifteen (15) days from the promulgation or notice of final order or judgment (Sec. 5, R.A. 8249).

Note: Such motion for reconsideration shall be decided within 30 days from submission (Sec. 5, R.A. 8249).

Q: When may a new trial granted?

A: It may be granted at any time before the judgment of conviction becomes final on motion of the accused or the court with the consent of the accused (Sec. 1).

Note: The award of new trial or taking of additional evidence rests upon the sound discretion of the court. Once the appeal is perfected, the court *a quo* loses jurisdiction over it, except for the purpose of correcting clerical errors. In such case, the appellate court steps in. When new material evidence has been discovered, the accused may file a motion for new trial with the appellate court.

Q: What should be the form of a motion for new trial or reconsideration?

A: The motion must:

- be in writing;
- filed in court;
- state the grounds on which it is based; and
- if the motion for new trial is based on newly discovered evidence, it must be supported by the affidavits of the witness by whom such evidence is expected to be given or duly authenticated copies of documents which it is proposed to introduce in evidence (Sec. 4).

Note: While the rule requires that an affidavit of merits be attached to support a motion for new trial based on newly discovered evidence, the rule also allows that the defect of lack of merit may be cured by the testimony under oath of the defendant at the hearing of the motion (*Paredes v. Borja, G.R. No. L-15559, Nov. 29, 1961*).

Q: What is recantation? Is it a ground for new trial?

A: Recantation is the public and formal withdrawal of a witness of his prior statement (*People v. Ballabare, G.R. No. 108871, Nov. 19, 1996*). It is not a ground for new trial because it makes a mockery of the court and would place the investigation of truth at the mercy of unscrupulous witness. Moreover, retractions are easy to extort out of witness. In contrast, their statements are made under oath, in the presence of judge, and with the opportunity to cross-examine.



Q: Distinguish recantation from desistance.

A:

Recantation	Affidavit of Desistance
A witness who previously gave a testimony subsequently declares that his statements are untrue publicly (<i>People v. Ballabare</i> , G.R. No. 108871, Nov. 19, 1996).	The complainant states that he did not really intend to institute the case and he is no longer interested in testifying or prosecuting.
GR: It is not a ground for granting a new trial and are hardly given weight XPN: When there is no evidence sustaining the judgment of conviction other than the testimony of the recanting witness (<i>Tan Ang Bun v. CA</i> , G.R. No. L-47747, Feb. 15, 1990).	It is not by itself a ground for dismissal of the action (<i>People v. Ramirez</i> , G.R. Nos. 150079-80, June 10, 2004). It is merely an additional ground to buttress the defense and not a sole consideration for acquittal (<i>People v. Ballabare</i> , G.R. No. 108871, Nov. 19, 1996).

3. REQUISITES BEFORE A NEW TRIAL MAY BE GRANTED ON GROUND OF NEWLY DISCOVERED EVIDENCE

Q: What are the requisites before a new trial may be granted on the ground of newly discovered evidence?

A: That:

1. the evidence was discovered after trial;
2. such evidence could not have been discovered and produced at the trial even with the exercise of reasonable diligence;
3. it is material, not merely cumulative, corroborative or impeaching; and
4. the evidence is of such a weight that it would probably change the judgment if admitted (*Herrera*, Vol. IV, p. 935, 2007 ed.).

Q: May errors or ignorance of counsel be a ground for new trial or consideration?

A:

GR: Mistakes or errors of counsel in the conduct of his case are not grounds for new trial. This rule is the same whether the mistakes are the result of ignorance, inexperience, or incompetence.

XPN: If the incompetence, ignorance or inexperience of counsel is so great and the error committed as a result thereof is so serious that

the client, who otherwise has a good cause, is prejudiced and denied his day in court, the litigation may be reopened to give the client another chance to present his case (*Abrajano v. CA*, G.R. No. 114282, Oct. 13, 2000).

4. EFFECTS OF GRANTING A NEW TRIAL OR RECONSIDERATION

Q: What are the effects of granting a new trial or reconsideration?

A: In all cases, when the court grants a new trial or reconsideration, the original judgment shall be set aside or vacated and a new judgment rendered accordingly.

In addition, when granted on the ground of:

1. *Errors of law or irregularities committed during the trial*
 - a. All proceedings and evidence not affected by such errors and irregularities shall stand;
 - b. Those affected shall be set aside and taken anew; and
 - c. In the interest of justice, the court may allow the introduction of additional evidence.
2. *Newly discovered evidence*
 - a. The evidence already taken shall stand;
 - b. Newly discovered and other evidence as the court may, in the interest of justice, allow to be introduced, shall be taken and considered together with the evidence already in the record (*Sec. 6*).

Note: The effect of granting a new trial is not to acquit the accused of the crime of which the judgment finds him guilty but precisely to set aside said judgment so that the case may be tried *de novo* as if no trial had been had before.

5. APPLICATION OF NEYPES DOCTRINE IN CRIMINAL CASES

Q: What is the effect of filing a motion for new trial or reconsideration on the period of perfecting an appeal?

A: A fresh period of fifteen (15) days to appeal is counted from the denial of the motion for reconsideration or new trial (*Neypes v. CA*, G.R. No. 141524, Sept. 14, 2005).

Note: Denial of a motion for reconsideration or new trial is not appealable nor subject of *certiorari*; but it may be raised as an error on appeal.

Q: Distinguish new trial from reopening of the case.

A:

New Trial	Re-opening of the Case
Filed after judgment is rendered but before the finality thereof.	Made by the court before the judgment is rendered in the exercise of sound discretion.
Made by the court on motion of the accused or at its own instance but with the consent of the accused.	Does not require the consent of the accused; may be at the instance of either party who can thereafter present additional evidence.

Q: What is the “fresh period rule” as enunciated in *Neypes*?

A: In *Neypes*, the Court modified the rule in civil cases on the counting of the 15-day period within which to appeal. The Court categorically set a fresh period of 15 days from a denial of a motion for reconsideration within which to appeal.

The “fresh period rule” shall also apply to Rule 40 governing appeals from the Municipal Trial Courts to the Regional Trial Courts; Rule 42 on petitions for review from the Regional Trial Courts to the Court of Appeals; Rule 43 on appeals from quasi-judicial agencies to the Court of Appeals and Rule 45 governing appeals by certiorari to the Supreme Court. The new rule aims to regiment or make the appeal period uniform, to be counted from receipt of the order denying the motion for new trial, motion for reconsideration (whether full or partial) or any final order or resolution (*Neypes v. Court of Appeals*, G.R. No. 141524, September 14, 2005).

Q: Does the “fresh period rule” apply to criminal cases?

A: Yes. The Court held in the case of *Yu v. Samson-Tatad* (G.R. No. 170979, Feb. 9, 2011) that the pronouncement of a “fresh period” to appeal should equally apply to the period for appeal in criminal cases under Section 6 of Rule 122, for the following reasons:

First, BP 129, as amended, the substantive law on which the Rules of Court is based, makes no distinction between the periods to appeal in a civil case and in a criminal case.

Second, the provisions of Section 3 of Rule 41 of the 1997 Rules of Civil Procedure and Section 6 of Rule 122 of the Revised Rules of Criminal Procedure mean exactly the same. There is no substantial difference between the two provisions insofar as legal results are concerned – the appeal period

stops running upon the filing of a motion for new trial or reconsideration and starts to run again upon receipt of the order denying said motion for new trial or reconsideration. It was this situation that *Neypes* addressed in civil cases. No reason exists why this situation in criminal cases cannot be similarly addressed.

Third, while the Court did not consider in *Neypes* the ordinary appeal period in criminal cases under Section 6, Rule 122 of the Revised Rules of Criminal Procedure since it involved a purely civil case, it did include Rule 42 of the 1997 Rules of Civil Procedure on petitions for review from the RTCs to the Court of Appeals (CA), and Rule 45 of the 1997 Rules of Civil Procedure governing appeals by certiorari to this Court, both of which also apply to appeals in criminal cases, as provided by Section 3 of Rule 122 of the Revised Rules of Criminal Procedure.

N. APPEAL

1. EFFECT OF AN APPEAL

Q: What are the modes of review?

A: The Rules of Court recognize four modes by which the decision or final order of the court may be reviewed by a higher tribunal:

1. Ordinary Appeal;
2. Petition for Review;
3. Petition for Review on Certiorari;
4. Automatic Appeal

Q: What is appeal?

A: It is a proceeding for review by which the whole case is transferred to the higher court for a final determination. It is not an inherent right of a convicted person. The right of appeal is statutory. Only final judgments and orders are appealable.

Q: Who may appeal?

A: Any party may appeal from a judgment or final order, unless the accused will be placed in double jeopardy (Sec. 1).

Q: What is the effect of an appeal?

A: An appeal in a criminal case opens the whole case for review and this includes the review of penalty, indemnity, and the damages involved. Consequently, on appeal, the appellate court may increase the penalty and indemnity of damages awarded by the trial court although the offended party had not appealed from said award, and the party who sought a review of the decision was the accused.



Note: When an appeal has been perfected, the court a quo loses jurisdiction.

Q: What is the difference between the appeal of a judgment and the appeal of an order?

A: The appeal from a judgment must be perfected within 15 days from *promulgation*. The appeal from an order should be perfected within 15 days from *notice* of the final order.

2. WHERE TO APPEAL

Q: When is appeal taken?

A: An appeal must be filed within fifteen (15) days counted from the promulgation or notice of the judgment or order appealed from.

Q: Where is the appeal taken?

A: To the:

1. RTC, in cases decided by the MTC, MTCC, MeTC, or MCTC;
2. CA or to the SC in the proper cases provided by law, in cases decided by the RTC;
3. SC, in cases decided by the CA (Sec. 2).

Q: May the prosecution appeal a judgment of acquittal?

A:

GR: No, because the accused would be subjected to *double jeopardy*.

XPNS:

1. If the dismissal is made upon motion or with the express consent of the accused. *However*, double jeopardy will still attach if the dismissal is based on:
 - a. Insufficiency of the prosecution evidence; or
 - b. Violation of the accused's right to speedy trial.
2. If the dismissal is not an acquittal or based upon consideration of the evidence on the merits;
3. If the question is purely legal so that should the dismissal be found incorrect, the case shall be remanded for further proceedings to determine the guilt or innocence of the accused; and
4. If there is a showing of grave abuse of discretion amounting to lack or excess of jurisdiction, certiorari under Rule 65 may be available.

3. HOW IS APPEAL TAKEN (AMENDED BY AM 00-5-03-SC, October 3, 2002)

Q: How is appeal taken?

A:

Appeal to	From decision of	How taken
RTC	MTC	1. File a notice of appeal with the MTC; 2. Serve a copy of the notice to the adverse party.
CA	RTC	1. Exercising its original jurisdiction for offenses with imposable penalties <i>less</i> than <i>reclusion perpetua</i> or life imprisonment
	2. Exercising its appellate jurisdiction	1. File a notice of appeal with the RTC; 2. Serve a copy of the notice to the adverse party.
	3. Where the imposable penalty is: a. life imprisonment or <i>reclusion perpetua</i>; or b. a lesser penalty for offenses committed on the same occasion or which arose from the same occurrence that gave rise to the offense punishable <i>reclusion perpetua</i> or life imprisonment	1. File a notice of appeal with the RTC; 2. Serve a copy of the notice to the adverse party.
	4. Where the imposable penalty is death	Automatic review to CA (Sec. 10)

SC	1. All other appeals <i>except</i> : a. Decision of RTC where the imposable penalty is life imprisonment or <i>reclusion perpetua</i> or a lesser penalty for offenses committed on the same occasion or which arose from the same occurrence that gave rise to the offense punishable by <i>reclusion perpetua</i> or life imprisonment; and b. Decisions of RTC imposing the penalty of death.	Petition for review on certiorari via Rule 45
	2. CA a. When it finds that death penalty should be imposed	Automatic review (Sec. 13, Rule 124)
	b. Where it imposes <i>reclusion perpetua</i> , life imprisonment or a lesser penalty	Notice of appeal (Sec. 13, Rule 124)
	3. <i>Sandiganbayan</i> a. Exercising its appellate jurisdiction for offenses where the imposable penalty is <i>reclusion perpetua</i> or life imprisonment	File a notice of appeal
	b. Exercising its original jurisdiction for offenses where the imposable penalty is <i>reclusion perpetua</i> and life imprisonment	File a notice of appeal (Sec. 13, Rule 124; Sec. 5, PD 1606 as amended by R.A. 8249)
	c. Exercising its original or appellate jurisdiction where it finds that the penalty to be imposed is death	Automatic review (Sec. 13, Rule 124; Sec. 5, PD 1606 as amended by R.A. 8249)
	d. Cases not falling in paragraphs a and b above	Petition for review on certiorari via Rule 45

4. EFFECT OF APPEAL BY ANY OF SEVERAL ACCUSED

Q: What are the effects of appeal by any of the several accused?

A:

1. An appeal taken by one or more of several accused shall not affect those who did not appeal, except insofar as the judgment of the appellate court is favorable and applicable to the latter;
2. The appeal of the offended party from the civil aspect shall not affect the criminal aspect of the judgment or order appealed from; and
3. Upon perfection of the appeal, the execution of the judgment or final order appealed from shall be stayed as to the appealing party (Sec. 11).

Note: In *People v. Fernandez (G.R. No. 80481, June 27, 1990)*, the SC applied the benefit of an acquittal handed down in an appeal to an accused who jumped bail or escaped.

5. GROUNDS FOR DISMISSAL OF APPEAL

Q: What are the grounds for the dismissal of an appeal?

A:

1. Failure of the record on appeal to show on its face that the appeal was taken within the period fixed by these Rules;
2. Failure to file the notice of appeal or the record on appeal within the period prescribed by these Rules;
3. Failure of the appellant to pay the docket and other lawful fees as provided in section 5 of Rule 40 and section 4 of Rule 41;
4. Unauthorized alterations, omissions or additions in the approved record on appeal as provided in section 4 of Rule 44;
5. Failure of the appellant to serve and file the required number of copies of his brief of memorandum within the time provided by these Rules;
6. Absence of specific assignment of errors in the appellant's brief, or of page references to the record as required in



section 13, paragraphs (a), (c), (d) and (f) of Rule 44;

7. Failure of the appellant to take the necessary steps for the correction or completion of the record within the time limited by the court in its order;
8. Failure of the appellant to appear at the preliminary conference under Rule 48 or to comply with orders, circulars, or directives of the court without justifiable cause; and
9. The fact that the order or judgment appealed from is not appealable (*Rule 50*)

O. SEARCH AND SEIZURE

1. NATURE OF SEARCH WARRANT

Q: What is a search warrant?

A: A search warrant is an order in writing issued in the of the People of the Philippines, signed by the judge and directed to a peace officer, commanding him to search for personal property described therein and bring it before the court.

Note: The warrant MUST name the person upon whom it is to be served EXCEPT in those cases where it contains a *DESCRIPTIO PERSONAE* such as will enable the officer to identify the person. The description must be sufficient to indicate clearly the proper person upon whom it is to be served. (*People v. Veloso GR No L-23051, October 20, 1925*)

Q: What is a general warrant?

A: A general warrant is a search warrant which vaguely describes and does not particularize the personal properties to be seized without a definite guidelines to the searching team as to what items might be lawfully seized, thus giving the officers of the law discretion regarding what articles they should seize.

NOTE: A general warrant is not valid as it infringes on the constitutional mandate requiring particular description of the things to be seized.

Q: What is the nature of a search warrant?

A:

1. Search warrants are in the nature of criminal process and may be invoked only in furtherance of public prosecutions;
2. Search warrants have no relation to civil process or trials; and
3. They are not available to individuals in the course of civil proceedings;
4. It is not for the maintenance of any mere private right;

5. It is interlocutory in character- it leaves something more to be done, the determination of the guilt of the accused.

Q: What are the requisites for issuing a search warrant?

A:

1. The search warrant must be issued upon probable cause;
2. Probable cause must be determined by the judge;
3. The judge must have personally examined the witness, in the form of searching questions and answers, the applicant and his witnesses and took down their depositions;
4. Must particularly describe or identify the property to be seized as far as the circumstances will ordinarily allow;
5. Must particularly describe the place to be searched and the person or things to be seized;
6. Must be in connection with one specific offense;
7. The sworn statements together with the affidavit submitted by witnesses must be attached to the record. (*Prudente v. Dayrit GR No. 82870, December 14, 1989*);
8. It must not have been issued more than 10 days prior to the search made pursuant thereto.

Note: Two points must be stressed in connection with this mandate: (1) that NO warrant of arrest shall issue but upon probable cause to be determined by the judge in the manner set forth in said provision, and (2) that the warrant shall particularly describe the things to be seized. (*Stonehill v. Diokno, G.R. No. L-19550, June 19, 1967*)

Q: Distinguish Search from Seizure.

A: The term search as applied to searches and seizures is an examination of a man's house or other buildings or premises or of his person with a view to the discovery of contraband or illicit or stolen property or some evidence of guilt to be used in the prosecution of a criminal action for some offense with which he is charged.

A seizure is the physical taking of a thing into custody.

2. DISTINGUISH FROM WARRANT OF ARREST

Q: Distinguish a warrant of arrest from a search warrant.

A:

Warrant of Arrest	Search Warrant
Order directed to the peace officer to execute the warrant by taking the person stated therein into custody so that he may be bound to answer for the commission of the offense.	Order in writing in the name of the Republic of the Philippines signed by the judge and directed to the peace officer to search personal property described therein and to bring it to court.
Does not become stale.	Validity is for 10 days only.
May be served on any day and at any time of day or night.	To be served only in daytime unless the affidavit alleges that the property is on the person or in the place to be searched.
Searching examination of witnesses is not necessary.	Must personally conduct an examination of the complainant and the witnesses.
Judge is merely called upon to examine and evaluate the report of the prosecutor and the evidence	Examination must be probing. Not enough to merely adopt the questions and answers asked by a previous investigator

Note: In general, the requirements for the issuance of a search warrant are more stringent than the requirements for the issuance of a warrant of arrest. The violation of the right to privacy produces a humiliating effect which cannot be rectified anymore. This is why there is no other justification for a search, except a warrant. On the other hand, in a warrant of arrest, the person to be arrested can always post bail to prevent the deprivation of liberty.

Q: Why are the requirements for the issuance of a search warrant more stringent than the requirements for the issuance of a warrant of arrest?

A: The violation of the right to privacy produces a humiliating effect which cannot be rectified anymore. This is why there is no other justification for a search, except a warrant. On the other hand, in a warrant of arrest, the person to be arrested can always post bail to prevent the deprivation of liberty.

3. APPLICATION FOR SEARCH WARRANT, WHERE FILED

Q: Where should an application for a search warrant be filed?

A:

GR: It should be filed with the court within whose territorial jurisdiction the crime was committed. For compelling reasons, any court within the judicial region where the crime was committed if the place of the commission of the crime is known, or any court within the judicial region where the warrant shall be enforced

XPNS:

1. However, *if the criminal action has been filed*, the application shall only be made in the court where the criminal action is pending (*Sec. 2*);
2. In case of search warrant involving heinous crimes, illegal gambling, illegal possession of firearms and ammunitions as well as violations of the Comprehensive Dangerous Drugs Act of 2002, the Intellectual Property Code, the Anti- Money Laundering Act of 2001, the Tariff and Customs Code, the Executive judges and whenever they are on official leave of absence or are not physically present in the station, the Vice- Judges of RTCs of Manila and Quezon City shall have the authority to act on the application filed by the NBI, PNP and the Anti- Crime Task Force (ACTAF). (*Administrative Matter No. 99-10-09-SC*)

Note: The application shall be personally endorsed by the heads of such agencies and shall particularly described therein the places to be searched and/ or the property or things to be seized as prescribed in the Rules of Court. The Executive Judges and the Vice- Executive Judges concerned shall issue the warrants if justified, which may be served outside the territorial jurisdiction of said courts. (*Sps. Marimla v. People of the Philippines, GR No. 158467, October 16, 2009*)

4. PROBABLE CAUSE

Q: What is probable cause?

A: It refers to the facts and circumstances which could lead a reasonably discreet and prudent man to believe that an offense has been committed and that the objects sought in connection with the offense are in the place sought to be searched



(*Burgos v. Chief of Staff*, G.R. No. L-65334, Dec. 26, 1984).

Q: What are the requisites in determining the existence of probable cause?

A:

1. The judge must examine the complainant and his witness personally;
2. The examination must be under oath; and
3. The examination must be reduced in writing in the form of searching questions and answers (*People v. Mamaril*, 420 SCRA 662)

Q: Who determines probable cause?

A:

GR: Probable cause must be determined personally by the judge (*Article 3, Section 2, 1987 Constitution*)

XPN: Deportation of illegal and undesirable aliens, whom the President or the Commissioner of Immigration may order arrested following a final order of deportation for the purpose of deportation (*Harvey v. Defensor- Santiago GR No 82544, June 28, 1988*)

Note: The requirement of probable cause, to be determined by a Judge, does not extend to deportation proceedings. (*Tiu Chun Hai v. Commissioner*, G.R. No. L-10009 December 22, 1958)

Q: What is Multi Factor Balancing Test in determining probable cause?

A: Multi Factor Balancing test is one which requires the officer to weigh the manner and intensity of the interference on the right of the people, the gravity of the crime committed, and the circumstances attending the incident.

5. PERSONAL EXAMINATION BY JUDGE OF THE APPLICANT AND WITNESS

Q: What are the requisites of personal examination by the judge?

A:

1. The judge must examine the witness personally;
2. The examination must be under oath;
3. The examination must be reduced to writing in the form of searching questions and answers (*Marinas v. Siochi*, G.R. Nos. L-25707 & 25753-25754, May 14, 1981);

4. It must be probing and exhaustive, not merely routine or pro forma (*Roan v. Gonzales*, G.R. No. 71410, Nov. 25, 1986); and
5. It is done ex-parte and may even be held in the secrecy of chambers (*Mata v. Bayona*, G.R. No. L-50720, Mar. 26, 1984).

6. PARTICULARITY OF PLACE TO BE SEARCHED AND THINGS TO BE SEIZED

Q: What are the kinds of personal properties to be seized by virtue of a search warrant?

A:

1. Subject of the offense;
2. Stolen or embezzled and other proceeds or fruits of the offense; and
3. The means used or intended to be used as the means of committing an offense (*Sec. 3*).

Note: It is not required that the property to be seized should be owned by the person against whom the search warrant is directed. It is sufficient that the person against whom the warrant is directed has control or possession of the property sought to be seized (*Burgos v. Chief of Staff*, G.R. No. L-65332, Dec. 26, 1984).

Q: What are the tests to determine particularity of the place to be searched?

A:

1. When the description therein is as specific as the ordinary circumstance will allow (*People v. Rubio*, GR No L-35500, October 27, 1932);
2. When the description express a conclusion of fact, not of law which the warrant officer may be guided in making the search and seizure;
3. When the things described therein are limited to those which bear direct relation to the offense for which the warrant is being issued.

Q: What is the purpose of describing with particularity the place to be searched and the persons or things to be seized?

A: The purpose of the rule is to leave the officers of the law with not discretion regarding what articles they shall seize, to the end that "unreasonable searches and seizures" may not be made- that abuses may not be committed. (*Stonehill v. Diokno*, G.R. No. L-19550, June 19, 1967)

7. PERSONAL PROPERTY TO BE SEIZED

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8. EXCEPTIONS TO SEARCH WARRANT REQUIREMENT

- a. SEARCH INCIDENTAL TO LAWFUL ARREST
- b. CONSENTED SEARCH
- c. SEARCH OF MOVING VEHICLE
- d. CHECK POINTS; BODY CHECKS IN AIRPORT
- e. PLAIN VIEW SITUATION
- f. STOP AND FRISK SITUATION
- g. ENFORCEMENT OF CUSTOM LAWS

Q: May there be valid warrantless search?

A: Yes, the following are instances where a warrantless search is valid:

1. Search incident to lawful arrest
Immediate control test – A search incidental to a lawful warrantless arrest may extend beyond the person where the exigencies of the situation justify a warrantless search for dangerous weapons and to prevent the arrestee from destroying evidence of the crime within reach (*People v. Musa*, G.R. No. 95329, Jan. 27, 1993).
2. Consented search (waiver of right) – Consent cannot be presumed simply because the accused failed to object to the search. To constitute a waiver, it must appear that:
 - a. The right exists;
 - b. The person involved had knowledge, actual or constructive, of the existence of such rights; and
 - c. Actual intention to relinquish such rights (*People v. Burgos*, G.R. No. 92739, Aug. 2, 1991).

3. Search of moving vehicle – May validly be made without a search warrant because the vessel or aircraft can quickly move out of the jurisdiction before such warrant could be secured (*People v. Lo Ho Wing*, G.R. No. 88017, Jan. 21, 1991).

4. Checkpoints; body checks in airport

NOTE: Searches conducted in checkpoints are valid for as long as they are warranted by the exigencies of public order and are conducted in a way least intrusive to motorists. For as long as the vehicle is neither searched nor its occupants subjected to a body search, and the inspection of the vehicle is limited to a visual search, said routine checks cannot be regarded as violative of an individual's right against unreasonable search. (*People v. Vinecario*, G.R. No. 141137, January 20, 2004)

In body checks in airports, passengers attempting to board an aircraft routinely pass through metal detectors; their carry-on baggage as well as checked luggage are routinely subjected to x-ray scans. Should these procedures suggest the presence of suspicious objects, physical searches are conducted to determine what the objects are. There is little question that such searches are reasonable, given their minimal intrusiveness, the gravity of the safety interests involved, and the reduced privacy expectations associated with airline travel. Indeed, travelers are often notified through airport public address systems, signs, and notices in their airline tickets that they are subject to search and, if any prohibited materials or substances are found, such would be subject to seizure. These announcements place passengers on notice that ordinary constitutional protections against warrantless searches and seizures do not apply to routine airport procedures. (*People v. Johnson*, G.R. No. 138881, December 18, 2000)

5. Plain view situation

The plain view doctrine authorizes a search and a seizure without a warrant.

For the doctrine to apply, the following requisites must be met:

- a. There must have been a legal presence in the place where the search is made;
- b. The evidence was discovered inadvertently by an officer with a right to be where he is;



- c. The evidence is immediately apparently illegal; and
- d. There is no need for any further search to obtain the evidence (*People v. Concepcion*, 361 SCRA 540; *People v. Sarap*, 399 SCRA 503; *People v. Go*; 411 SCRA 81)

6. Stop and frisk situations

This is a limited protective search of the outer clothing of a person to determine the presence of weapons. Probable cause is not required but a genuine reason (not mere suspicion) must exist, in the light of the officer's experience and surrounding circumstances, to warrant the belief that the persons has concealed weapons (*Malacat v. Court of Appeals*, 283 SCRA 159).

Its object is either to:

- a. determine the identity of a suspicious individual
- b. maintain the status quo momentarily while the police officer seeks to obtain more information.

Note: The officer may search the outer clothing of the person in an attempt to discover weapons which might be used to assault him (*Manalili v. CA*, G.R. No. 113447, Oct. 9, 1997).

7. Enforcement of custom laws

9. REMEDIES FROM UNLAWFUL SEARCH AND SEIZURE

Q: What are the remedies against an unlawful search?

A:

- 1. Motion to quash the search warrant;
- 2. Motion to suppress as evidence the objects illegally taken (*exclusionary rule* – any evidence obtained through unreasonable searches and seizures shall be inadmissible for any purpose in any proceeding);
- 3. Replevin, if the objects are legally possessed; and
- 4. *Certiorari*, where the search warrant is a patent nullity.

Note: The remedies are *alternative*. If a motion to quash is denied, a motion to suppress cannot be availed consequently. The illegality of the search warrant does not call for the return of the things seized, the possession of which is prohibited by law. However, those personalities seized in violation of the constitutional immunity whose possession is not illegal

or unlawful *per se* ought to be returned to their rightful owner or possessor.

Q: In what court may a motion to quash the search warrant or suppress evidence be filed?

A:

1. It may be filed and acted upon **ONLY** by the court where the action has been instituted;

2. If no criminal action has been instituted, it may be filed in and resolved by the court that issued the warrant. However if such court failed to resolve the motion and a criminal case is subsequently filed in another court, the motion shall be resolved by the **LATTER** court.

P. PROVISIONAL REMEDIES IN CRIMINAL CASES

1. NATURE

Q: What is the nature of provisional remedies?

A: They are those to which parties may resort for the preservation or protection of their rights or interests and for no other purposes during the pendency of the action. They are applied to a pending litigation for the purpose of securing the judgment or preserving the *status quo*; and in some cases after judgment, for the purpose of preserving or disposing of the subject matter (*Cala v. Roldan*, G.R. No. L-252, Mar. 30, 1946).

2. KINDS OF PROVISIONAL REMEDIES

Q: What provisional remedies are available in criminal cases?

A: As far as applicable, provisional remedies under the Civil Procedure are available (*Sec. 1*) such as:

- 1. attachment (*Rule 57*);
- 2. preliminary Injunction (*Sec. 58*);
- 3. receivership (*Rule 59*);
- 4. delivery of personal property (*Rule 60*);
- 5. support *Pendent lite* (*Rule 61*).

Q: Who may apply for attachment?

A: The aggrieved party in whose behalf the civil aspect of the criminal action is prosecuted may apply for the issuance of a writ of preliminary attachment, he being the person primarily and directly interested thereby. The prosecutor in the criminal action may make such an application in behalf of or for the protection of the interest of the offended party.

Note: The Public prosecutor has the authority to apply for preliminary attachment as may be necessary to protect the interest of the offended party.

Q: Is notice to the adverse party required before a writ of preliminary attachment may issue?

A: No notice to the adverse party, or hearing on the application is required before a writ of preliminary attachment may issue as a hearing would defeat the purpose of the provisional remedy. The time which such hearing would take could be enough to enable the defendant to abscond or dispose of his property before a writ of attachment may issue (*Mindanao Savings etc v. Court of Appeals, 172 SCRA 480*)

Note: The only requirements for the issuance of a writ of preliminary attachment are: the affidavit and bond of the applicant.

Q: When may attachment be availed?

A: Attachment may be availed of ONLY when the civil action arising from the crime has not been expressly waived or not reserved and is limited on the following instances:

1. When the accused is about to abscond from the Philippines;
2. When the criminal action is based on a claim for money or property embezzled or fraudulently misapplied or converted for the use of the accused who is a public officer or a corporate officer or an attorney, broker, or agent or clerk in the course of employment or by a person in fiduciary capacity;
3. When the accused has concealed or removed or about to dispose of his property; and
4. When the accused resides abroad.

